

FR-8124/24

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
PRESENTATION FORM

WP No. _____/2024

Serial No. _____

_____ District

Advocate Sri

Between

Sri K. M. Sheshidhar

M/s. SHETTY AND HEGDE ASSOCIATES
ADVOCATES

No. 27/9, 3rd Floor, Sankey Road,
Vasanthnagar, Opp. Golf Link Apartments,
Bengaluru - 560 052.
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And

The State of Karnataka

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IN THE HIGH COURT OF KARNATAKA, AT BENGALURU
(ORIGINAL JURISDICTION)

WRIT PETITION NO. / 2024

BETWEEN :

Sri. K.M Shashidhar

...PETITIONER

AND

The State of Karnataka and Others

...RESPONDENTS

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BENGALURU

DATED. 14/3/2024

R. V.

ADVOCATE FOR PETITIONER
(GAURAV NAVEEN KUMAR THEJASVI)
(M/S SHETTY AND HEGDE ASSOCIATES)

1

IN THE HIGH COURT OF KARNATAKA, AT BENGALURU
(ORIGINAL JURISDICTION)

WRIT PETITION NO. / 2024

BETWEEN :

Sri. K.M. Shashidhar

...PETITIONER

AND

The State of Karnataka and Others

...RESPONDENTS

SYNOPSIS

DATES	PARTICULARS
25.08.1947	The Lands bearing old Survey No. 357 and New Survey No. 621, measuring 3 acres, situated at Byravalli Village, Avathi Hobli, Chikkamangalur Taluk, which were originally Granted to one Sri. K.S. Kallegowda, S/o Sri. Siddegowda, under Darkhast Grant, as per the Order dated.25.08.1947, bearing DIS D.R. No. 34 / 1947 – 1948 and SDR No.11 / 1947 – 1948, passed by the Respondent No.2 herein. Pursuant to the said grant, all revenue entries including the katha of the Schedule Property was effected in the name of Sri. K.S. Kalle Gowda, as per M.R. Entry No. 6 / 1947 – 1948.
1947 - 1948	The Record of Rights, pertaining to the Lands bearing old Survey No.357, notes the flow of title by way of a Darkhast Grant made by the State of Karnataka through the Respondent No.2 herein, in

	favor of Sri. K.S. Kallegowda, S/o Sri. Siddegowda, as per the Order dated. 25.08.1947, bearing DIS D.R. No.34 / 1947 – 1948 and SDR No.11 / 1947 – 1948.
28.05.1958	There was a family partition between Sri. K.S. Mallegowda and Sri. K.S. Kallegowda, under the Partition Deed dated. 28.05.1958, bearing Document No. 1166 / 1958 – 1959, registered at the Office of the Sub-Registrar, Chikkamangalur District. As per the Partition Deed the Petitioner's Late father Sri. K.S. Mallegowda, received the lands in Survey No. 621, situated at Byravalli Village, Avathi Hobli, Chikkamangalur Taluk, measuring 3 Acres.
23.09.1959	The Government of Mysore vide Proceedings of the Agriculture and Forest Department dated. 23.09.1959, had identified certain wrongful inclusion of Lands in the Maskalli State Forests, Chikkamangalur, Bengaluru.
11.06.1960	The Lands in Survey No. 357, which was originally granted to Sri. K.S. Kallegowda S/o Sri. Siddegowda, was demarcated vide Phodi and Durasti dated.11.06.1960. The Lands were assigned a new Survey No. 621. It is submitted that the Tippani prepared along with the Revenue Sketch notes that the land is granted as per order bearing No. SFK No. 101 / 1946 – 1947.

1960 - 1961	The Index of Lands maintained by the Revenue Authorities, shows the name of the Petitioner's Late father Sri. K.S. Mallegowda, as being the owner of the Lands in Survey No. 621, which devolved to his share vide Partition Deed dated.28.05.1958, bearing document No. 1166 / 1958 – 1959.
29.01.1969	The Government of Mysore vide Order dated. 29.01.1969, bearing No. RD 186 LGC 68, had accorded sanction for the confirmation of Grants made in respect of the lands in Survey Nos. 357, 364, and 374 of Byravalli Village, Chikkamangalur Taluk, in favor of Sri. Kalle Gowda, to an extent of 49 Acres and 35 Guntas.
12.06.1974	There was a Family Partition between Sri. K.S. Mallegowda and his son Sri. K.M. Shashidhara, under registered Partition Deed dated.12.06.1974, registered as Document No. 822 / 1974 – 1975, in Book – I, in the Office of the Sub-Registrar, Chikkamangalur. As per the said partition, the Schedule Property was allotted to the share of Sri. K.M. Shashidhara, as per 'B' Schedule of the said Partition Deed.
11.04.1975	The Certificate of Registration dated.11.04.1975, bearing C.R.C. No. 21 / 1975 – 1976, issued by the Respondent No.2 herein, under Section 3 of the Mysore Coffee Market Expansion (Emergency) Act, 1940. The Petitioner has been registered as an owner of the Coffee Estate under the said Act. As

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	per the said Schedule the Lands in Survey No. 357, have been included as being included in the Coffee Estate by the name "Shivagange Estates".
10.06.2011	There was another partition of the Family Properties amongst Sri. K. M. Shashidhara, his Wife Smt. C.R. Malavika and their children that is Sri. K.S. Mahesh, Sri. K.S. Sharan and Smt. K.S. Tharini, under the Registered Partition Deed dated. 10.06.2011, registered as Document No. 1363 / 2011 – 2012, in Book – I, in the Office of the Sub-Registrar, Chikkamangalur. As per the said partition, the Scheduled Property bearing Survey No. 621, was allotted to the share of Sri. K.M. Shashidhar, as per 'A' Schedule of the Partition Deed
02.05.2019	The Chief Secretary, Government of Karnataka, in W.P. (Civil) No. 202 / 1995, in I.A. Nos. 860, 863, 990, had filed an Affidavit dated.02.05.2019, wherein it is specifically stated that grants made post-1944, but pre-1980, the requisite orders for de-notification of forests have not been appropriately issued, even though lands were released for grants. However, Liberty is sought for to take necessary action in certain cases where records of grants made were not available, wherein in such categories of cases, it is necessary to verify the records and adjudicate the claim within a period of one Year.

04.11.2023	The Record of Rights dated.04.11.2023, shows the name of Sri. K.M. Shashidhara S/o Sri. K.S. Mallegowda, being in ownership and possession of Lands Survey No. 621, situated at Byravalli Village, Avathi Hobli, Chikkamangalur Taluk, measuring 3 Acres.
25.05.2023	The Respondent No.2 (Deputy Commissioner) herein, had conducted a Suo moto Enquiry in exercise of the powers conferred under Section 136 (3) of the Karnataka Land Revenue Act, 1964. The Respondent No. 2 herein, vide Order dated. 25.05.2023, in M5 LAQ CR 45(A) / 2019 – 2020, was pleased to hold that the Grant made in respect of the Lands in Sy. No. 621 and Old Sy. No. 357, situated at Byravalli Village, Avathi Hobli, Chikkamangalur Taluk, measuring about 3 Acres, stands cancelled. Since, the Grant is made in violation of the provisions contained under the Forest Conservations Act, 1980 and in violation of the Directions issued by this Hon'ble Court in W.P. (Civil) No. 202 / 1995.
12.09.2023	The Deputy Conservator of Forests, Chikkamangalur District, issued Notice dated. 12.09.2023, wherein it was stated that in view of the Order dated.25.05.2023, passed by the Deputy Commissioner cancelling the Grant made therein and consequently, handing over the possession of the said land in favor of the Forest Department. In

	view of the same the Respondent No.3 herein, issued the Impugned Notice dated.12.09.2023, to the Petitioner herein, asking him to Voluntarily hand over the vacant possession of the Land within a period of 15 days from the date of the Notice.
02.11.2023	The Petitioner herein, had submitted an RTI Application dated.02.11.2023, seeking information relating to the Original Grant Documents in respect of the Land in Sy. No. 621 and Old Sy. No. 357.
29.11.2023	The Tahsildar, Chikkamangalur Taluk, issued an Endorsement dated. 29.11.2023, wherein no such documents are available in the Government Records and as such the Application filed by the Petitioner herein is rejected.

The Petitioner herein, has preferred the subject Writ Petitioner seeking to Quash Order dated.25.05.2023, in M5 LAQ CR 45(A) / 2019 – 2020, passed by the Respondent No.2 herein, wherein it was held that the Grant of Land made in respect of the Lands in Sy. No. 621 and Old Sy. No. 357, situated at Byravalli Village, Avathi Hobli, Chikkamangalur Taluk, measuring about 3 Acres, stands cancelled. Since, the Grant is made in violation of the provisions contained under the Forest Conservations Act, 1980 and in violation of the Judgment rendered by this Hon'ble Court in W.P. (Civil) No. 202 / 1995. A Copy of the Impugned Order dated.25.05.2023, is annexed hereto as **ANNEXURE-A**.

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Consequently, the Deputy Conservator of Forests, Chikkamangalur District, issued Notice dated. 12.09.2023, wherein it was stated that in view of the Order dated.25.05.2023, passed by the Deputy Commissioner cancelling the Grant made therein and consequently, handing over the possession of the said land in favor of the Forest Department. In view of the same the Respondent No.3 herein, issued the Impugned Notice dated.12.09.2023, to the Petitioner's Late Father, asking him to Voluntarily hand over the vacant possession of the Land within a period of 15 days from the date of the Notice. A Copy of the Notice dated.12.09.2023, is produced hereto as **ANNEXURE-B**.

BENGALURU

DATED. 14/7/2024

Q. v

**ADVOCATE FOR PETITIONER
(GAURAV NAVEEN KUMAR THEJASVI)
(M/S SHETTY AND HEGDE ASSOCIATES)**

8

IN THE HIGH COURT OF KARNATAKA, AT BENGALURU
(ORIGINAL JURISDICTION)

WRIT PETITION NO. / 2024

BETWEEN :

Sri. K.M. Shashidhar,
S/o Late Sri. K.S. Malle Gowda,
Aged about 83 Years,
R/at Shivagange Estate,
Chikkamangalur,
Karnataka-577130
(Senior Citizen benefit not claimed)

...PETITIONER

AND

1. The State of Karnataka,
Department of Revenue,
M.S. Building,
Dr. Ambedkar Vedhi,
Bengaluru-560001
Represented by its Principal Secretary.

...RESPONDENT NO. 1

2. The Deputy Commissioner,
Chikkamangalur District,
Chikkamangalur,
Karnataka-577130.

...RESPONDENT NO. 2

3. The Deputy Conservator of Forests,
Forest Mobile Squad,
Chikkamangalur,
Karnataka-577130.

...RESPONDENT NO. 3

**MEMORANDUM OF WRIT PETITION FILED UNDER ARTICLE 226
AND 227 OF THE CONSTITUTION OF INDIA, 1950**

1. The Petitioner herein, has preferred the subject Writ Petitioner seeking to Quash Order dated.25.05.2023, in M5 LAQ CR 45(A) / 2019 – 2020, passed by the Respondent No.2 herein, wherein it was held that the Grant of Land made in respect of the Lands in Sy. No. 621 and Old Sy. No. 357,

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situated at Byravalli Village, Avathi Hobli, Chikkamangalur Taluk, measuring about 3 Acres, stands cancelled. Since, the Grant is made in violation of the provisions contained under the Forest Conservations Act, 1980 and in violation of the Judgment rendered by this Hon'ble Court in W.P. (Civil) No. 202 / 1995. A Copy of the Impugned Order dated. 25.05.2023, is annexed hereto as **ANNEXURE-A**. Consequently, the Deputy Conservator of Forests, Chikkamangalur District, issued Notice dated.12.09.2023, wherein it was stated that in view of the Order dated.25.05.2023, passed by the Deputy Commissioner cancelling the Grant made therein and consequently, handing over the possession of the said land in favor of the Forest Department. In view of the same the Respondent No.3 herein, issued the Impugned Notice dated.12.09.2023, to the Petitioner's Late Father, asking him to Voluntarily hand over the vacant possession of the Land within a period of 15 days from the date of the Notice. A Copy of the Notice dated.12.09.2023, is produced hereto as **ANNEXURE-B**.

2. The Petitioners have preferred the present Writ Petition seeking the Following Relief/Reliefs :-

i) To Issue a Writ in the nature of Certiorari or any other order, direction or appropriate Relief / Relief's to Quash Order dated.25.05.2023, in M5 LAQ CR 45 (A) / 2019 – 2020, passed by the Respondent No.2 herein. A Copy of the Order dated.25.05.2023, is produced hereto as **ANNEXURE-A**.

ii) To Issue a Writ in the nature of Certiorari or any other order, direction or appropriate Relief / Relief's to Quash Notice dated.12.09.2023, bearing No. 456 / 2023 – 24, issued by the Respondent No.3 herein. A



Copy of the Notice dated.12.09.2023, is produced hereto as
ANNEXURE-B.

- iii) Grant any such Order, Direction **AND/OR** any other Relief or Reliefs as this Hon'ble Court deems fit and necessary, in the facts and circumstances of the case in the interest of Justice.

BRIEF FACTS OF THE CASE

3. It is submitted that the Lands bearing old Survey No. 357 and New Survey No. 621, measuring 3 acres, situated at Byravalli Village, Avathi Hobli, Chikkamangalur Taluk, which were originally Granted to one Sri. K.S. Kallegowda, S/o Sri. Siddegowda, under Darkhast Grant, as per the Order dated.25.08.1947, bearing DIS D.R. No. 34 / 1947 – 1948 and SDR No.11 / 1947 – 1948, passed by the Respondent No.2 herein. Pursuant to the said grant, all revenue entries including the katha of the Schedule Property was effected in the name of Sri. K.S. Kalle Gowda, as per M.R. Entry No. 6 / 1947 – 1948.
4. It is submitted that the Record of Rights, pertaining to the Lands bearing old Survey No.357 and New Survey No.621, notes the flow of title by way of a Darkhast Grant made by the State of Karnataka through the Respondent No.2 herein, in favor of Sri. K.S. Kallegowda, S/o Sri. Siddegowda, as per the Order dated. 25.08.1947, bearing DIS D.R. No. 34 / 1947 – 1948 and SDR No.11 / 1947 – 1948. A Copy of the Record of Rights, pertaining to Survey No. 357, is annexed hereto as ANNEXURE-C.



5. The Government of Mysore vide Proceedings of the Agriculture and Forest Department dated.23.09.1959, had identified certain wrongful inclusion of Lands in the Maskalli State Forests, Chikkamangalur, Bengaluru. A Copy of the Proceedings of the Government of Karnataka dated. 23.09.1959, is produced hereto as ANNEXURE-D.
6. It is submitted that there was a family partition between Sri. K.S. Mallegowda and Sri. K.S. Kallegowda, under the Partition Deed dated. 28.05.1958, bearing Document No. 1166 / 1958 – 1959, registered at the Office of the Sub-Registrar, Chikkamangalur District. As per the Partition Deed the Petitioner's Late father Sri. K.S. Mallegowda received the lands in Survey No. 621, situated at Byravalli Village, Avathi Hobli, Chikkamangalur Taluk, measuring 3 Acres. A Copy of the Partition Deed dated.28.05.1958, is produced hereto as ANNEXURE-E.
7. The Lands in Survey No. 357, which was originally granted to Sri. K.S. Kallegowda S/o Sri. Siddegowda, was demarcated vide Phodi and Durasti dated.11.06.1960. The Lands were assigned a new Survey No. 621. It is submitted that the Tippani prepared along with the Revenue Sketch notes that the land is granted as per order bearing No. SFK No. 101 / 1946 – 1947. A Copy of the Survey Phodi and Durasti dated.11.06.1960, is annexed hereto as ANNEXURE-F.
8. It is submitted that the Index of Lands maintained by the Revenue Authorities, shows the name of the Petitioner's Late father Sri. K.S. Mallegowda, as being the owner of the Lands in Survey No. 621, which devolved to his share vide Partition Deed dated.28.05.1958, bearing



document No. 1166 / 1958 – 1959. A Copy of the Index of Lands is produced hereto as ANNEXURE-G.

9. The Government of Mysore vide Order dated. 29.01.1969, bearing No. RD 186 LGC 68, had accorded sanction for the confirmation of Grants made in respect of the lands in Survey Nos. 357, 364, and 374 of Byravalli Village, Chikkamangalur Taluk, in favor of Sri. Kalle Gowda, to an extent of 49 Acres and 35 Guntas. A Copy of the Order dated.29.01.1969, is produced hereto as ANNEXURE-H.
- 10.It is submitted that there was a Family Partition between Sri. K.S. Mallegowda and his son Sri. K.M. Shashidhara, under registered Partition Deed dated.12.06.1974, registered as Document No. 822 / 1974 – 1975, in Book – I, in the Office of the Sub-Registrar, Chikkamangalur. As per the said partition, the Schedule Property was allotted to the share of Sri. K.M. Shashidhara, as per 'B' Schedule of the said Partition Deed.
- 11.It is submitted that there was another partition of the Family Properties amongst Sri. K. M. Shashidhara, his Wife Smt. C.R. Malavika and their children that is Sri. K.S. Mahesh, Sri. K.S. Sharan and Smt. K.S. Tharini, under the Registered Partition Deed dated.10.06.2011, registered as Document No. 1363 / 2011 – 2012, in Book – I, in the Office of the Sub-Registrar, Chikkamangalur. As per the said partition, the Scheduled Property bearing Survey No. 621, was allotted to the share of Sri. K.M. Shashidhara, as per 'A' Schedule of the Partition Deed.
- 12.It is submitted that the Record of Rights dated.04.11.2023, shows the name of Sri. K.M. Shashidhara S/o Sri. K.S. Mallegowda, being in ownership and possession of Lands Survey No. 621, situated at Byravalli Village,



Avathi Hobli, Chikkamangalur Taluk, measuring 3 Acres. A Copy of the R.T.C dated. 04.11.2023, is produced hereto as ANNEXURE-J, ANNEXURE-J1 and ANNEXURE-J2.

13.It is further submitted that the Certificate of Registration dated.11.04.1975, bearing C.R.C. No. 21 / 1975 – 1976, issued by the Respondent No.2 herein, under Section 3 of the Mysore Coffee Market Expansion (Emergency) Act, 1940. The Petitioner has been registered as an owner of the Coffee Estate under the said Act. As per the said Schedule the Lands in Survey No. 357 and New Survey No.621, have been included in the Coffee Estate by the name “Shivagange Estates”. A Copy of the Certificate of Registration dated.11.04.1975, is produced hereto as ANNEXURE-K.

14.The Chief Secretary, Government of Karnataka, in W.P. (Civil) No. 202 / 1995, in I.A. Nos. 860, 863, 990, had filed an Affidavit dated.02.05.2019, wherein it is specifically stated that grants made post-1944, but pre-1980, the requisite orders for de-notification of forests have not been appropriately issued, even though lands were released for grants. However, Liberty is sought for to take necessary action in certain cases where records of grants made were not available, wherein in such categories of cases, it is necessary to verify the records and adjudicate the claim within a period of one Year. A Copy of the Affidavit dated.02.05.2019, is produced hereto as ANNEXURE-L.

15.It is submitted that the Respondent No.2 (Deputy Commissioner) herein, had conducted a Suo moto Enquiry in exercise of the powers conferred under Section 136 (3) of the Karnataka Land Revenue Act, 1964. The Respondent No. 2 herein, vide Order dated.25.05.2023, in M5 LAQ CR 45(A) / 2019 – 2020, was pleased to hold that the Grant made in respect of



the Lands in Sy. No. 621 and Old Sy. No. 357, situated at Byravalli Village, Avathi Hobli, Chikkamangalur Taluk, measuring about 3 Acres, stands cancelled. Since, the Grant is made in violation of the provisions contained under the Forest Conservations Act, 1980 and in violation of the Judgment rendered by this Hon'ble Court in W.P. (Civil) No. 202 / 1995. A Copy of the Impugned Order dated.25.05.2023, is annexed hereto as ANNEXURE-A.

16. Consequently, the Deputy Conservator of Forests, Chikkamangalur District, issued Notice dated.12.09.2023, wherein it was stated that in view of the Order dated.25.05.2023, passed by the Deputy Commissioner cancelling the Grant made therein and consequently, handing over the possession of the said land in favor of the Forest Department. In view of the same the Respondent No.3 herein, issued the Impugned Notice dated. 12.09.2023, to the Petitioner herein, asking him to Voluntarily hand over the vacant possession of the Land within a period of 15 days from the date of the Notice. A Copy of the Notice dated.12.09.2023, is produced hereto as ANNEXURE-B.

17. The Petitioner herein, had submitted an RTI Application dated.02.11.2023, seeking information relating to the Original Grant Documents in respect of the Land in Sy. No. 621 and Old Sy. No. 357. A Copy of the RTI Application dated.02.11.2023, is produced hereto as ANNEXURE-M. The Tahsildar, Chikkamangalur Taluk, issued an Endorsement dated. 29.11.2023, wherein no such documents are available in the Government Records and as such the Application filed by the Petitioner herein is rejected. A Copy of the Endorsement dated.29.11.2023, is annexed hereto as ANNEXURE-N.

Therefore, the present petition is filed on the following grounds.



GROUND

- I. The Impugned Action of the Deputy Commissioner is time barred on account of efflux of time or inordinate delay and the exercise of such Revisional Powers on account of such Inordinate Delay is prima facie Impermissible, arbitrary, bad in law and would necessarily result in miscarriage of justice :

18. It is submitted that the revenue authorities are required to exercise powers under the Karnataka Land Revenue Act, 1964 and necessarily take action whenever fraud or irregularity is made out and that prima facie such actions have to be taken within a reasonable period. Time must be reckoned reasonably, not only in order to preserve rights and advantages which the party possesses but equally to protect each party from losses he ought not to suffer. Whether an action is taken is within reasonable time must also be viewed from point of view of the party who might suffer losses. Where there is no period of limitation prescribed in statute for the exercise of such powers, action must be initiated or taken, whether Suo moto or on an application made by the parties, within reasonable time. The term "Reasonable time" has to be interpreted by this Hon'ble Court keeping in view the totality of the circumstances of each case and the purpose of the statute.

19. It is further submitted that merely because the legislation is beneficial and no limitation period is contemplated therein, the rights of the parties acquired by persons through the efflux of time crystalizes and the same cannot be ignored lightly and proceedings cannot be initiated after an unreasonable delay. It is a settled law that where the statute does not provide for a period of limitation the provisions of the statute must be



invoked within a reasonable time. If Executive actions are unfettered and were to be interpreted absolute, then no individual would be protected from the rigors of such action being arbitrarily exercised. The rights of the parties are crystalised through efflux of time and the same must be given finality. If the Revenue Authorities are allowed to exercise executive action after an inordinate delay and on as and when basis, then no individual is safe from the rigors of arbitrary exercise of powers and no rights would accrue in favour of any person.

20. In the present case, the Impugned Action of the Respondent No.2 herein, is time barred on account of delay and laches. The Respondent No.2 herein, ought not to have exercised the powers under Section 136 (3) of the Karnataka Land Revenue Act, 1964, challenging the validity of Grant Orders dated.25.08.1947, on the ground that the land in Survey No. 621 and old Survey No. 357, measuring 3 acres, was a Forest Land and as such no grant could not have been made in favor of one Sri. K.S. Kallegowda. The Respondent No.2 herein, has taken Suo Moto action after an inordinate delay of more than 70 Years from the date of the actual Grant made in favor of the Original Grantee that is one Sri. K.S. Kallegowda.

21. It is respectfully submitted that Impugned Action of the Respondent No.2 herein, cannot be sustained after an inordinate delay of more than 70 Years from the date of the Original Grant Order dated.25.08.1947. Further, the Land in question has changed hands by reasons of acquisition of rights and title under registered title documents. The Land initially granted to Sri. K.S. Kallegowda was subjected to a Family Partition vide Partition Deed dated.28.05.1958, wherein the Land in Survey No. 621, fell to the share of the Petitioner's Late father Sri. K.S. Mallegowda. Further, as per the Partition Deed dated.12.06.1974, the Schedule Property was allotted to the share of



Sri. K.M. Shashidhara. There was another partition of the Family Properties amongst Sri. K. M. Shashidhara, his Wife Smt. C.R. Malavika and their children that is Sri. K.S. Mahesh, Sri. K.S. Sharan and Smt. K.S. Tharini, under the Registered Partition Deed dated.10.06.2011, wherein the Scheduled Property, was allotted to the share of Sri. K.M. Shashidhar, as per 'A' Schedule of the Partition Deed. The Rights have been Crystalized in so far as the Petitioner is concerned. The Title in respect of the Land in Survey No. 621 has changed three times by reasons of acquisition of rights and title under registered title documents. It is submitted that Time must be reckoned reasonably, not only in order to preserve rights and advantages which the party possesses but equally to protect each party from losses he ought not to suffer.

22. The Impugned Action of the Respondent No.2 herein, is barred on account of Delay and Laches of more than 70 Years from the date of the actual Grant. The Title in respect of the said Land in Sy.No. 621 has changed many times due to the efflux of time. And as such any rights, liabilities or interest acquired by the Parties therein, over the period of 70 Year is Crystalized and the same cannot be brushed aside by initiating action on a later point of time.

II. The Revenue Authorities have no Jurisdiction to examine the validity of the Grant Orders in exercise of Powers under Section 136 (3) of the Karnataka Land Revenue Act, 1964 :

23. It is submitted that the powers of Section 136 (3) of the Karnataka Land Revenue Act, 1964 would confer revisional jurisdiction on the Deputy Commissioner in the matters strictly arising under Sections 127 and 129 of the Act. Further, Section 127 deals with the preparation of the Record of



Rights and Section 128 deals with the contingencies which may occasion correction of the entries in the record of rights. Sections 129 envisages corrections of the entries in the Record of Rights in the event of the occurring of the contingencies envisaged therein under Section 128 of the Act. From the perusal of the aforesaid provisions, it is respectfully submitted that the Deputy Commissioner is brought into the picture by the said provisions of Sections 132 and 135 of the Act only for the purposes of giving effect to the order or decree of the civil court, by effecting changes of the entries in the Record of Rights in accordance therewith and Section 136 envisages exercise of the powers by the Deputy Commissioner in his appellate and revisional jurisdiction. It is pointed out that by necessary implication if such entries in the Record of Rights incorporated as a result of the orders of the Deputy Commissioner or a competent authority superior to him, then such entries cannot be subjected to corrections in exercise of the powers U/s 136 (3) of the Act. Once, the entries in the Record of Rights have attained finality, then thereafter the entries were sacrosanct and could not be changed except in accordance with law.

24. It is submitted that the scope of revisional powers conferred on the Deputy Commissioner is limited strictly to matters arising under Sections 127 and 129 of the Act. In other words, the power of revision can be exercised by the Deputy Commissioner in limited circumstances, where the orders of the Assistant Commissioner on appeal under Section 136 (2) have been adjudicated upon and the aggrieved party can challenge the order before the Deputy Commissioner U/s 136 (3) of the Act. The powers under Section 136 (3) of the Act are exercisable only for the purpose of ensuring that the records are based on the acquisition of the title or right by a party. Further, any claim as to the validity of the grant made or violations of any of the conditions of the grant made thereunder is amenable to challenge



before the Competent Authority and the competent authority therein is required to hold an enquiry in terms of the provisions under the Karnataka Land Grant Rules, 1969. The Grant of Land made cannot be altered or varied to the prejudice of any party or persons claiming under the original Grantee, in proceedings under Section 136 (3) of the Act.

25. In the present case at hand, it is the Respondent No.2 (Deputy Commissioner) herein, had conducted a Suo moto Enquiry in exercise of the powers conferred under Section 136 (3) of the Karnataka Land Revenue Act, 1964. The Respondent No. 2 herein, vide Order dated.25.05.2023, in M5 LAQ CR 45(A) / 2019 – 2020, was pleased to hold that the Grant made in respect of the Lands in Sy. No. 621 and Old Sy. No. 357, situated at Byravalli Village, Avathi Hobli, Chikkamangalur Taluk, measuring about 3 Acres, stands cancelled. Since, the Grant is made in violation of the provisions contained under the Forest Conservations Act, 1980 and in violation of the Judgment rendered by this Hon'ble Court in W.P. (Civil) No. 202 / 1995.

26. It is submitted that, from the perusal of the Impugned Order there is no reference to show that the Deputy Commissioner has called, for any documents or report from the Office of the Tahsildar and examined them. The minimum and basic duty of examining the records available in the Office of the Tahsildar is not discharged by the Deputy Commissioner herein. Further, if the land is Forest land or otherwise, as held by the Deputy Commissioner in the Impugned Order, then the proceedings ought to have been initiated for the cancelation of the grant following the Land Grant Rules, 1969. In the proceedings under Section 136 (3) of the said act, the scope of the enquiry is rather limited. Assuming that the Grant Order is not valid having regard to the fact that the land in question is forest land or that



the grantee has violated the conditions of the grant order, the concerned revenue authorities are required to hold an enquiry under the Grant rules, 1969. The Grant of the land cannot be varied to the prejudice of any party in the proceedings under Section 136 of the said act.

27. It is submitted that any order passed without authority of law or if the order is passed by an Officer not empowered under the provisions of the Karnataka Land Revenue Act, 1964, then the order is deemed to be nullity or "Non-Est" in the eyes of Law. Any Order passed without Authority or Jurisdiction is farce and arbitrary. The Order Impugned cannot be enforced in the eyes of the law, since, the same has no legs to stand.

28. In conclusion, it is contended that the scope of enquiry is limited and exercisable only for effecting the entry in the revenue records in respect of a land consequent upon acquisition of right or title by any party. The Revenue authorities have no jurisdiction to examine the validity of grant orders under Section 136 (3) of the Act. Even if the authorities were to initiate action under the land grant rules, 1969, the same would result in miscarriage of justice and impermissible considering the totality of the circumstances at hand. In the present case, considering the inordinate delay and Laches of more than 70 Years from the date of the actual Grant. The Title in respect of the said Land in Sy.No. 621 has changed many times due to the efflux of time. And as such any rights, liabilities or interest acquired by the Parties therein, over the period of 70 Year is Crystallized and the same cannot be brushed aside by initiating action on a later point of time.

29. The Petitioner herein, craves the leave of this Hon'ble Court to produce additional Documents and urge additional grounds, if any, at the time of hearing of this Petition.



30. The Petitioner herein, submits that no other similar relief is sought before this Hon'ble Court or any other court on the same cause of action.

GROUND FOR INTERIM PRAYER

31. The contents of the main petition may be read as part and parcel of this application; repetition of the same has been avoided for the sake of brevity.

32. The petitioner has a strong and good case on merits and the petitioner is confident of demonstrating before this Hon'ble Court that the Impugned Order and Notice, is without jurisdiction and as such is demonstratable as clear case of abuse of the process of the law.

33. That this being so, in the meanwhile, during the pendency of the main petition, the Impugned Orders in so far as it relates to the Petitioner is concerned is likely to cause immense damage and hence this Interim prayer. No prejudice or damage would be caused to the respondents if this Interim prayer is allowed.

DECLARATION

- *The Petitioner submits that no other similar relief is sought before this Hon'ble Court or any other court on the same cause of action.*
- *The petitioner has not filed any other Petition before this Hon'ble Court seeking the very same relief which has been sought for in Present Lis.*



PRAYER

WHEREFORE, the Petitioners most humbly prays that this Hon'ble Court may be pleased to Issue the Following :-

- i) To Issue a Writ in the nature of Certiorari or any other order, direction or appropriate Relief / Relief's to Quash Order dated.25.05.2023, in M5 LAQ CR 45 (A) / 2019 – 2020, passed by the Respondent No.2 herein. A Copy of the Order dated.25.05.2023, is produced hereto as **ANNEXURE-A**.
- ii) To Issue a Writ in the nature of Certiorari or any other order, direction or appropriate Relief / Relief's to Quash Notice dated.12.09.2023, bearing No. 456 / 2023 – 24, issued by the Respondent No.3 herein. A Copy of the Notice dated.12.09.2023, is produced hereto as **ANNEXURE-B**.
- iii) Grant any such Order, Direction **AND/OR** any other Relief or Reliefs as this Hon'ble Court deems fit and necessary, in the facts and circumstances of the case in the interest of Justice.

INTERIM PRAYER

Pending disposal of the above Writ Petition, the Petitioner above named most respectfully prays that this Hon'ble Court be pleased to Stay the Operation of the Following as against the Petitioner :-

- 1) The Impugned Order dated.25.05.2023, in M5 LAQ CR 45 (A) / 2019 – 2020, passed by the Respondent No.2 herein and produced hereto as per **ANNEXURE-A**, in the interest of Justice and Equity.



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- 2) The Impugned Notice dated.12.09.2023, issued by the Respondent No.3 herein. A Copy of the Notice dated.12.09.2023, bearing No. 456 / 2023 – 24, is produced hereto as **ANNEXURE-B**, in the interest of Justice and Equity.

BENGALURU

DATED.



ADVOCATE FOR PETITIONER

(GAURAV NAVEEN KUMAR THEJASVI)

(M/S SHETTY AND HEGDE ASSOCIATES)

Address for Service:

Sri. Gaurav Naveen Kumar Thejasvi;

Sri. Deepak Bannikatti;

Associates,

M/s SHETTY AND HEGDE ASSOCIATES,

No. 27/9, Sankey Road,

Opposite to Embassy Golf Links Apartment,

Abshot Layout, Vasanth Nagar,

Bengaluru-560052.

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**IN THE HIGH COURT OF KARNATAKA, AT BENGALURU
(ORIGINAL JURISDICTION)**

WRIT PETITION NO.

/ 2024

BETWEEN :

Sri. K.M. Shashidhar

...PETITIONER

AND

The State of Karnataka and Others

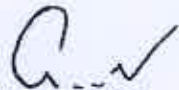
...RESPONDENTS

VERIFYING AFFIDAVIT

I, Sri. K.M. Shashidhar, S/o Late Sri. K.S. Malle Gowda, Aged about 83 Years,
R/at Shivagange Estate, Chikkamangalur, Karnataka - 577130, do hereby
solemnly affirm and state on oath as follows:

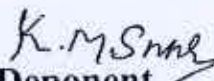
1. I am the Petitioner in the above Petition and I am well conversant with the facts of the case. Hence, I am swearing to this affidavit on my behalf.
2. I state that the averments made in Paras 1 to 35 of the present Writ Petition are true and correct to the best of my knowledge, Information and Belief.
3. I State that the ANNEXURES - A to N, are copies of the Original.

Identified by me,


Advocate

Bengaluru

Dated. 14/3/2024


Deponent

ಜಿಲ್ಲಾಧಿಕಾರಿಗಳವರ ನ್ಯಾಯಾಲಯ, ಚಿಕ್ಕಮಗಳೂರು ಜಿಲ್ಲೆ, ಚಿಕ್ಕಮಗಳೂರು

ಸಂಖ್ಯೆ: ಎಂ5 ಎಲ್ ಎ ಕ್ಯೂ ಸಿಆರ್ 45(A)/2019-20

ದಿನಾಂಕ: 25-09-2023

ANNEXURE - A

ಉಪಸ್ಥಿತರು: ಕೆ.ಎನ್.ರಮೇಶ್, ಬಾ ಆ ಸೇ.,
ಜಿಲ್ಲಾಧಿಕಾರಿ
ಚಿಕ್ಕಮಗಳೂರು ಜಿಲ್ಲೆ,
ಚಿಕ್ಕಮಗಳೂರು

ವಾದಿ
ಉಪವಿಭಾಗಾಧಿಕಾರಿ,
ಚಿಕ್ಕಮಗಳೂರು ಉಪವಿಭಾಗ,
ಚಿಕ್ಕಮಗಳೂರು.

ವಿರುದ್ಧ

ಪ್ರತಿವಾದಿ

ಕೆ.ಎಂ.ಶಶಿಧರ್,
ಬ್ಯಾರವಳ್ಳಿ ಗ್ರಾಮ, ಚಿಕ್ಕಮಗಳೂರು

ಪೀಠಿಕೆ:

1. ಸರ್ಕಾರದ ಅಧಿಸೂಚನೆ AF 257-FT 38-44-02 ದಿನಾಂಕ: 22-11-1944 ಮೈಸೂರು ಗೆಜೆಟ್ ಪತ್ರ ದಿನಾಂಕ: 7-12-1944 ರಲ್ಲಿ ಮಸಗಲಿ ಮೀಸಲು ಅರಣ್ಯಕ್ಕೆ ಭೂಮಿ ಕಾಯ್ದಿರಿಸಿ ಘೋಷಿಸಲಾಗಿದೆ. ಈ ಅಧಿಸೂಚನೆಯಂತೆ ಈ ಕೆಳಕಂಡ ಜಮೀನು ಮಸಗಲಿ ಮೀಸಲು ಅರಣ್ಯ ವ್ಯಾಪ್ತಿಯೊಳಗೆ ಸೇರ್ಪಡೆಗೊಂಡಿರುತ್ತದೆ.

ತಾಲ್ಲೂಕು	ಗ್ರಾಮ	ಸ.ನಂ	ವಿಸ್ತೀರ್ಣ	ಆರ್.ಟಿ.ಸಿ ಯಂತೆ ಹಾಲಿ ಖಾತೆದಾರರ ಹೆಸರು
ಚಿಕ್ಕಮಗಳೂರು	ಬ್ಯಾರವಳ್ಳಿ	ಹಳೆ ಸಂ 357 ಹೊಸ ನಂ 621	3-00	ಕೆ.ಎಂ.ಶಶಿಧರ್ ಬಿನ್ ಕೆ.ಎಸ್.ಮಲ್ಲೇಗೌಡ

2. ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದ ಮುಂದೆ WP(Civil) No.202/1995 ಪ್ರಕರಣದಲ್ಲಿ ಅರಣ್ಯ ಜಮೀನಿನಲ್ಲಿರುವ ಒತ್ತುವರಿಗಳು ಮತ್ತು ಅನಧಿಕೃತ ಮಂಜೂರಾತಿ ಪ್ರಕರಣಗಳಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಒತ್ತುವರಿ ತೆರವುಗೊಳಿಸುವ ಬಗ್ಗೆ ವಿಚಾರಣೆ ನಡೆಯುತ್ತಿದ್ದು, ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದ 20-03-2017, 07-04-2017, 18-08-2017, 08-09-2017, 16-07-2018 ಆದೇಶಗಳು ಮತ್ತು CEC ವರದಿ 26-12-2018 ಮತ್ತು ಇವುಗಳ ಅನುಪಾಲನಾ ಅಭಿಪ್ರಾಯವನ್ನು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯಕ್ಕೆ ಮಾನ್ಯ ಮುಖ್ಯ ಕಾರ್ಯದರ್ಶಿಗಳು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.
3. ಈ ಸಂಬಂಧದಲ್ಲಿ ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದ W.P. (Civil) ನಂ 202/1995 ಐ ಎ ನಂ 860, 863 ಮತ್ತು 990 2018ರಂತೆ ನೀಡಿರುವ ಆದೇಶಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಸರ್ಕಾರದ ಮಾನ್ಯ ಮುಖ್ಯ ಕಾರ್ಯದರ್ಶಿಗಳು, ಕರ್ನಾಟಕ ಸರ್ಕಾರ ಇವರು ದಿನಾಂಕ: 02.05.2019ರಂದು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯಕ್ಕೆ ಈ ಕೆಳಗಿನಂತೆ ಪ್ರಮಾಣ ಪತ್ರ ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.

"Further there are 30 (Thirty) cases of grants {(Earlier 31 (Thirty One)) covering an extent of 193 acres 25 guntas, for which, details of grants date are not known and hence, it was decided by Karnataka State Government to treat these cases on par with above 76 (Seventy Six) cases and accordingly, the process of cancellation of grants and procedure for eviction has been initiated by the Forest Department, after which, they shall also be provided with rehabilitation package. These encroachment cases are in different stages of proceedings with the Deputy Conservator of Forests, Chikkamagaluru. The process has been delayed due to delay in the joint survey and the individual cases are being pursued further. Compliance of the outcome of cases will be submitted to this Hon'ble Court on completion of the entire procedure. As the process is of the quasi judicial nature, it is humbly prayed that this Hon'ble Court be pleased to grant one year time to hear these cases and pass appropriate orders."

ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದ ಮುಂದೆ WP(Civil) 202/1995 ಪ್ರಕರಣದಲ್ಲಿ ಮಾನ್ಯ ಮುಖ್ಯ ಕಾರ್ಯದರ್ಶಿಯವರು, ಕರ್ನಾಟಕ ಸರ್ಕಾರ ರವರು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯಕ್ಕೆ ಸಲ್ಲಿಸಿರುವ ವರದಿ ಪ್ರಕಾರ ಮೇಲಿನ 30 ಪ್ರಕರಣಗಳಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಶಂದಾಯ ದಾಖಲೆಗಳಲ್ಲಿ ಹೆಸರು ನಮೂದಿರುವ ಖಾತೆದಾರರಿಗೆ ನೋಟೀಸ್ ನೀಡಿ ವಿಚಾರಣೆ ನಡೆಸಲು ಕ್ರಮ ಕೈಗೊಳ್ಳಲಾಗಿರುತ್ತದೆ.

4. ಮೇಲ್ಕಂಡ ಜಮೀನಿನ ಮಂಜೂರಾತಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಉಪ ವಿಭಾಗಾಧಿಕಾರಿ, ಚಿಕ್ಕಮಗಳೂರು ರವರು ತಮ್ಮ ಪ್ರಸ್ತಾವನೆ ಸಂಖ್ಯೆ ಎಲ್.ಎನ್.ಡಿ.ಸಿ.ಆರ್. 45/2019-20 ದಿನಾಂಕ 09/09/2019ರಂತೆ ವರದಿ ಸಲ್ಲಿಸಿದ್ದು, ಈ



ವರದಿಯನ್ನು ಈ ಜಮೀನಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಮೂಲ ಮಂಜೂರಾತಿ ಕಡತ ಲಭ್ಯವಿಲ್ಲದೆ ಇರುವ ಕಾರಣ ಮೂಲ ದಾಖಲೆಗಳ ನೈಜತೆಗಳ ಬಗ್ಗೆ ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ಅಧಿನಿಯಮ 1964ರ ಕಲಂ 136(3)ರಡಿ ಪರಿಶೀಲಿಸಿ ಕ್ರಮ ವಹಿಸಲು ಪ್ರಸ್ತಾವಿಸಿರುತ್ತಾರೆ.

5. ಇದರಂತೆ ಪ್ರಕರಣ ಸಂಖ್ಯೆ ಎಂ.ಎಲ್.ಎ.ಕ್ಯೂ.ಸಿ.ಆರ್ 45(A)/2019-20 ಎಂದು ಕಡತ ತಯಾರಿಸಿ ಇದಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಜಮೀನಿನ ವಿವರ ಈ ಕೆಳಕಂಡಂತೆ ಇದೆ.

ತಾಲ್ಲೂಕು	ಗ್ರಾಮ	ಸ.ನಂ	ವಿಸ್ತೀರ್ಣ	ಆರ್.ಟಿ.ಸಿ ಯಂತೆ ಹಾಲಿ ಖಾತೆದಾರರ ಹೆಸರು
ಚಿಕ್ಕಮಗಳೂರು	ಬ್ಯಾರವಳ್ಳಿ	ಹಳೆ ಸ ನಂ 357 ಹೊಸ ನಂ 621	3-00	ಕೆ.ಎಂ.ಶಶಿಧರ ಬಿನ್ ಕೆ.ಎಸ್.ಮಲ್ಲೇಗೌಡ

6. CEC ಯು ಘನ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯಕ್ಕೆ ಸಲ್ಲಿಸಿರುವ ವರದಿಯನ್ನು ಅನುಸರಿಸಿ ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ಅಧಿನಿಯಮ 1964ರ ನಿಯಮ ಹಾಗೂ ಕರ್ನಾಟಕ ಭೂಕಂದಾಯ ಅಧಿನಿಯಮ 1964ರ ಕಲಂ 136(3)ರಡಿ ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು ಚಿಕ್ಕಮಗಳೂರು ರವರ ವರದಿಯನ್ನು ಆಧರಿಸಿ ಸ್ವಯಂ ಪ್ರೇರಿತವಾಗಿ ಪ್ರಕರಣವನ್ನು ಈ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ವಿಚಾರಣೆಗೆ ತೆಗೆದುಕೊಂಡು ವಿಚಾರಣಾ ನೋಟೀಸನ್ನು ಎದುರುದಾರರಿಗೆ ಜಾರಿಗೊಳಿಸಿ ದಿನಾಂಕ: 20-12-2019 ರಿಂದ 21-02-2022 ರವರೆಗೆ ವಿವಿಧ ದಿನಾಂಕಗಳಲ್ಲಿ ವಿಚಾರಣೆ ನಡೆಸಲಾಗಿದೆ.
7. ವಿಚಾರಣಾ ಕಾಲದಲ್ಲಿ ಎದುರುದಾರರ ಪರ ಪಕ್ಷೀಯ ಹಾಜರಾಗಿ ಪ್ರಕರಣ ಪ್ರತಿನಿಧಿಸಿರುತ್ತಾರೆ ಮತ್ತು ಈ ಕೆಳಕಂಡಂತೆ ತಮ್ಮ ಲಿಖಿತ ವಾದವನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.
- 1) ಚಿಕ್ಕಮಗಳೂರು ತಾಲ್ಲೂಕು, ಆವತಿ ಹೋಬಳಿ ಬ್ಯಾರವಳ್ಳಿ ಗ್ರಾಮದ ಸ ನಂ 357 (ಹೊಸ ನಂ 621) ರಲ್ಲಿನ 3.00 ಎಕರೆ ಜಮೀನು ಪ್ರತಿವಾದಿಗಳ ಸ್ವಾಧೀನ ಹಾಗೂ ಅನುಭವದಲ್ಲಿರುತ್ತದೆ. ಸದರಿ ಜಮೀನು ಹಾಗೂ ಸ ನಂ 357, 364 ಮತ್ತು 374ರಲ್ಲಿನ ಜಮೀನುಗಳು 1969ನೇ ಸಾಲಿನಲ್ಲಿ ಶ್ರೀ ಕೆ.ಎಸ್.ಕಲ್ಲೇಗೌಡ ಬಿನ್ ಸಿದ್ದೇಗೌಡ ಎಂಬುವವರಿಗೆ ಮಂಜೂರಾಗಿ ಸಾ.ಚಿ ನಂ 11/1968-69ರಂತೆ ಸಾಗುವಳಿ ಚೀಟಿ ನೀಡಲಾಗಿರುತ್ತದೆ.
- 2) ಅನಂತರ ಸದರಿ ಶ್ರೀ ಕೆ.ಎಸ್.ಕಲ್ಲೇಗೌಡ ರವರ ಕುಟುಂಬದಲ್ಲಿ ಮಾಡಿಕೊಂಡ ವಿಭಾಗದಂತೆ ಸ ನಂ 357 (ಹೊಸ ನಂ 621) ರಲ್ಲಿನ 3.00 ಎಕರೆ ಜಮೀನು ಶ್ರೀ ಕೆ.ಎಸ್.ಮಲ್ಲೇಗೌಡ ರವರ ಭಾಗಕ್ಕೆ ಬಂದಿರುತ್ತದೆ. ಅನಂತರ ದಿನಾಂಕ: 12.06.1974ರಂದು ಶ್ರೀ ಕೆ.ಎಸ್.ಮಲ್ಲೇಗೌಡ ಮತ್ತು ಅವರ ಮಗ ಶ್ರೀ ಕೆ.ಎಸ್.ಶಶಿಧರ ಬಿನ್ ಕೆ.ಎಸ್.ಮಲ್ಲೇಗೌಡ ರವರು ಮಾಡಿಕೊಂಡ ವಿಭಾಗ ಪತ್ರದಂತೆ ಪ್ರಶ್ನಿತ ಜಮೀನು ಶ್ರೀ ಕೆ.ಎಂ.ಶಶಿಧರರವರ ಹಿನ್ನೆಗೆ ಬಂದಿರುತ್ತದೆ. ತದನಂತರ ಕೆ.ಎಸ್.ಶಶಿಧರ ಮತ್ತು ಅವರ ಕುಟುಂಬದಲ್ಲಿ ಮತ್ತೊಂದು ವಿಭಾಗವನ್ನು ಎಸ್ ಆರ್ ನಂ 1363/11-12 ದಿನಾಂಕ: 10.06.2011ರಂತೆ ಮಾಡಿಕೊಂಡ ಸಂದರ್ಭದಲ್ಲಿ ಪ್ರಶ್ನಿತ ಜಮೀನು ಕೆ.ಎಂ.ಶಶಿಧರ ರವರ ಹಿನ್ನೆಗೆ ದಾಖಲಾತಿ, ಸುಮಾರು 45-50 ವರ್ಷದಿಂದ ಸದರಿ ಶ್ರೀ ಕೆ.ಎಂ.ಶಶಿಧರ ಮತ್ತು ಅವರ ಕುಟುಂಬದವರು ಸ್ವಾಧೀನದಲ್ಲಿರುತ್ತಾರೆ.

ಪ್ರತಿವಾದಿಗಳು ಸಲ್ಲಿಸಿರುವ ಹಕ್ಕು ದಾಖಲೆಗಳಿಂದ ಪ್ರಶ್ನಿತ ಜಮೀನು ಮಂಜೂರಿ ಜಮೀನೆಂದು ದೃಢಪಡುತ್ತದೆ. ಕಂದಾಯಾಧಿಕಾರಿಗಳು ಹಕ್ಕು ದಾಖಲೆಗಳನ್ನು ಸರಿಯಾಗಿ ಸಂರಕ್ಷಿಸಿಡದೆ ಸದರಿ ಜಮೀನು ಅರಣ್ಯ ಜಮೀನೆಂದು ವಾದಿಸುತ್ತಿರುವುದು ನ್ಯಾಯಸಮ್ಮತವಲ್ಲ. ಪ್ರಶ್ನಿತ ಜಮೀನನ್ನು ಅಭಿವೃದ್ಧಿಪಡಿಸಲು ಪ್ರತಿವಾದಿಗಳು ಮತ್ತು ಅವರ ತಂದೆ ಲಕ್ಷಾಂತರ ರೂಪಾಯಿಗಳನ್ನು ವ್ಯಯ ಮಾಡಿ ಕಾಫಿ ಸಾಗುವಳಿ ಮಾಡುತ್ತಾ ಬಂದಿರುತ್ತಾರೆ. ಪ್ರಶ್ನಿತ ಜಮೀನಿನಲ್ಲಿ ಪ್ರತಿವಾದಿಗಳು ಮತ್ತು ಅವರ ವಾರಸುದಾರರು ಸುಮಾರು 40-50 ವರ್ಷದಿಂದ ಸ್ವಾಧೀನ ಹೊಂದಿ ಸಾಗುವಳಿ ಮಾಡುತ್ತಿರುವುದರಿಂದ ಪ್ರಕರಣಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ವಿಚಾರಣೆಯನ್ನು ಕೈಬಿಡಬೇಕಾಗಿ ಕೋರಿರುತ್ತಾರೆ.

ವಾದ ಅಲಿಸಿದೆ ಮತ್ತು ಕಡತ ದಾಖಲೆಗಳನ್ನು ಪರಿಶೀಲಿಸಲಾಯಿತು. ಈ ಕೆಳಕಂಡ ಪ್ರಶ್ನೆ ಉದ್ಭವಿಸುತ್ತದೆ.

ಪ್ರಶ್ನೆ:

ಅರಣ್ಯ ಜಮೀನನ್ನು ಅಕ್ರಮವಾಗಿ ಮಂಜೂರಾತಿ ಮಾಡಲಾಗಿದೆಯೇ ? ಅಥವಾ ಜಮೀನನ್ನು ಅರಣ್ಯ ಎಂದು ಘೋಷಿಸುವ ಮೊದಲೇ ಮಂಜೂರಾಗಿದ್ದು, ಖಾಸಗಿ/ಹಿಡುವಳಿ ಜಮೀನಾಗಿತ್ತೆ ?

ಉತ್ತರ:

- 1) ಪ್ರಶ್ನಿತ ಜಮೀನನ್ನು 1944ರಲ್ಲೇ ಅರಣ್ಯ ಜಮೀನೆಂದು ಸರ್ಕಾರಿ ಅಧಿಸೂಚನೆ AF 257-FT 38-44-02 ಪ್ರಕಾರ ಘೋಷಿಸಲಾಗಿರುತ್ತದೆ. ಆದರೆ ಎದುರುದಾರರು ಹಾಜರುಪಡಿಸಿರುವ ದಾಖಲೆಗಳಿಲ್ಲಾ 1959ರ ನಂತರದ ಹಕ್ಕು ಪ್ರಾಪ್ತವಾಗಿರುವುದಾಗಿದೆ. ಅದುದರಿಂದ ಈ ರೀತಿಯ ಹಕ್ಕು/ಖಾತೆ ವರ್ಗಾವಣೆಗಳು ಕಾನೂನುಬಾಹಿರವಾಗಿರುತ್ತದೆ.



2) ಮೈಸೂರು ಸರ್ಕಾರದ ಅಧಿಸೂಚನೆ ಎಫ್ 2257 ಎಫ್ ಟಿ 38-44-2 ದಿನಾಂಕ: 22-11-1944 ರಂತೆ ಪ್ರಸ್ತುತ ಜಮೀನನ್ನು ಮಸಗಲಿ ಮೀಸಲು ಅರಣ್ಯವೆಂದು ಘೋಷಿಸಿ ಲಾಗಿರುತ್ತದೆ.
ಕರ್ನಾಟಕ ಅರಣ್ಯ ಕಾಯ್ದೆ 1963 ರ ಕಲಂ 23 ರ ಪ್ರಕಾರ

"Sec 23: Reserved Forest constituted previous to passing of this Act. - (1) Any forest which has been notified as a State Forest under the Mysore Forest Act, 1900, or as a reserved forest under the Indian Forest Act 1927, the Madras Forest Act, 1882 or the Hyderabad Forest Act, prior to the date on which this Act comes into force, shall be a reserved forest under this Act"

ಆದುದರಿಂದ ಪ್ರಶ್ನಿತ ಜಮೀನು ಅರಣ್ಯ ಜಮೀನಾಗಿರುತ್ತದೆ. ಮುಂದುವರೆದು,

3) Mysore Forest Regulation 1900 ಮತ್ತು ಕರ್ನಾಟಕ ಅರಣ್ಯ ಕಾಯ್ದೆ 1963 ರ ಕಲಂ 20 ಈ ರೀತಿ ಹೇಳುತ್ತದೆ.

Sec.20: No right acquired over reserved forest, except as provided. - No right of any description shall be acquired in or over a reserved forest, except by succession or under a grant or contract in writing made by or on behalf of the State Government or some person in whom such right or the power to create such right was vested when the notification under section 17 was published.

ಸರ್ಕಾರದ 22-11-1944 ಅಧಿಸೂಚನೆಯ ದಿನಾಂಕದಿಂದ ಇಲ್ಲಿಯವರೆಗೂ ಪ್ರಶ್ನಿತ ಜಮೀನು ಅರಣ್ಯ ಜಮೀನಾಗಿರುವುದು ಸ್ಪಷ್ಟವಾಗಿರುತ್ತದೆ.

4) ಮಂಜೂರಿದಾರರಿಗೆ ಸ್ವಾಭಾವಿಕ ನ್ಯಾಯತತ್ವದಡಿ ಅಹವಾಲು ಸಲ್ಲಿಸಲು ಅವಕಾಶ ನೀಡಲಾಗಿದ್ದು, ಇದರಂತೆ ಸದರಿ ಮಂಜೂರಿಯು ದಿನಾಂಕ: 22.11.1944ರ ಪೂರ್ವದಲ್ಲಿ ಆದ ಕಾನೂನುಬದ್ಧ ಮಂಜೂರಾತಿ ಅಥವಾ ಕ್ರಮಬದ್ಧ ಮಂಜೂರಾತಿ ಎಂಬ ಬಗ್ಗೆ ಅರ್ಜಿದಾರರು ಯಾವುದೇ ದಾಖಲೆ ಸಲ್ಲಿಸಿ ದೃಢಪಡಿಸಲು ವಿಫಲರಾಗಿರುತ್ತಾರೆ. ವಿಚಾರಣೆ ಸಮಯದಲ್ಲಿ ಮೇಲ್ಕನವಿದಾರರು ಈ ಕೆಳಕಂಡ ದಾಖಲೆಗಳನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.

1. 1969ನೇ ಸಾಲಿನಲ್ಲಿ ಪ್ರಶ್ನಿತ ಜಮೀನು ಶ್ರೀ ಕೆ.ಎನ್.ಕಲ್ಲೇಗೌಡ ಬಿನ್ ಸಿದ್ದೇಗೌಡ ರವರಿಗೆ ಮಂಜೂರಾಗಿ ಸಾಗುವಳಿ ಚೀಟಿ 11/1968-69ರ ಜೆರಾಕ್ಸ್ ಪ್ರತಿ

2. ಕುಟುಂಬದಲ್ಲಾದ SR 1363/11-12 ದಿನಾಂಕ: 10-06-2011ರ ವಿಭಾಗ ಪತ್ರದಂತೆ ಮೇಲ್ಕನವಿದಾರರಿಗೆ ಈ ಜಮೀನಿನ ಮೇಲೆ ಹಕ್ಕು ಪ್ರಾಪ್ತವಾಗಿರುವುದು.

ಈ ದಾಖಲೆಗಳನ್ನು ಪರಿಶೀಲಿಸಿದಾಗ, 1944 ರಲ್ಲೇ ಅರಣ್ಯ ಜಮೀನೆಂದು ಅಧಿಸೂಚಿಸಲಾಗಿರುವ ಜಮೀನನ್ನು ನಿಯಮಬಾಹಿರವಾಗಿ ಮಂಜೂರು ಮಾಡಲಾಗಿದೆ ಎಂದು ಸ್ಪಷ್ಟವಾಗಿದೆ. ಪ್ರಶ್ನಿತ ಜಮೀನು 22-11-1944 ಅಧಿಸೂಚನೆ ಮತ್ತು ಕರ್ನಾಟಕ ಅರಣ್ಯ ಕಾಯ್ದೆ 1963 ಕಲಂ 23 ರಂತೆ 1944ರಿಂದಲೇ ಅರಣ್ಯ ಜಮೀನಾಗಿರುವುದು ಕಂಡು ಬರುತ್ತದೆ. ಕರ್ನಾಟಕ ಅರಣ್ಯ ಕಾಯ್ದೆ 1963 ರ ಕಲಂ 20 ಮತ್ತು Mysore Forest Regulation 1900 ರ ಕಲಂ 20 ರಂತೆ ಸದರಿ ಜಮೀನನ್ನು ಮಂಜೂರು ಮಾಡಲು ಅವಕಾಶವಿರುವುದಿಲ್ಲ.

5) ಪ್ರಧಾನ ಮುಖ್ಯ ಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿಗಳು ರವರು ತಮ್ಮ 11-12-2020ರ ಪತ್ರ ದಲ್ಲಿ ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯವು ನೀಡಿರುವ ನಿರ್ದೇಶನಗಳನ್ನು ತಿಳಿಸುತ್ತಾ, ಇದರ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಪ್ರಕರಣಗಳ ವಿಚಾರಣೆ ಮಾಡಬೇಕೆಂದು ಕೋರಿರುತ್ತಾರೆ. ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದ ತೀರ್ಪನ್ನು ಈ ಕೆಳಕಂಡಂತೆ ಉಲ್ಲೇಖಿಸಿರುತ್ತಾರೆ.



The Hon'ble Supreme Court of India, in para 10 (Page 2435 of AIR) of its judgement dated 8th July 1996, in The State of Uttar Pradesh vs. Deputy Director of Consolidation & Ors. (AIR 1996 SC 2432), has held that

"the Forest Settlement Officer has the powers as a Civil Court and his order is subject to appeal and finally revision before the State Government. The Act is complete Code in itself and contains elaborate procedure for declaring and notifying a Reserved Forest. Once a notification under Section 20 of the Act declaring a land as Reserved Forest is published, then all the rights in the said land claimed by any person come to an end and are no longer available. The notification is binding in the same way as a decree from the Civil Court." The Hon'ble Supreme Court, dealing with the said encroachment of Tatkola Reserved Forest, in its orders dated 29th October 2002 in I.A. Nos. 276 with I.A. Nos. 413, 437, 453 and 454 in W.P. (Civil) No.202 of 1995 in T.N.Godavarman Thirumulkpad v Union of India & Ors. [2002 (9) SCALE 81] has held that:

"Once the forest was established in the year 1936, all the other rights therein came to an end; the determination of the forest boundaries by the Survey of India is final and binding on all; an area which falls within the said forest is forest land and cannot be encroached upon; any person who has unauthorisedly grabbed land in the Reserved Forest may be summarily evicted by the Forest Officer; it is quite clear that all encroachers into the Tatkola forest have to be evicted; it is no doubt true that according to Section 64A show cause notice has to be issued. But that can only be with a view to enable the person to whom notice is issued to show that his land does not fall within the boundaries of the forest as drawn up by the Survey of India. If the land is

identified as falling within the Survey of India boundary then there could be no other defence open to the person concerned and the state would be under an obligation and duty to evict the encroachers, by force if necessary;.....

ಮುಂದುವರೆದು, ಪ್ರಧಾನ ಮುಖ್ಯ ಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿ (ಅರಣ್ಯ ಪಡೆ ಮುಖ್ಯಸ್ಥರು), ಬೆಂಗಳೂರು ರವರ ಪತ್ರ ಸಂ:ಅ.ಪ್ರ.ಮು.ಅ.ಸಂ/ಕಾಯೋ/ಎ5/ಡಿಎನ್/ಸಿಆರ್-45/2017-18 ದಿನಾಂಕ: 11-12-2020 ರ ಪತ್ರದಲ್ಲಿ ಈ ಕೆಳಗಿನಂತೆ ತಿಳಿಸಿರುತ್ತಾರೆ.

The Maskali State Forest notification was published in the Mysore Gazette dated the 7th December 1944 and all the rights in the said lands of 5,642-14 acres in Chikmagalur taluk and district, claimed by any person came to an end with effect from the 7th December 1944 and are no longer available. The Maskali State Forest notification is binding in the same way as a decree from the Civil Court ಎಂದು ಅಭಿಪ್ರಾಯ ಪಟ್ಟಿರುತ್ತದೆ.

- 6) ಪ್ರತಿವಾದಿಗಳು ಪ್ರಕರಣದಲ್ಲಿ ಪ್ರತಿಪಾದಿಸಿರುವ ಅಂಶಗಳು ಮೇಲ್ಕಂಡ ಜಮೀನು ಪ್ರತಿವಾದಿಗಳಿಗೆ ಹಕ್ಕು ದಾಖಲೆ ಇಂಡೀಕರಣವಾಗಿರುವ ಅಂಶಗಳನ್ನು ಮಾತ್ರ ತಿಳಿಸಿರುತ್ತಾರೆ. ಆದರೆ ಪ್ರಸ್ತಾವಿತ ಜಮೀನು ಪ್ರತಿವಾದಿಗಳಿಗೆ ಮೂಲತಃ ಸರ್ಕಾರದಿಂದ ಮಂಜೂರಿಯಾದ ಬಗ್ಗೆ ಮಂಜೂರಿ ದಾಖಲೆಗಳಾದ ಮಂಜೂರಿ ಆದೇಶ, ಸಾಗುವಳಿ ಚೀಟಿ ದಾಖಲೆ, ಮಂಜೂರಿ ಸಂಬಂಧ ಸರ್ಕಾರಕ್ಕೆ ಹಣ ಪಾವತಿಸಿದ ದಾಖಲೆಗಳನ್ನು ಹಾಜರುಪಡಿಸುವಲ್ಲಿ ಪ್ರತಿವಾದಿಗಳು ವಿಫಲರಾಗಿರುತ್ತಾರೆ. ಈ ಅಂಶಗಳು ಸ್ಪಷ್ಟವಾಗದೆ ಇರುವ ಕಾರಣ ಮೇಲ್ಕಂಡ ಜಮೀನು ಸರ್ಕಾರದಿಂದ ಮಂಜೂರಾಗದೆ ಖಾತೆ ದಾಖಲಾಗಿರುವುದು ಹಾಗೂ ಈ



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ಪೂರ್ವದಲ್ಲಿಯೇ ಮೈಸೂರು ಸರ್ಕಾರದ ಅಧಿಸೂಚನೆ ಎಎಫ್ 2257 ಎಫ್ ಟಿ 38-44-2 ದಿನಾಂಕ: 22-11-1944 ರಂತೆ ಮಸಗಲಿ ಮೀಸಲು ಅರಣ್ಯವೆಂದು ಘೋಷಿಸಲಾಗಿರುವುದು ಸ್ಪಷ್ಟವಾಗುತ್ತದೆ. ಪಹಣಿ ದಾಖಲಿಸುವ ಪೂರ್ವದಲ್ಲಿಯೇ ಈ ಜಮೀನು ಅರಣ್ಯ ಜಮೀನಾಗಿದ್ದು, ಮೂಲತಃ ಅರಣ್ಯ ಇಲಾಖೆಗೆ ಸೇರಿದ್ದಾಗಿರುತ್ತದೆ ಎಂದು, ಈ ಜಮೀನು ಸರ್ಕಾರದಿಂದ ಪ್ರತಿವಾದಿಗಳಿಗೆ ಮಂಜೂರಿಯಾಗಿರುವುದಿಲ್ಲವೆಂದು ಅಭಿಪ್ರಾಯಕ್ಕೆ ಬರಲಾಗಿದೆ.

- 7) ಸರ್ಕಾರದ 22-11-1944 ಅಧಿಸೂಚನೆಯಂತೆ ಪ್ರಶ್ನಿತ ಜಮೀನು ಅರಣ್ಯ ಜಮೀನಾಗಿರುವುದು ರಿಂದ ಮತ್ತು ಮೈಸೂರು ಅರಣ್ಯ ಕಾಯ್ದೆ 1900, ಕರ್ನಾಟಕ ಅರಣ್ಯ ಕಾಯ್ದೆ 1963 ಮತ್ತು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯವು ವಿವಿಧ ಪ್ರಕರಣದಲ್ಲಿ ನೀಡಿರುವ ತೀರ್ಪಿನ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಈ ಕೆಳಕಂಡ ಆದೇಶ ಹೊರಡಿಸಲಾಗಿದೆ

ಆದೇಶ

ಮೇಲ್ಕಂಡ ಅಂಶಗಳನ್ನು ಕಡತ ದಾಖಲೆಗಳೊಂದಿಗೆ ಅವಲೋಕಿಸಿ ಕರ್ನಾಟಕ ಭೂಕಂದಾಯ ಕಾಯ್ದೆ ಕಲಂ 1964ರ 136(3) ರಡಿ ಜಿಲ್ಲಾಧಿಕಾರಿಗೆ ದತ್ತವಾದ ಅಧಿಕಾರವನ್ನು ಚಲಾಯಿಸಿ ಚಿಕ್ಕಮಗಳೂರು ತಾಲ್ಲೂಕು ಆವತಿ ಹೋಬಳಿ ಬ್ಯಾರವಳ್ಳಿ ಗ್ರಾಮದ ಹೊಸ ಸ ನಂ 621 (ಹಳೆ ಸ ನಂ 357) ರಲ್ಲಿ ಶ್ರೀ ಕೆ.ಎಸ್.ಕಲ್ಲೇಗೌಡ ರವರಿಗೆ 1968-69ನೇ ಸಾಲಿನಲ್ಲಿ ಆದ ಮಂಜೂರಾತಿಯು ಅರಣ್ಯ ಸಂರಕ್ಷಣಾ ಕಾಯ್ದೆ 1980 ಮತ್ತು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದ WP (Civil) 202/1995ರ ನಿರ್ದೇಶನದ ವಿರುದ್ಧವಿರುವುದಾಗಿ ಕಂಡು ಬಂದ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಸದರಿ ಮಂಜೂರಾತಿ ರದ್ದುಪಡಿಸಿ ಸದರಿ ಜಮೀನನ್ನು ಮಸಗಲಿ ಮೀಸಲು ಅರಣ್ಯವೆಂದು ಘೋಷಿಸಿ, ಅರಣ್ಯ ಇಲಾಖೆಯ ವಶಕ್ಕೆ ನೀಡಲಾಗಿದೆ. ಸದರಿ ಭೂಮಿಯನ್ನು ಮಸಗಲಿ ಮೀಸಲು ಅರಣ್ಯ ಎಂಬುದಾಗಿ ಹಕ್ಕು ದಾಖಲಿಸಲು ತಹಸೀಲ್ದಾರ್, ಚಿಕ್ಕಮಗಳೂರು ತಾಲ್ಲೂಕು ರವರಿಗೆ ನಿರ್ದೇಶನ ನೀಡಲಾಗಿದೆ. ಅನುಗುಣವಾಗಿ ಭೂಮಿ ತಂತ್ರಾಂಶದಲ್ಲಿ ಹಕ್ಕು ವರ್ಗಾವಣೆ ಶ್ರಮವಹಿಸಲು ಸೂಚಿಸಿದೆ.

ಈ ಆದೇಶವನ್ನು ದಿನಾಂಕ: 25-05-2023 ರಂದು ನನ್ನ ಸಹಿ ಹಾಗೂ ಮೊಹರಿನೊಂದಿಗೆ ಹೊರಡಿಸಲಾಗಿದೆ.



(ಕೆ.ಎನ್.ರಮೇಶ್) ಬಾ.ಆ.ಸೇ.,
ಜಿಲ್ಲಾಧಿಕಾರಿ,
ಚಿಕ್ಕಮಗಳೂರು ಜಿಲ್ಲೆ,
ಚಿಕ್ಕಮಗಳೂರು.

“ದೃಢೀಕೃತ ಪ್ರತಿ”

[Signature]
ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ವರದಾಗಿ
ಚಿಕ್ಕಮಗಳೂರು ಜಿಲ್ಲೆ
ಚಿಕ್ಕಮಗಳೂರು



ಕರ್ನಾಟಕ ಆರಣ್ಯ ಇಲಾಖೆ

ವಲಯ ಅಧಿಕಾರಿಗಳ ಕಛೇರಿ, ಮುನ್ಸೀಬ್ ಕ್ಷೇತ್ರದ ಪಾಲಯ, ಮಲ್ಲಂದೂರು, 577 130

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ಸಂಖ್ಯೆ:ಆಆಮುನ್ಸೀಬ್/ 456/2023-24

ದಿನಾಂಕ: 12-09-2023

"ನೋಟಿಸ್"

ವಿಷಯ: ಚಿಕ್ಕಮಗಳೂರು ಜಿಲ್ಲಾ, ಮುನ್ಸೀಬ್ ಕ್ಷೇತ್ರದ ಆರಣ್ಯ ಪ್ರದೇಶದಲ್ಲಿ ಅನಧಿಕೃತವಾಗಿರುವ ಸ್ವಾಧೀನವಾರಂವು ತೆರವುಗೊಳಿಸುವ ಕುರಿತು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯಕ್ಕೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ ಮೇರೆಗೆ ಕೇಂದ್ರ ಅಧಿಕಾರಿಗಳ ಸಮಿತಿಯು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯಕ್ಕೆ ಸಲ್ಲಿಸಿದ ವರದಿಯನ್ನು ಆಗಸ್ಟ್ ತಿಂಸು ಲಿಸುವ ಕುರಿತು.

- ಉಲ್ಲೇಖ: 1 ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ದಾಖಲಾಗಿರುವ ಐ.ಆರ್.ಎಂ. ಸಂಖ್ಯೆ:202/1995 ರಲ್ಲಿನ ಐ.ಎಂ. 02.990/ಗೆ ಡಬ್ಬು 860 ಮತ್ತು 863ರ ಏಕೀಕರಣದಲ್ಲಿ ದಿನಾಂಕ:20-03-2017, 07-04-2017, 18-08-2017, 08-03-2017 16-07-2018 ಮತ್ತು 08.09.2017ರ ಆದೇಶ
- 2 ಕೇಂದ್ರ ಅಧಿಕಾರಕ್ಕೆ ಸಮಿತಿಯ ನ್ಯಾಯಾಲಯಕ್ಕೆ ಸಲ್ಲಿಸುವ ವರದಿ ದಿನಾಂಕ:03.10.2019
- 3 ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ನ್ಯಾಯಾಲಯ, ಚಿಕ್ಕಮಗಳೂರು ಜಿಲ್ಲೆ, ಚಿಕ್ಕಮಗಳೂರುರವರ ಕಛೇರಿ ಪತ್ರ ಸಂಖ್ಯೆ: ಎಂಎಲ್‌ಎಕ್ಯೂ/ಆರ್-52(ಎ)2019-20 ದಿನಾಂಕ:01-04-2023
- 4 ಉಪ ಆರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿಗಳು, ಚಿಕ್ಕಮಗಳೂರು ವಿಭಾಗ, ಚಿಕ್ಕಮಗಳೂರು ರವರ ಕಛೇರಿ ಪತ್ರ ಸಂಖ್ಯೆ:ಎ4/ಪ್ಯಾಂಪ್/ಆರ್-80/2019-20 ದಿನಾಂಕ:01-07-2023

ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ, ಉಲ್ಲೇಖ (1)ರ ಆದೇಶದಂತೆ ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯವು ಮುನ್ಸೀಬ್ ಕ್ಷೇತ್ರದ ಆರಣ್ಯ ಪ್ರದೇಶದಲ್ಲಿರುವ ಅತಿಕ್ರಮಗಳನ್ನು ತೆರವುಗೊಳಿಸುವ ಆದೇಶ ನೀಡುತ್ತದೆ.

ಉಲ್ಲೇಖ(2)ರ ವರದಿಯಲ್ಲಿ ಕೇಂದ್ರ ಅಧಿಕಾರಕ್ಕೆ ಸಮಿತಿಯು 1980ರ ನಂತರದ ಮಂಜೂರಾತಿಗಳು ಹಾಗೂ ಲಭ್ಯವಿಲ್ಲದ ಪ್ರಕರಣಗಳ ಮಂಜೂರಾತಿಗಳನ್ನು ನುರಿಸಿ, ರದ್ದು ಪಡಿಸುವ ಕುರಿತು ವರದಿಯನ್ನು ನ್ಯಾಯಾಲಯಕ್ಕೆ ಸಲ್ಲಿಸಿದ ಮೇರೆಗೆ ಸದರಿ ವರದಿಯನ್ನು ಅನುಸರಿಸಿ ಕರ್ನಾಟಕ ಭೂಕಂಪಾಯ ಅಧಿನಿಯಮ 1964ರ ನಿಯಮ ಹಾಗೂ ಕರ್ನಾಟಕ ಭೂಕಂಪಾಯ ಅಧಿನಿಯಮ 1964ರ ಕಲಂ(36)(3)ರಡಿ ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಚಿಕ್ಕಮಗಳೂರುರವರ ವರದಿಯನ್ನು ಆಧರಿಸಿ ಸ್ವಯಂ ಪ್ರೇರಿತವಾಗಿ ಪ್ರಕರಣವನ್ನು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ನ್ಯಾಯಾಲಯ, ಚಿಕ್ಕಮಗಳೂರು ಜಿಲ್ಲೆ, ರವರು ವಿಚಾರಣೆಗೆ ತೆಗೆದುಕೊಂಡು ವಿಚಾರಣಾ ನೋಟಿಸ್‌ನ್ನು ಮಾತೇದಾರರಿಗೆ ಜಾರಿಗೊಳಿಸಿ ದಿನಾಂಕ:20-12-2019 ರಿಂದ 21-02-2022ರವರೆಗೆ ವಿವಿಧ ದಿನಾಂಕಗಳಲ್ಲಿ ವಿಚಾರಣೆ ನಡೆಸಿ ಉಲ್ಲೇಖ(3)ರ ಪತ್ರದಲ್ಲಿ ಶ್ರೀ.ಕೆ.ಎಂ.ಕಿ.ಧರ ದಿನ್ ಕೆ.ಎಸ್.ಮಲ್ಲಿಗೌಡ ಅವರಿಗೆ ಹೋಬಳಿ, ಬ್ಯಾರವಳ್ಳಿ ಗ್ರಾಮ, ಹಳೆ ಸ.ನಂ.357(ಹೊಸ ಸ.ನಂ.621) 3-00 ಎ-ಗು ಎಕ್ಸೀಕೂಟ್ ಹಕ್ಕು ದಾಖಲಿಸಿರುವುದನ್ನು ಈ ತಕ್ಷಣದಿಂದ ಜಾರಿಗೆ ಬರುವಂತೆ ರದ್ದು ಪಡಿಸಿ ದಿನಾಂಕ: 25-05-2023 ರಂದು ಆದೇಶಿಸಿದೆ. ಸದರಿ ಭೂಮಿಯನ್ನು ಮುನ್ಸೀಬ್ ಕ್ಷೇತ್ರದ ಆರಣ್ಯ ಎಂಬುವುದಾಗಿ ಹಕ್ಕು ದಾಖಲಿಸಲು ತಹಶೀಲ್ದಾರ್, ಚಿಕ್ಕಮಗಳೂರು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳಿಗೆ ನಿರ್ದೇಶನ ನೀಡಲಾಗಿದೆ. ಹಾಗೂ ಆರಣ್ಯ ಇಲಾಖೆಯವರು ಸದರಿ ಭೂಮಿಯನ್ನು ಧರಕ್ಕೆ ಪಡೆಯುವಂತೆ ಆದೇಶಿಸಿದ್ದು, ಸದರಿ ಆದೇಶದನ್ವಯ ಉಲ್ಲೇಖ(4) ಮತ್ತು (5)ರ ಪತ್ರದಲ್ಲಿ ನಿಯಮಾನುಸಾರ ತೆರವುಗೊಳಿಸಿ ಇಲಾಖಾ ವರಕ್ಕೆ ಪಡೆದು ವರದಿ ಸಲ್ಲಿಸಲು ಸೂಚಿಸಲಾಗಿರುತ್ತದೆ.

ಅದರಂತೆ ಶ್ರೀ.ಕೆ.ಎಂ.ಶಶಿಧರ ಬಿನ್ ಕೆ.ಎಸ್.ಮಲ್ಲೇಗೌಡ ಅವರಿಗೆ ಹೋಬಳಿ, ಬ್ಯಾರವಳ್ಳಿ ಗ್ರಾಮ, ಸ.ನಂ.357(ಹೊಸ ಸ.ನಂ.621) 3-00 ಎ-ಗು ಅರಣ್ಯ ಭೂಮಿಯನ್ನು ಮೇಲ್ಕಂಡ ಆದೇಶಗಳಂತೆ 15 ದಿನಗಳೊಳಗೆ ಸ್ವ ಇಚ್ಛೆಯಿಂದ ತೆರವುಗೊಳಿಸಿ, ಅರಣ್ಯ ಇಲಾಖಾ ವಶಕ್ಕೆ ಬಿಟ್ಟುಕೊಡುವುದು. ಒಂದು ವೇಳೆ ಇಲಾಖೆಯಿಂದ ತೆರವುಗೊಳಿಸಬೇಕಾದ ಸಂದರ್ಭ ಒದಗಿ ಬಂದಲ್ಲಿ ಸದರಿ ವೆಚ್ಚ ನೀವೇ ಭರಿಸಬೇಕಾಗಿರುತ್ತದೆ. ಆದ್ದರಿಂದ ಉಲ್ಲೇಖ(3)ರ ಆದೇಶದನ್ವಯ ನೀವು ಮಂಜೂರಾತಿಯನ್ನು ರದ್ದು ಪಡಿಸಿರುವ ಪ್ರದೇಶವನ್ನು ತೆರವುಗೊಳಿಸುವ ಮೂಲಕ ಸ್ವಾಯಂಶಾಸನದ ಆದೇಶವನ್ನು ಪಾಲಿಸಬೇಕೆಂದು ಈ ಮೂಲಕ ತಿಳಿಸಿದೆ.

ಇವರಿಗೆ

ಶ್ರೀ.ಕೆ.ಎಂ.ಶಶಿಧರ ಬಿನ್ ಕೆ.ಎಸ್.ಮಲ್ಲೇಗೌಡ
ಬ್ಯಾರವಳ್ಳಿ ಗ್ರಾಮ.

ಸಹಿ/-

ವಲಯ ಅರಣ್ಯಾಧಿಕಾರಿ
ಮುತ್ತೋಡ ವಲಯ ಮಲ್ಲಂದೂರು

1. ಪ್ರತಿಯನ್ನು ಮಾಹಿತಿಗಾಗಿ ಗೌರವಗಳೊಂದಿಗೆ ಉಪ ಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿಗಳು, ಚಿಕ್ಕಮಗಳೂರು ವಿಭಾಗ, ಚಿಕ್ಕಮಗಳೂರುರವರಿಗೆ ಸಲ್ಲಿಸಿದೆ.
2. ಪ್ರತಿಯನ್ನು ಮಾಹಿತಿಗಾಗಿ ಗೌರವಗಳೊಂದಿಗೆ ಸಹಾಯಕ ಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿಗಳು, ಹಾಗೂ ಉ.ಅ.ಸಂರವರತಾಂತ್ರಿಕ ಸಹಾಯಕರು ಚಿಕ್ಕಮಗಳೂರು ಉಪ ವಿಭಾಗ, ಚಿಕ್ಕಮಗಳೂರುರವರಿಗೆ ಸಲ್ಲಿಸಿದೆ.
3. ಪ್ರತಿಯನ್ನು ಮಾಹಿತಿಗಾಗಿ ಉಪ ವಲಯ ಅರಣ್ಯಾಧಿಕಾರಿ ಅವರಿಗೆ ಶಾಖೆರವರಿಗೆ ರವಾನಿಸುತ್ತಾ, ಸದರಿ ನೋಟಿಸನ್ನು ಶ್ರೀ.ಕೆ.ಎಂ.ಶಶಿಧರ ಬಿನ್ ಕೆ.ಎಸ್.ಮಲ್ಲೇಗೌಡ, ಬ್ಯಾರವಳ್ಳಿ ಗ್ರಾಮ, ರವರಿಗೆ ಜಾರಿಗೊಳಿಸಿ ಸ್ವೀಕೃತಿಯೊಂದಿಗೆ ಈ ಕಛೇರಿಗೆ ಸಲ್ಲಿಸಲು ಸೂಚಿಸಿದೆ. ಮೇಲ್ಕಂಡ ಪ್ರಕರಣದ ಒತ್ತುವರಿದಾರರಿಗೆ ಸಲ್ಲಿಸಿದೆ.

ವಲಯ ಅರಣ್ಯಾಧಿಕಾರಿ
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ಉಪ ಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿ
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10-10

Serial no
2020/2020



32 RECORD OF RIGHTS - ರಹಿತ ಆವಿಶ್ಕಾರ

Amended

Names of parties Concerned and
nature of rights
ಹೆಸರು ಹಾಗೂ ಸ್ವಾಧೀನ ಸ್ವಭಾವ

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ಗೌ.ವಿ. ಶಿಕ್ಷಣ ಇಲಾಖೆ, ೨೦೧೬-೧೭, ಕಾಂಪು ವೃತ್ತ, ಶಿವಮೊಗ್ಗ
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985 ರ 8 ನೇ ಸಂಖ್ಯೆಯಲ್ಲಿ ಇವುಗಳ ವಿವರ 980 ರಿಂದ 984 ರ ವರೆಗೆ

ನೋಂದಣಿ 1) ದೊರೆಯು 2) ಪಾಲಕರು 3) ಪಾಲಕರ ಪತ್ನಿ

4) ಪಾಲಕರ ಪತ್ನಿ ಇವುಗಳ ವಿವರ 985 ರಿಂದ 989 ರ ವರೆಗೆ

989 ರಿಂದ 994 ರ ವರೆಗೆ ಇವುಗಳ ವಿವರ 990 ರಿಂದ 994 ರ ವರೆಗೆ

994 ರಿಂದ 999 ರ ವರೆಗೆ ಇವುಗಳ ವಿವರ 995 ರಿಂದ 999 ರ ವರೆಗೆ

999 ರಿಂದ 1004 ರ ವರೆಗೆ ಇವುಗಳ ವಿವರ 1000 ರಿಂದ 1004 ರ ವರೆಗೆ

1004 ರಿಂದ 1009 ರ ವರೆಗೆ ಇವುಗಳ ವಿವರ 1005 ರಿಂದ 1009 ರ ವರೆಗೆ

1009 ರಿಂದ 1014 ರ ವರೆಗೆ ಇವುಗಳ ವಿವರ 1010 ರಿಂದ 1014 ರ ವರೆಗೆ

1014 ರಿಂದ 1019 ರ ವರೆಗೆ ಇವುಗಳ ವಿವರ 1015 ರಿಂದ 1019 ರ ವರೆಗೆ

1019 ರಿಂದ 1024 ರ ವರೆಗೆ ಇವುಗಳ ವಿವರ 1020 ರಿಂದ 1024 ರ ವರೆಗೆ

1024 ರಿಂದ 1029 ರ ವರೆಗೆ ಇವುಗಳ ವಿವರ 1025 ರಿಂದ 1029 ರ ವರೆಗೆ

1029 ರಿಂದ 1034 ರ ವರೆಗೆ ಇವುಗಳ ವಿವರ 1030 ರಿಂದ 1034 ರ ವರೆಗೆ

1034 ರಿಂದ 1039 ರ ವರೆಗೆ ಇವುಗಳ ವಿವರ 1035 ರಿಂದ 1039 ರ ವರೆಗೆ

1039 ರಿಂದ 1044 ರ ವರೆಗೆ ಇವುಗಳ ವಿವರ 1040 ರಿಂದ 1044 ರ ವರೆಗೆ

1044 ರಿಂದ 1049 ರ ವರೆಗೆ ಇವುಗಳ ವಿವರ 1045 ರಿಂದ 1049 ರ ವರೆಗೆ



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1) ಕರ್ನಾಟಕ ಮಹಾ 2) ನವೋದಯ 3) ಸಿಂಹಲಯ 4) ಕು

379 ರೊ

ಸಾಮಾನ್ಯ 256 ಕವಿ ಸಂಖ್ಯೆ 2000 ರಿಂದ ಮೇಲೆ ಸಂಖ್ಯೆ

403 ರೊ

ಇವರಿಂದ ಸಂಖ್ಯೆ ಮೇಲೆ ಸಂಖ್ಯೆ 256 ರಿಂದ ಮೇಲೆ ಸಂಖ್ಯೆ

31-5-44

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43-44

ಕರ್ನಾಟಕ ಮಹಾ 256 ಕವಿ ಸಂಖ್ಯೆ 2000 ರಿಂದ ಮೇಲೆ ಸಂಖ್ಯೆ

1031

ಸಂಖ್ಯೆ ಮೇಲೆ ಸಂಖ್ಯೆ 256 ರಿಂದ ಮೇಲೆ ಸಂಖ್ಯೆ

44-45

ಕರ್ನಾಟಕ ಮಹಾ 256 ಕವಿ ಸಂಖ್ಯೆ 2000 ರಿಂದ ಮೇಲೆ ಸಂಖ್ಯೆ

376

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44-45

ಕರ್ನಾಟಕ ಮಹಾ 256 ಕವಿ ಸಂಖ್ಯೆ 2000 ರಿಂದ ಮೇಲೆ ಸಂಖ್ಯೆ

ಕರ್ನಾಟಕ ಮಹಾ 256 ಕವಿ ಸಂಖ್ಯೆ 2000 ರಿಂದ ಮೇಲೆ ಸಂಖ್ಯೆ

1944-45

1945-46

1946-47

ಕರ್ನಾಟಕ ಮಹಾ 256 ಕವಿ ಸಂಖ್ಯೆ 2000 ರಿಂದ ಮೇಲೆ ಸಂಖ್ಯೆ

1947-48

1948-49

ಕರ್ನಾಟಕ ಮಹಾ 256 ಕವಿ ಸಂಖ್ಯೆ 2000 ರಿಂದ ಮೇಲೆ ಸಂಖ್ಯೆ

49-50 ಸಂಖ್ಯೆ ಮೇಲೆ ಸಂಖ್ಯೆ 256 ರಿಂದ ಮೇಲೆ ಸಂಖ್ಯೆ

ಇವರಿಂದ ಸಂಖ್ಯೆ ಮೇಲೆ ಸಂಖ್ಯೆ 256 ರಿಂದ ಮೇಲೆ ಸಂಖ್ಯೆ

ಕರ್ನಾಟಕ ಮಹಾ 256 ಕವಿ ಸಂಖ್ಯೆ 2000 ರಿಂದ ಮೇಲೆ ಸಂಖ್ಯೆ



1032 H. S. ಕೆಲೆ ಸಂಖ್ಯೆ 577 24-45 ಸ್ಥಳೀಯ

ನಂ. 125/1944-45 ಸ್ಥಳೀಯ ಸಂಖ್ಯೆ 577

1944-45 ಸ. 6 ನಂ. 627/44-45 24-3-45

ಸ್ಥಳೀಯ ಸಂಖ್ಯೆ 577 ಸ್ಥಳೀಯ ಸಂಖ್ಯೆ 577

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1065 ಸರ್ಕಾರದಿಂದ Mr. M. S. ಶೆಟ್ಟಿ ಸಾರ್ ಜನ್ಮ ದಾಖಲೆ

ಲೆ. ಸ. 7. 64/44-45 Chit No 45/45-46 ನೇ ಪರಿಶೋಧನೆ

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ಪ್ರಾ. ಮೇರಿ S.A.O. ಪ್ರಾ. ಮೇರಿ M. S. S.D.R. 71

ದಾ. 28-12-45 ನೇ ಪ್ರಾ. ಮೇರಿ ಕಾ. 45/46

ಶ್ರೀ ಶಿವಕುಮಾರ

1945-46

1946-47

1947-48

ಪ್ರಾ. ಮೇರಿ ಕಾ. 45/46

1948-49

1949-50

50-51

ಪ್ರಾ. ಮೇರಿ ಕಾ. 45/46

1) ಸರ್ಕಾರದಿಂದ ಕಾ. 45/46 ನೇ ಪರಿಶೋಧನೆ

2) ಸರ್ಕಾರದಿಂದ ಕಾ. 45/46 ನೇ ಪರಿಶೋಧನೆ



- Page 10 -

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57-10146-47 (Chas. 10/1/46-47) (Chas. 10/1/46-47)

34/4748

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১৯৬৬ সালের ১২/১২/৬৬ তারিখে ১/১২/৬৬

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১৯০৬ চন্দ্র কান্ত দত্ত

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சென்னை 26-6-2020

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See 200. 45 c. 102 to 272

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388 401 329
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Page one to eleven only

1) Copy applied by = Sri K.S. Hally Gonda

2) Copy applied on = 14-6-1951

3) Copy ready on = 20-6-1951

4) Copy delivered on = 26-6-1951

5) Come I am = Hally Gonda

6) Compared by = Hally Gonda

7) Copying fee = 3-00

8) Comparing fee = 0-12



"Extra"
Hally Gonda
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'ಯಾಭಾ ನಕಲು'

ತಹಸೀಲ್ದಾರ್ ರವರ ಪರವಾಗಿ
ಚಿಕ್ಕಮಗಳೂರು ತಾಲ್ಲೂಕು

RECORDS OF RIGHTS ರೆಕಾರ್ಡ್ಸ್ ಆಫ್ ರೈಟ್ಸ್ (ಪ್ರಮೀನು ಹಕ್ಕಿನ ದಾಖಲೆ ರಿಜಿಸ್ಟರ್)

1	2	3	4	5	6
Serial No. ಸಂಖ್ಯೆ ನಂ.	Name of Parties concerned and nature of Right ಸಂಭವಿಸಿದ ಪಕ್ಷರು ಮತ್ತು ಹಕ್ಕಿನ ಸ್ವಭಾವ	Survey No and Sub-division ಸಂಖ್ಯೆ ಮತ್ತು ಸಬ್ ಡಿವಿಷನ್	Remarks & Notes ಪರಿಶೀಲನೆ ಮತ್ತು ವಿವರ	Reference of mutation Register ಮುಖಾಂತರ ರಿಜಿಸ್ಟರ್ ದಾಖಲೆ	Reference of inheritance Register ಉತ್ತರಾಂತರ ರಿಜಿಸ್ಟರ್ ದಾಖಲೆ
386	ಬಿ. ಎ. ಸುಬ್ಬರಾವ್ ಹಾ- ಬೆಂಗಳೂರು ನಗರ	296			
512	ಸುಬ್ಬರಾವ್	357			
881	ಬಿ. ಎ. ಸುಬ್ಬರಾವ್				
1098	ಸುಬ್ಬರಾವ್ ಹಾ- ಬೆಂಗಳೂರು ನಗರ S.P. No. 101/46-47 Chit No. 97/47-48 S. No. 101/46-47 Chit No. 97/47-48 S. No. 101/46-47 Chit No. 97/47-48	357			
2259	I ಸುಬ್ಬರಾವ್ ಹಾ- ಬೆಂಗಳೂರು ನಗರ II ಸುಬ್ಬರಾವ್ ಹಾ- ಬೆಂಗಳೂರು ನಗರ S. No. 101/46-47 Chit No. 97/47-48	393-371 374 329 365 376 372 409 357/1 P 403 366 367 401 40 368 369 372 361 385 386 395			

Page 550 2/2/20

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ಇದರ ಷೆಡ್ಯೂಲ್‌ಗಳೂವೆ

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RECORDS OF RIGHTS

Serial No. 1	Name of Parties concerned and nature of Right 2	Survey No and Sub-division Number affected 3	Remarks & Notes 4	Reference of Mutation Register 5	Reference of Inheritance Register 6
580	ಸಹಕಾರಿ -	374			
531	ಸಹಕಾರಿ	375			
582	ಸಹಕಾರಿ	376			
10317 1052	ರಾಜಾಧಿಪತಿ: ಸಹಕಾರಿ				
10318	ಸಹಕಾರಿ: ಸಹಕಾರಿ				
10319	101/46-47 ರಾಜಾಧಿಪತಿ: ಸಹಕಾರಿ				
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36/5/58 {P.T.O}

46

73 K.S. Suresh, K.S. P. R. Suresh, Suresh Suresh K. Suresh

1315 K.S. Suresh, K.S. P. R. Suresh, Suresh Suresh K. Suresh

2317 K.S. Suresh, K.S. P. R. Suresh, Suresh Suresh K. Suresh

2427 An extent of 9.21 acres has been sanctioned by the Deputy Commissioner vide order no. H6 dated 16/6/67 to Sri K.M. Sharanathi s/o Mallyappa for coffee cultivation of 3000 375 of Syamashan on lease basis Temporarily

2428 An extent of 10.00 acres has been sanctioned by the Deputy Commissioner vide order no. H6 dated 16/6/67 to Sri K.M. Sharanathi s/o Mallyappa for coffee cultivation of 3000 375 of Syamashan on lease basis Temporarily

2557 An extent of 9.21 acres has been sanctioned by the Deputy Commissioner vide order no. H6 dated 16/6/67 to Sri K.M. Sharanathi s/o Mallyappa for coffee cultivation of 3000 375 of Syamashan on lease basis Temporarily

2558 An extent of 9.21 acres has been sanctioned by the Deputy Commissioner vide order no. H6 dated 16/6/67 to Sri K.M. Sharanathi s/o Mallyappa for coffee cultivation of 3000 375 of Syamashan on lease basis Temporarily

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Annex - D

48

DOCUMENT

Demotification

Proceedings of the Government of Mysore:

Sub: Wrong inclusion of certain Hivavali lands resumed survey numbers and certain assessed coffee lands in Maskali State Forest - Chikmagalur District.

Agriculture and Forest Departments:

Order No. AFD 59/DST 57 dated, Bangalore 23rd September 1959

Read: 1. Letter No. B3.4.36/57, dated 16-5-1959 of the Chief Conservator of forests in Mysore, Bangalore.

2. Letter No. B3.4.36/57 dated 16.7.1959 of the Chief Conservator of forests in Mysore, Bangalore;

ORDER: It was represented that certain Hivavali lands and assessed survey numbers of Byaruvally village of Chikmagalur Taluk have been included in the Maskali State Forest and requested that these be released to the Revenue Department.

The matter was enquired into and it was found that well wooded areas in Survey numbers 173/240, 343/374 and 396 taken over for the constitution of the Maskali State Forest are all under coffee crop, that private residences have been built up in the areas, schools constructed and roads formed. It is also reported that some of these lands were released prior to the constitution of the State Forest and some others viz survey numbers 159/240, 442/357, 113/364, 439/374, 366/366, 137/345, 440/376, 141/173 and 135/343 have been ordered to be released after the constitution of the State forest by the Revenue Department, but without reference to the Forest Department.

In view of encroachments and disposals of lands for cultivation by the Revenue Department within the Maskali state Forest limits and also in view of the fact that the D. Line of the State Forest was not originally cut, Government is pleased to direct that these areas should be excluded from the State Forest and the D. Line realigned liberating Survey No. 345 of Byaruvally village as an enclosure within the forest.

The conservator of forests, working Plans and Development Circle, Bangalore should take immediate steps for the re-alignment and marking of the D. Line of Maskali State Forest excluding the areas already disposed off by the Revenue Authorities and those encroached by ryots.

The Chief Conservator of forests in Mysore, Bangalore should submit draft deforestation notification in this behalf early.

By order and in the name of the
Governor of Mysore,

Sd/- S.A. Hansen,
Deputy Secretary to the Government,
Agriculture and Forest Departments.

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1. $\log_{10} 2 \approx 0.3010$
2. $\log_{10} 3 \approx 0.4771$
3. $\log_{10} 4 \approx 0.6021$
4. $\log_{10} 5 \approx 0.6990$
5. $\log_{10} 6 \approx 0.7782$
6. $\log_{10} 7 \approx 0.8451$
7. $\log_{10} 8 \approx 0.9031$
8. $\log_{10} 9 \approx 0.9542$
9. $\log_{10} 10 \approx 1.0000$
10. $\log_{10} 11 \approx 1.0414$
11. $\log_{10} 12 \approx 1.0792$
12. $\log_{10} 13 \approx 1.1139$
13. $\log_{10} 14 \approx 1.1461$
14. $\log_{10} 15 \approx 1.1761$
15. $\log_{10} 16 \approx 1.2041$
16. $\log_{10} 17 \approx 1.2304$
17. $\log_{10} 18 \approx 1.2553$
18. $\log_{10} 19 \approx 1.2791$
19. $\log_{10} 20 \approx 1.3010$
20. $\log_{10} 21 \approx 1.3222$
21. $\log_{10} 22 \approx 1.3424$
22. $\log_{10} 23 \approx 1.3617$
23. $\log_{10} 24 \approx 1.3802$
24. $\log_{10} 25 \approx 1.3979$
25. $\log_{10} 26 \approx 1.4150$
26. $\log_{10} 27 \approx 1.4314$
27. $\log_{10} 28 \approx 1.4472$
28. $\log_{10} 29 \approx 1.4624$
29. $\log_{10} 30 \approx 1.4771$
30. $\log_{10} 31 \approx 1.4914$
31. $\log_{10} 32 \approx 1.5051$
32. $\log_{10} 33 \approx 1.5185$
33. $\log_{10} 34 \approx 1.5315$
34. $\log_{10} 35 \approx 1.5441$
35. $\log_{10} 36 \approx 1.5564$
36. $\log_{10} 37 \approx 1.5682$
37. $\log_{10} 38 \approx 1.5799$
38. $\log_{10} 39 \approx 1.5911$
39. $\log_{10} 40 \approx 1.6021$
40. $\log_{10} 41 \approx 1.6128$
41. $\log_{10} 42 \approx 1.6231$
42. $\log_{10} 43 \approx 1.6335$
43. $\log_{10} 44 \approx 1.6438$
44. $\log_{10} 45 \approx 1.6532$
45. $\log_{10} 46 \approx 1.6626$
46. $\log_{10} 47 \approx 1.6719$
47. $\log_{10} 48 \approx 1.6812$
48. $\log_{10} 49 \approx 1.6905$
49. $\log_{10} 50 \approx 1.6990$
50. $\log_{10} 51 \approx 1.7076$
51. $\log_{10} 52 \approx 1.7160$
52. $\log_{10} 53 \approx 1.7244$
53. $\log_{10} 54 \approx 1.7326$
54. $\log_{10} 55 \approx 1.7407$
55. $\log_{10} 56 \approx 1.7487$
56. $\log_{10} 57 \approx 1.7566$
57. $\log_{10} 58 \approx 1.7643$
58. $\log_{10} 59 \approx 1.7720$
59. $\log_{10} 60 \approx 1.7799$
60. $\log_{10} 61 \approx 1.7876$
61. $\log_{10} 62 \approx 1.7952$
62. $\log_{10} 63 \approx 1.8027$
63. $\log_{10} 64 \approx 1.8101$
64. $\log_{10} 65 \approx 1.8174$
65. $\log_{10} 66 \approx 1.8247$
66. $\log_{10} 67 \approx 1.8319$
67. $\log_{10} 68 \approx 1.8390$
68. $\log_{10} 69 \approx 1.8461$
69. $\log_{10} 70 \approx 1.8532$
70. $\log_{10} 71 \approx 1.8502$
71. $\log_{10} 72 \approx 1.8571$
72. $\log_{10} 73 \approx 1.8640$
73. $\log_{10} 74 \approx 1.8708$
74. $\log_{10} 75 \approx 1.8776$
75. $\log_{10} 76 \approx 1.8843$
76. $\log_{10} 77 \approx 1.8910$
77. $\log_{10} 78 \approx 1.8976$
78. $\log_{10} 79 \approx 1.9043$
79. $\log_{10} 80 \approx 1.9109$
80. $\log_{10} 81 \approx 1.9174$
81. $\log_{10} 82 \approx 1.9239$
82. $\log_{10} 83 \approx 1.9304$
83. $\log_{10} 84 \approx 1.9368$
84. $\log_{10} 85 \approx 1.9432$
85. $\log_{10} 86 \approx 1.9496$
86. $\log_{10} 87 \approx 1.9560$
87. $\log_{10} 88 \approx 1.9623$
88. $\log_{10} 89 \approx 1.9687$
89. $\log_{10} 90 \approx 1.9751$
90. $\log_{10} 91 \approx 1.9814$
91. $\log_{10} 92 \approx 1.9877$
92. $\log_{10} 93 \approx 1.9940$
93. $\log_{10} 94 \approx 2.0003$
94. $\log_{10} 95 \approx 2.0066$
95. $\log_{10} 96 \approx 2.0129$
96. $\log_{10} 97 \approx 2.0191$
97. $\log_{10} 98 \approx 2.0254$
98. $\log_{10} 99 \approx 2.0317$
99. $\log_{10} 100 \approx 2.0380$

2024 x 15 = 291 6-8-7

2. $\frac{1}{2} \frac{d^2 \phi}{dt^2} = -\frac{1}{2} \frac{d^2 \phi}{dt^2} - \frac{1}{2} \frac{d^2 \phi}{dt^2}$

1. $\frac{2000}{1000} = 2$ 3. $\frac{1000}{1000} = 1$

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$$+ 2.8 \times 10^{-2} = 0.10$$

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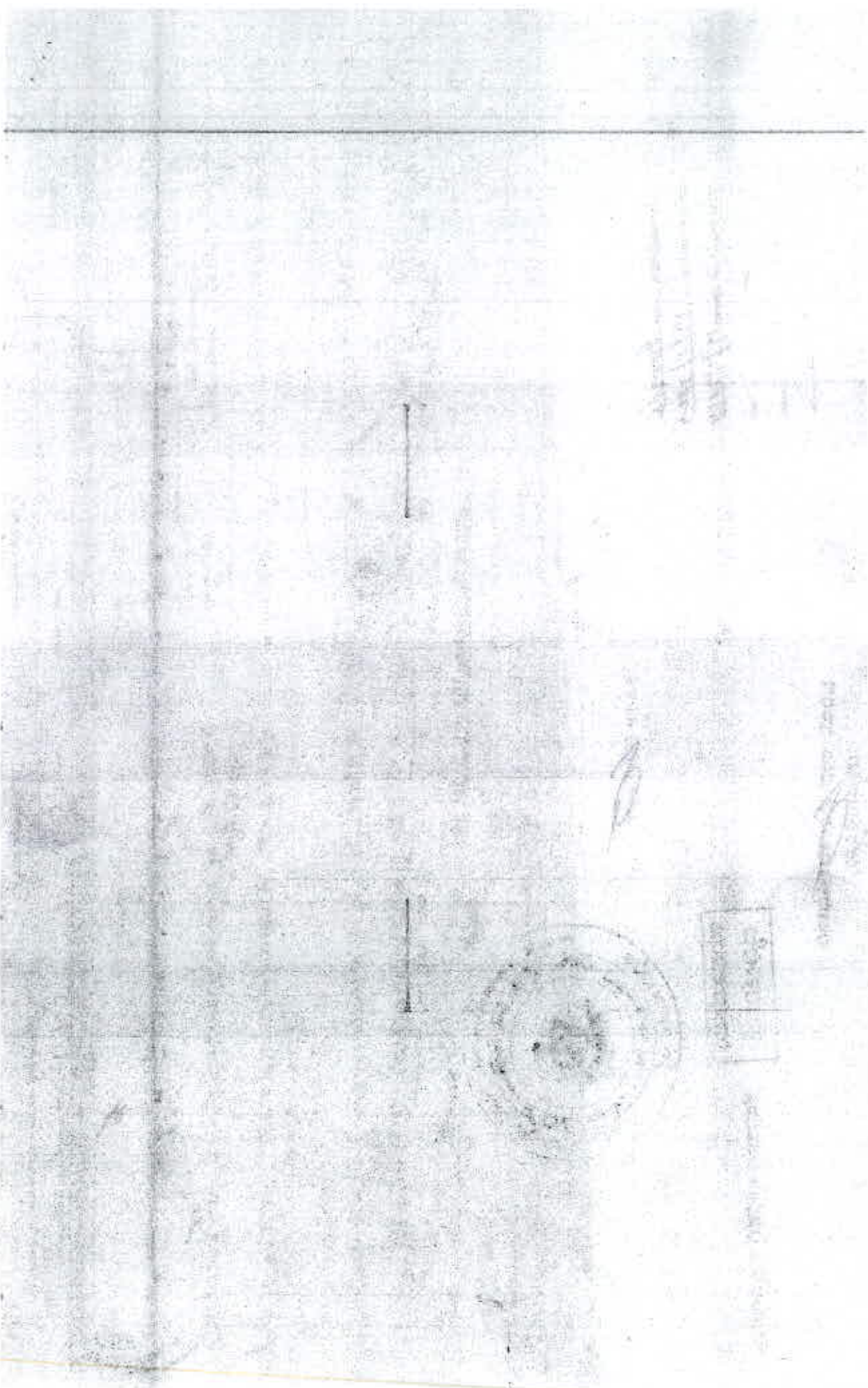
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ಜಿಲ್ಲೆ: Chikmagalur ತಾಲ್ಲೂಕು: Chikmagalur ಹೋಬಳಿ: AVATI ಗ್ರಾಮ: BYARAVALLI

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ಸರ್ವಾಧಿಕಾರಿ

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1. ಸರ್ವೆ ಮಾಡಿದ ಉಲ್ಲೇಖ ಸಮಾಚಾರವು.

2. ಅಧಿಕಾರಿಯಿಂದ ಮಾಡಿದ ಸರ್ವೆ ಕುಡ್ಡೆವಾಸಿ

ಸರ್ವೆ ಸಿ.ಸಿ. ಕೆ. 101/46-47 ರ ಮೇಲೆ ಮಂಜೂರಿನಿಂದ

ಕೆ.ಎಸ್. ಕೆ.ಎಸ್. ಕೆ.ಎಸ್. ಕೆ.ಎಸ್. ಕೆ.ಎಸ್.

Plane Table Sheet ನ್ನು ಅಳವಡಿಸಿದೆ.

1. ಅಧಿಕಾರಿಯಿಂದ ಮಾಡಿದ ಸರ್ವೆ

2. ಅಧಿಕಾರಿಯಿಂದ ಮಾಡಿದ ಸರ್ವೆ

3. ಅಧಿಕಾರಿಯಿಂದ ಮಾಡಿದ ಸರ್ವೆ

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5. ಅಧಿಕಾರಿಯಿಂದ ಮಾಡಿದ ಸರ್ವೆ

6. ಅಧಿಕಾರಿಯಿಂದ ಮಾಡಿದ ಸರ್ವೆ

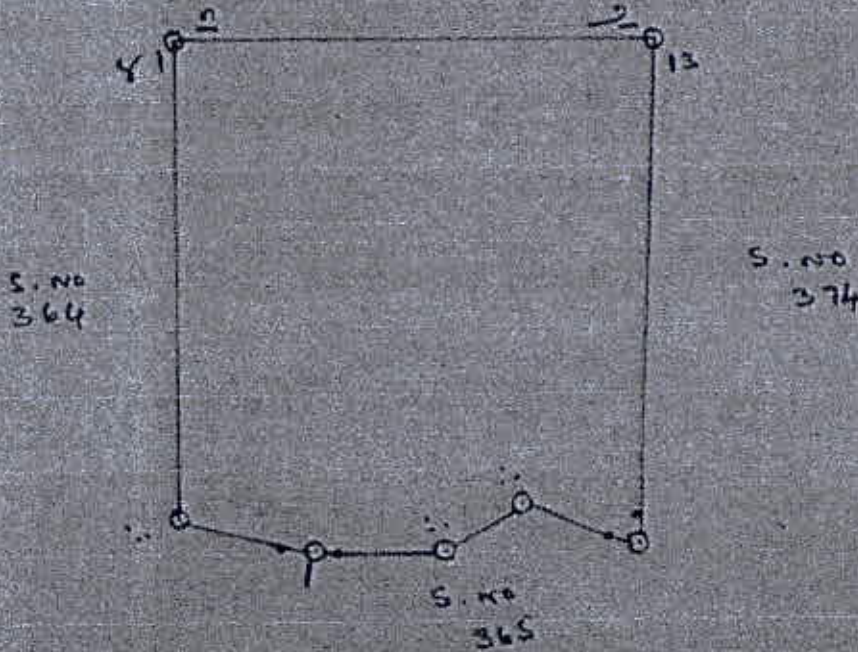
7. ಅಧಿಕಾರಿಯಿಂದ ಮಾಡಿದ ಸರ್ವೆ

ಜಿಲ್ಲೆ:Chikmagalur ತಾಲ್ಲೂಕು:Chikmagalur ಹೋಬಳಿ:AVATI ಗ್ರಾಮ:BYARAVALLI

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1. ಈ ಸಂಬಂಧಿ ಕ್ರಾಂತಿ ಬರಾಹಾ ರವರದ್ದು.
2. ಕ್ರಾಂತಿ ಬರಾಹಾ ಸಂಬಂಧಿ 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 58, 59, 60, 61, 62, 63, 64, 65, 66, 67, 68, 69, 70, 71, 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 97, 98, 99, 100, 101, 102, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, 114, 115, 116, 117, 118, 119, 120, 121, 122, 123, 124, 125, 126, 127, 128, 129, 130, 131, 132, 133, 134, 135, 136, 137, 138, 139, 140, 141, 142, 143, 144, 145, 146, 147, 148, 149, 150, 151, 152, 153, 154, 155, 156, 157, 158, 159, 160, 161, 162, 163, 164, 165, 166, 167, 168, 169, 170, 171, 172, 173, 174, 175, 176, 177, 178, 179, 180, 181, 182, 183, 184, 185, 186, 187, 188, 189, 190, 191, 192, 193, 194, 195, 196, 197, 198, 199, 200, 201, 202, 203, 204, 205, 206, 207, 208, 209, 210, 211, 212, 213, 214, 215, 216, 217, 218, 219, 220, 221, 222, 223, 224, 225, 226, 227, 228, 229, 230, 231, 232, 233, 234, 235, 236, 237, 238, 239, 240, 241, 242, 243, 244, 245, 246, 247, 248, 249, 250, 251, 252, 253, 254, 255, 256, 257, 258, 259, 260, 261, 262, 263, 264, 265, 266, 267, 268, 269, 270, 271, 272, 273, 274, 275, 276, 277, 278, 279, 280, 281, 282, 283, 284, 285, 286, 287, 288, 289, 290, 291, 292, 293, 294, 295, 296, 297, 298, 299, 300, 301, 302, 303, 304, 305, 306, 307, 308, 309, 310, 311, 312, 313, 314, 315, 316, 317, 318, 319, 320, 321, 322, 323, 324, 325, 326, 327, 328, 329, 330, 331, 332, 333, 334, 335, 336, 337, 338, 339, 340, 341, 342, 343, 344, 345, 346, 347, 348, 349, 350, 351, 352, 353, 354, 355, 356, 357, 358, 359, 360, 361, 362, 363, 364, 365, 366, 367, 368, 369, 370, 371, 372, 373, 374, 375, 376, 377, 378, 379, 380, 381, 382, 383, 384, 385, 386, 387, 388, 389, 390, 391, 392, 393, 394, 395, 396, 397, 398, 399, 400, 401, 402, 403, 404, 405, 406, 407, 408, 409, 410, 411, 412, 413, 414, 415, 416, 417, 418, 419, 420, 421, 422, 423, 424, 425, 426, 427, 428, 429, 430, 431, 432, 433, 434, 435, 436, 437, 438, 439, 440, 441, 442, 443, 444, 445, 446, 447, 448, 449, 450, 451, 452, 453, 454, 455, 456, 457, 458, 459, 460, 461, 462, 463, 464, 465, 466, 467, 468, 469, 470, 471, 472, 473, 474, 475, 476, 477, 478, 479, 480, 481, 482, 483, 484, 485, 486, 487, 488, 489, 490, 491, 492, 493, 494, 495, 496, 497, 498, 499, 500, 501, 502, 503, 504, 505, 506, 507, 508, 509, 510, 511, 512, 513, 514, 515, 516, 517, 518, 519, 520, 521, 522, 523, 524, 525, 526, 527, 528, 529, 530, 531, 532, 533, 534, 535, 536, 537, 538, 539, 540, 541, 542, 543, 544, 545, 546, 547, 548, 549, 550, 551, 552, 553, 554, 555, 556, 557, 558, 559, 560, 561, 562, 563, 564, 565, 566, 567, 568, 569, 570, 571, 572, 573, 574, 575, 576, 577, 578, 579, 580, 581, 582, 583, 584, 585, 586, 587, 588, 589, 590, 591, 592, 593, 594, 595, 596, 597, 598, 599, 600, 601, 602, 603, 604, 605, 606, 607, 608, 609, 610, 611, 612, 613, 614, 615, 616, 617, 618, 619, 620, 621, 622, 623, 624, 625, 626, 627, 628, 629, 630, 631, 632, 633, 634, 635, 636, 637, 638, 639, 640, 641, 642, 643, 644, 645, 646, 647, 648, 649, 650, 651, 652, 653, 654, 655, 656, 657, 658, 659, 660, 661, 662, 663, 664, 665, 666, 667, 668, 669, 670, 671, 672, 673, 674, 675, 676, 677, 678, 679, 680, 681, 682, 683, 684, 685, 686, 687, 688, 689, 690, 691, 692, 693, 694, 695, 696, 697, 698, 699, 700, 701, 702, 703, 704, 705, 706, 707, 708, 709, 710, 711, 712, 713, 714, 715, 716, 717, 718, 719, 720, 721, 722, 723, 724, 725, 726, 727, 728, 729, 730, 731, 732, 733, 734, 735, 736, 737, 738, 739, 740, 741, 742, 743, 744, 745, 746, 747, 748, 749, 750, 751, 752, 753, 754, 755, 756, 757, 758, 759, 760, 761, 762, 763, 764, 765, 766, 767, 768, 769, 770, 771, 772, 773, 774, 775, 776, 777, 778, 779, 780, 781, 782, 783, 784, 785, 786, 787, 788, 789, 790, 791, 792, 793, 794, 795, 796, 797, 798, 799, 800, 801, 802, 803, 804, 805, 806, 807, 808, 809, 810, 811, 812, 813, 814, 815, 816, 817, 818, 819, 820, 821, 822, 823, 824, 825, 826, 827, 828, 829, 830, 831, 832, 833, 834, 835, 836, 837, 838, 839, 840, 841, 842, 843, 844, 845, 846, 847, 848, 849, 850, 851, 852, 853, 854, 855, 856, 857, 858, 859, 860, 861, 862, 863, 864, 865, 866, 867, 868, 869, 870, 871, 872, 873, 874, 875, 876, 877, 878, 879, 880, 881, 882, 883, 884, 885, 886, 887, 888, 889, 890, 891, 892, 893, 894, 895, 896, 897, 898, 899, 900, 901, 902, 903, 904, 905, 906, 907, 908, 909, 910, 911, 912, 913, 914, 915, 916, 917, 918, 919, 920, 921, 922, 923, 924, 925, 926, 927, 928, 929, 930, 931, 932, 933, 934, 935, 936, 937, 938, 939, 940, 941, 942, 943, 944, 945, 946, 947, 948, 949, 950, 951, 952, 953, 954, 955, 956, 957, 958, 959, 960, 961, 962, 963, 964, 965, 966, 967, 968, 969, 970, 971, 972, 973, 974, 975, 976, 977, 978, 979, 980, 981, 982, 983, 984, 985, 986, 987, 988, 989, 990, 991, 992, 993, 994, 995, 996, 997, 998, 999, 1000.

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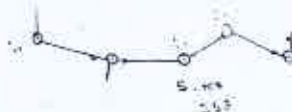
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Annexure H

PROCEEDINGS OF THE GOVERNMENT OF MYSORE.

Sub: Lease Grant - Coffee Cultivation - Confirmation of Land -
S.No. 357, 364 and 374 of Byravalli Village - Chikmagalur
Taluk, in favour of Sri. K.S. Kaligowda.

ORDER NO. HD 135 LCC 68 BANGALORE, Dated, the 29th Jan., 1969.

READ:

1. G.O.No. HD 141 LMD 61 dated 4.5.1961.
2. Letter No. LMD.II.8851/68-69 dated 16.12.1968
from the Divisional Commissioner, Mysore Division,
Mysore.

ORDER.

SANCTION is accorded for the confirmation of an
extent of 49 acres 35 guntas of land in S.No. 357, 364 and 374
of Byravalli village, Chikmagalur Taluk, in favour of Sri. K.S.
Kaligowda, granted on lease basis in G.O. dated 4.5.1961 read
above.

BY ORDER AND IN THE NAME OF THE GOVERNOR OF MYSORE,
SD/- B.P. Krishna, Under Secretary to Government,
Revenue Department.

ರೇಷನ್ ಕಾರ್ಡ್ 2
ಇಲಾಖಾ ಕೋಡ್

3837AD0359

ರೇಷನ್ ಕಾರ್ಡ್ ಆನ್ ರೈಷನ್, ಗಣಿ ಮತ್ತು ಹವೆಲಿ ಪತ್ರಿಕೆ (RTC) ಫಾರಂ ನಂ.02

Valid from 2001-10-01 00:00:00 To 2011-08-05 19:39:00

Annexure D

1. ಕಾರ್ಡ್ ನಂ.	2. ಪರಿಚಯ ನಂ.	3. ಪರಿಚಯ ನಂ.	4. ಪರಿಚಯ ನಂ.	5. ಪರಿಚಯ ನಂ.	6. ಪರಿಚಯ ನಂ.	7. ಪರಿಚಯ ನಂ.	8. ಪರಿಚಯ ನಂ.	9. ಪರಿಚಯ ನಂ.	10. ಪರಿಚಯ ನಂ.	11. ಪರಿಚಯ ನಂ.	12. ಪರಿಚಯ ನಂ.	13. ಪರಿಚಯ ನಂ.	14. ಪರಿಚಯ ನಂ.	15. ಪರಿಚಯ ನಂ.	16. ಪರಿಚಯ ನಂ.
621	300.00.00	300.00.00	24.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00

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621	300.00.00	300.00.00	24.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00

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Page 4 of 4

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FORM 'B' - RULE-4

FORM OF THE CERTIFICATE OF REGISTRATION OF A REGISTERED OWNER

(SECTION 14 OF THE COFFEE ACT, 1942)

[Section 3 of the Mysore Coffee Market Expansion (emergency) Act 1940]

C. R. C. No. 21/5556

SRI K.M. Shashidhar & K.S. Malle Gowder.

Kabbirahalli village Chikmagalur Taluk.

has been registered as the registered owner of the Coffee Estate(s) mentioned in the Schedule below under Section 14 of the Coffee Market Expansion Act, 1942, Section 5 of the Mysore Coffee Market Expansion (emergency) Act, 1940.

Place: CHIKMAGALUR

Date: 11.4.75

For DEPUTY COMMISSIONER,
CHIKMAGALUR DISTRICT

SCHEDULE

Name of the Estate	District	Taluk	Village (s)	S. No. or S. Nos.	Area in Acres
Shiragange Estate	Chikmagalur	Chikmagalur	Byranahalli	376/p	4-01
				374/p	4-07
				363	11-24
				371	9-00
				373	5-36
				405	3-10
				357	8-00
				374	7-15
				364	19-34
				357/p	22-26
				404/p	12-36
				398	2-00
				407	10-35
				365	1-10
Total				117-34	

Total Exent is one hundred & Seventeen Acres and 134 square centas only.

67

G.F. 117 = 34 ವಿಸ್ತೀರ್ಣ

ಕೆ.ಎಂ.ಎಸ್.ಎಸ್. ಕೆ.ಎಂ.ಎಸ್.ಎಸ್. ಕೆ.ಎಂ.ಎಸ್.ಎಸ್.

ET/4/90/42. ಎಂ.ಎ. 11-1-90 ವಿಸ್ತೀರ್ಣ

ಕೆ.ಎಂ.ಎಸ್.ಎಸ್. ಕೆ.ಎಂ.ಎಸ್.ಎಸ್. ಕೆ.ಎಂ.ಎಸ್.ಎಸ್.

ಎ.ಎ.ಎ. (ಕೆ) 16/3/90 ಎಂ.ಎ. 26/2/90

ಹಂತಿ ಎಂ.ಎ.ಎ. ಕೆ.ಎಂ.ಎ. 692/10-5-90

ವಿಸ್ತೀರ್ಣ ಎಂ.ಎ.ಎ. ಕೆ.ಎಂ.ಎ. 99-33 ವಿಸ್ತೀರ್ಣ

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108 13-33

113 2-37

115 1-11

116 4-03

117 1-03

119 2-31

120 3-21

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(H) 692/10-5-1994 99.38

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M-7 100.03 (99.38 + 0.06) 100.43
S-7 115.33 + 6.33 = 122.26

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68
Annexure 2
IN THE SUPREME COURT OF INDIA
CIVIL ORIGINAL JURISDICTION

I.A. NO. 990

IN

I.A. NO. 860 & 863

IN

WRIT PETITION (C) NO. 202 OF 1995

IN THE MATTER OF :

T.N. Godavaman Thirumaplad

... Petitioner

Versus

Union of India & Ors.

... Respondents

REPLY SUBMISSION BY WAY OF AFFIDAVIT ON
BEHALF OF THE STATE OF KARNATAKA TO THE
RECOMMENDATIONS OF CENTRAL EMPOWERED
COMMITTEE DATED 26.12.2018.

PAPER BOOK
(FOR INDEX, KINDLY SEE INSIDE)

ADVOCATE FOR THE RESPONDENT: JOSEPH ARISTOTLE.S.,

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FORMAT OF INDEX

Sl. No.	Particulars of Documents	Page No. of part to which it belongs		Remarks
		Part I (Contents of Paper Book)	Part II (Contents of file alone)	
(i)	(ii)	(iii)	(iv)	(v)
1.	Reply submission by way of Affidavit on behalf of the State of Karnataka to the Recommendations of Central Empowered Committee dated 26.12.2018	1-15-		
2.	DOCUMENT -1: A copy of the list of 18 Encroachers prior to 1978 Eligible for Regularization vide G.O No.FEE-05-FGL 1990 Dated 05-05- 1997 in Sargod Reserve Forest of Chikmagalur Division	16-17		
3.	DOCUMENT-2: A copy of the List of 7 Schedule tribe encroacher recognized under The Schedule Tribe and other Traditional Forest Dwellers (Recognized of Forest Right) Act 2006	18		
4.	DOCUMENT-3: A copy of the details of Encroachers in Masakali Reserve Forest who are eligible for Rehabilitation Package as per G.O. No. FEE.86.FGL.2017 dated 29.12.2017	19-29		
5.	DOCUMENT-4: A copy of the List of Encroachment areas Evicted in Excess of grants and recovered in Masakali Reserve Forest	30		

#0

6.	DOCUMENT-5: A copy of the Statement showing the list of grant made after 25.10.1980	31-33		
7.	DOCUMENT -6: A copy of the statement showing the list of grants for made between 1994 and 27.04.1978	34-41		
8.	DOCUMENT -7: A copy of the statement showing the list of grant made after 27.04.1978	42		
9.	DOCUMENT-8: A copy of the statement showing the of List of grant made	43-44		
10.	DOCUMENT-9: A copy of the Notification No. HAFF.3.FAF Bangalore, dated: 19-04-1991	45		
11.	DOCUMENT-10: A copy of the Notification bearing No. AHFF8 FAF 93(27-1) dated 21.02.1994	46		
12.	DOCUMENT-11: A copy of the Notification bearing No. AHFF8 FAF 93(27-1) dated 21.02.1994	47		
13.	DOCUMENT-12: A copy of the Notification bearing No. AHFF8 FAF 93(27-1) dated 21.02.1994	48-49		
14.	DOCUMENT-13: A copy of the G.O. No.AFD.69.DST.57 dated 23.09.1959 issued by the Agriculture and Forest Department, Govt. of Mysore	50		

15.	DOCUMENT -14: A copy of the letter No.D.A.R. (C.1.) 8916/ 70-71 dated 14.9.1971	51-52		
16.	DOCUMENT-15: A copy of the letter dated No.FEE 41 FGL 2019 (PI)dated 29-04-2019	53-54		
17.	DOCUMENT-16: A copy of the statement showing the list of grants for which records un unavailable	55-58		
18.	DOCUMENT -17: A copy of the order dated 18.08.2017 passed by this Hon`ble Court in I.A. No. 990 in I.A. No. 860 and 863 in W.P. (C) No. 202 of 1995	59-64		
19	DOCUMENT -18: A copy of the letter bearing No.FEE 41 FGL 2019 (P1) dated 29-04-2019	65-		

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IN THE SUPREME COURT OF INDIA
CIVIL ORIGINAL JURISDICTION

I.A. NO.990 READ WITH I.A. NO. 860 & 863

IN

WRIT PETITION (CIVIL) NO. 202 OF 1995

IN THE MATTER OF:

T.N. Godavarman Thirumulapad. .. PETITIONER

VERSUS:

Union of India and others. .. RESPONDENTS

TO:

THE HON'BLE CHIEF JUSTICE OF INDIA AND
HIS LORDSHIP'S OTHER COMPANION JUDGES
OF THE HON'BLE SUPREME COURT OF INDIA.

REPLY SUBMISSION BY WAY OF AFFIDAVIT FILED ON
BEHALF OF STATE OF KARNATAKA TO THE
RECOMMENDATIONS OF CENTRAL EMPOWERED
COMMITTEE DATED 26-12-2018.

I, T.M. VIJAY BHASKAR, S/o late T.R. Mahadeva Naidu,
aged 58 years, working as Chief Secretary to Government of
Karnataka, Vidhana Soudha, Bengaluru, Karnataka State, do
hereby solemnly affirm and state on oath as follows.

T.M. Vijay Bhaskar



No. of Corrections: *N/A*

2. I respectfully submit that I am working as Chief Secretary to Government of Karnataka. I am aware of the facts of the case and I am swearing this Affidavit on the basis of the records available in the office.

3. I respectfully submit that in pursuance of the directions of this Hon'ble Court vide orders dated 20-03-2017, 07-04-2017, 18-08-2017, 08-09-2017, 16-07-2018 and report for compliance to the recommendations of CEC dated 26-12-2018, Affidavits were filed on 3rd April 2017, 11th August 2017, 29th August 2017, 01st January 2018, 20th October 2018, 26th February 2019 and 12th March 2019 on behalf of the Government of Karnataka.

4. These Affidavits are regarding the status of eviction of encroachments in the three Reserved Forests (RF) of Chikmagalur District, viz., Thatkola, Sargodu and Maskali Reserved Forests.

5. In case of Thatkola RF, all the encroachments have been cleared and area taken back by the Forest Department and the encroachers rehabilitated.

6. In case of Sargodu RF, there are 18 (eighteen) pre-1978 encroachers still residing inside the forest, out of which,

M. Jayaram

No. of Corrections: *MC*



13 (thirteen) encroachers have given in writing agreeing for rehabilitation and relocation package as was given in Tatkola RF rehabilitation, which included 2 acres of land, a dwelling house and ex-gratia of ₹1 lakh, whereas 5 (five) encroachers have not accepted the package of rehabilitation. As the rehabilitation package is voluntary, if the package is not agreeable to them now, then temporarily they have to be allowed to continue in the same place. A photocopy of the Statement showing the details of 18 (eighteen) encroachers is produced herewith and marked as **DOCUMENT NO.1**. Further, with regard to 7 (seven) Scheduled Tribe (ST) encroachers, one single surviving member of a family has passed away without a legal heir and regarding the remaining 6 (six) families, their rights have been recognised under the Forest Rights Act, 2006 and sanction of Right letters (Hakkupatra's) have been issued to them. A photocopy of the Statement showing the list of the above mentioned 7 (seven) ST families is produced herewith produced and marked as **DOCUMENT NO.2**.

7. As far as encroachments in Maskali Reserve Forest are concerned, they are of two types;

- (i) Encroachments by landless people. This category consist of 76 (seventy six) families with an extent of 110 acres 01 guntas. A

MM. Jayashankar



No. of Corrections: Nil

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 photocopy of the Report showing the above details is produced herewith and marked as DOCUMENT NO.3.

- (ii) Encroachments by the grant holders in excess of the granted land (grant holding). This category consists of 65 (sixty five) families with an extent of 453 acres 24 guntas excess lands. A photocopy of the Statement showing the list in this category is produced herewith and marked as DOCUMENT NO.4.

In case of (i) above, the encroachers, who have occupied forest land, have not been yet dispossessed of the encroached lands as they may turn destitute after dispossession. State of Karnataka has planned for rehabilitation of the encroachers subject to conditions, after seeking approval from this Hon'ble Court.

In case of (ii) above, as per the order dated 18.08.2017 of this Hon'ble Court, the granted lands in Maskali Reserve Forest were identified and surveyed by the district administration and excess land in possession of each of the grant holder totalling up to 452 acres 8 guntas were taken back into the custody of the Forest Department.

M. Jayashankar



No. of Corrections: 0

8. Apart from the above two types of encroachment, there are genuine grantees of land in the area covered under the Forest Notifications. These grants are of three kinds;

- a) Grants made prior to the Notification dated 22.11.1944 declaring it as a forest land. This category consists of 24 cases covering an extent of 357 acres and 27 guntas, which is enclosed in the CEC report as Annexure - R-2, a photocopy of which, is produced herewith and marked as **DOCUMENT NO.5.**
- b) Grants made after the 22.11.1944 Notification, but prior to the commencement of the Forest Conservation Act, 1980. This category consists of 46 (forty six) grants involving 355 acres and 3 (three) grants involving 56 acres, which are enclosed in the CEC report as Annexure- R-3 & R-4, photocopies of which, are produced herewith and marked as **DOCUMENT NO.6** and **DOCUMENT NO.7** respectively.
- c) Grants made after the Forest Conservation Act, 1980 without obtaining the prior permission/clearances from the Central Government. In this category there are 11 (eleven) cases involving 36 acres 39 guntas, which is enclosed in the CEC report as

M. Jayachandran



No. of Corrections: *MC*

Annexure - R-5, a photocopy of which, is produced herewith and marked as **DOCUMENT NO.8.**

9. When the matter stood as above, the Central Empowered Committee (CEC) placed a request before this Hon'ble Court to furnish a report regarding the grants in Maskali Reserve Forest. Accordingly, after hearing the Karnataka State Authorities and the District Administration, CEC has submitted a report to this Hon'ble Court on 26-12-2018 with the following recommendations:

- i. Government of Karnataka may take immediate follow up action to cancel/withdraw notifications relating to de-reservation in Maskali Reserve Forest under Mysore Forest Act, 1900.
- ii. Government of Karnataka to take action to cancel grants issued after 25-10-1980.
- iii. Grantees, who, have been issued grants after 25-10-1980 may be directed to pay ₹3 lakhs/acre/annum from date of grant till cancellation of grants and dispossessed.
- iv. Officers, who issued grants after 25-10-1980 in violation of Forest Conservation Act, may be ordered to pay ₹5

M. Jayalakshmi



No. of Corrections: *PC*

lakh/acre and State Government to initiate disciplinary action against such officials.

- v. The Principal Chief Conservator of Forests (HoFF) may be directed to file statement showing details of grants/leases if any made in Reserve Forests in the State after 25-10-1980 without obtaining prior approval of Government of India with Central Empowered Committee within 90 days.

10. In response to the recommendation (i) of the CEC, State of Karnataka most humbly submits the following:

That, in so far as the lands falling under the category of grants made prior to the 22.11.1944 Notification is concerned, it is seen that these lands were included in the notification by error. The Karnataka State Government had noticed this in the year 1959 itself and had initiated steps to remove these lands from the notification. However, instead of deleting the lands, the Karnataka State Government in the year 1991 and 1994 proceeded and de-notified some of these lands under the Mysore Forest Act, 1900, although the Karnataka Forest, Act, 1963, was in force and the Mysore Forest Act, 1900 repealed. These four notifications (1 notification of the year 1991 and 3

M. Jayashankar



No. of Corrections: *10*

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notifications of 1994) are enclosed as Annexure R-8 in CEC report. The photocopies of the said Notifications are produced herewith and marked as **DOCUMENT NO.9, DOCUMENT NO.10, DOCUMENT NO.11 and DOCUMENT NO.12** respectively.

As per the direction of CEC, the veracity of the Notifications done in 1991 and 1994 has been verified. The said Notifications pertain to private lands (given under grant), which were inadvertently / wrongly included in the Maskall Reserve Forest notification No AF 2257-FT 36-44-2 dated 22.11.1944. Most of these private lands were coffee cultivations at the time of the said Notification (and not '*lands at the disposal of the Government*') as provided in the Mysore Forest Act, 1900 and have remained as private land in revenue records. These errors were identified by the Government as early as 23-09-1959, pursuant to which, orders were issued by Government of Karnataka to rectify these errors. The order dated 23-09-1959 is annexed in the CEC report as Annexure R-7, a photocopy of which, is produced herewith and marked as **DOCUMENT NO.13** and a photocopy of the letter No.D.A.R. (C.1.) 8916 / 70-71 dated 14.9.1971 is produced herewith and marked as **DOCUMENT NO.14**. Evidently, the Gazette Notifications dated

M. Jayashankar



16-05-1991 and 10-03-1994 excluding these grant lands were further to these orders of the Government of Karnataka. Although the Notifications should have been issued under the Karnataka Forest Act, 1963, the exercise of powers by the State Government (purportedly further to Mysore Forest Act, 1900), does not in any manner vitiate the decision-making process or the validity of the actions sought to be undertaken.

In view of the foregoing, in terms of the CEC recommendations, the Notifications dated 16-05-1991 and 10-03-1994 will be withdrawn following due process and necessary steps to exclude these granted lands from the Notification dated 22.11.1944 will be initiated in accordance with law with the leave of this Hon'ble Court.

It is also pertinent to submit that in most of the grants post-1944, but pre-1980, the requisite orders for de-notification of forests have not been appropriately issued, even though lands were released for grants. In this regard, for example, the Government Order No.AFD69.DST 57 dated 23rd September 1959 for de-notification of pre and some of the post-1944 grants evidently establishes the intention of State Government of Karnataka to exclude these lands from the RF Notification, which were subsequently excluded by the orders dated

M. Jayabalan



No. of Corrections: *pc*

8)

19-04-1991 and 21-02-1994. This Hon'ble Court has directed that no de-notification of Reserve Forests will be affected without the express permission of this Hon'ble Court and as there are several grants that are post-1944 but prior to 1980, where requisite de-notification of Forests did not take place appropriately, it is humbly prayed that this Hon'ble Court may kindly grant liberty to the State of Karnataka to take necessary steps to exclude these granted lands from the 1944 Notification.

11. As far as the recommendation (ii) of the Central Empowered Committee is concerned, it is respectfully submitted that the granted lands remained as revenue/government lands in the revenue records, even after the Reserve Forest Notification, due to non-updation of records. Due to such erroneous legal status of lands incorporated in revenue records, 11 (eleven) of the grants covering 36 acres 39 guntas have happened in the Reserve Forest area after the Forest (Conservation) Act, 1980 came into force. These aforesaid grants are in violation of Forest (Conservation) Act, 1980. In this regard, the Deputy Commissioner, Chikmagalur, who is the competent authority for land grants, has been directed vide letter No.FEE 41 FGL 2019 (P1) dated 29-04-2019 to take immediate action to cancel these grants as per law. A photocopy of the

M. Jayashankar

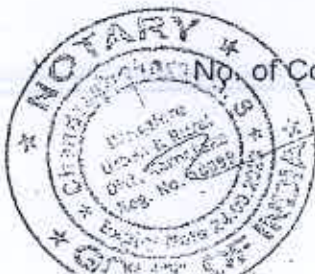


letter to Deputy Commissioner, Chikmagalur is produced herewith and marked as DOCUMENT NO.15.

It is humbly submitted that in the Maskali RF as per the affidavit filed by the State of Karnataka on 1st January 2018, 211 (two hundred and eleven) cases of encroachment were identified for rehabilitation package. But, as per the affidavit dated 26th February 2019 out of 211 (two hundred and eleven) families, only 76 (seventy six) families are now eligible for rehabilitation and the remaining non-eligible encroachers will be evicted. The Karnataka Government has released an amount of ₹2078.79 lakhs to Deputy Commissioner, Chikmagalur district on 06-08-2018 for the rehabilitation and relocation package.

Further, there are 30 (thirty) cases of grants [earlier 31 (thirty one)] covering an extent of 193 acres 25 guntas, for which, details of grants date are not known and hence, it was decided by Karnataka State Government to treat these cases on par with above 76 (seventy six) cases and accordingly, the process of cancellation of grants and procedure for eviction has been initiated by the Forest Department, after which, they shall be also provided with rehabilitation package. These encroachment cases are in different stages of proceedings with the Deputy Conservator of Forests, Chikmagalur. The process

M. S. S. S. S. S.



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has been delayed due to delay in the joint survey and individual cases are being pursued further. Compliance of the outcome of cases will be submitted to this Hon'ble Court on completion of the entire procedure. As the process is of quasi-judicial nature, it is humbly prayed that this Hon'ble Court be pleased to grant one-year time to hear these cases and pass appropriate orders. A photocopy of the list of 31 (thirty one) grants [now 30 (thirty)] is produced herewith and marked as **DOCUMENT NO.16**.

12. Regarding the recommendation (iii) of CEC report, as already submitted above, that post-1980 grants might have happened in view of the non-updation of revenue records and the grantees may not have any intent to violate any of the laws. In view of the action taken by the State Government of Karnataka to cancel the grants and to evict the encroachments, it is humbly submitted before this Hon'ble Court to waive the penalty of ₹3 lakh/acre/annum on these grantees. These grantees on eviction may also be considered for rehabilitation based on eligibility as proposed by the Karnataka State Government and agreed upon by this Hon'ble Court in this case in its order dated 18-08-2017 in the case of encroachers, who may be rendered destitute, if evicted. A photocopy of order

M. Jayalakshmi



Not of Corrections: *NE*

dated 18-08-2017 is produced herewith and marked as
DOCUMENT NO.17.

13. Regarding the recommendation (iv) of CEC report, it is already explained that post 1980 grants, might have occurred due to non-updation of revenue records. It is humbly submitted to this Hon'ble Court that the Officers, who granted the lands post 1980, did not have any intention of violating the law and the recommendation of CEC to impose penalty of ₹5.00 lakh per acre and initiation of disciplinary action by Karnataka State Government against the concerned officials for issuing grants after 25.10.1980 may humbly not be considered. The grants are pertaining to the period as early as 1986 and the officials, who may have been involved in such grants, are either in the evening years of their life or may be deceased.

14. Regarding the recommendation (v) of CEC report, it is most humbly submitted that this particular I.A. is regarding encroachments in three reserve forests, namely, Tatkola, Saragodu and Maskali Reserve Forests. As an extraordinary situation prevailed then, this Hon'ble Court monitored the eviction of encroachments in these three reserved forests. It is humbly submitted that in the State of Karnataka, eviction of encroachments of forest land is being done on priority and is



M. Jayachandra

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being monitored periodically at all levels throughout the State of Karnataka. A Special Court under Land Grabbing Prohibition Act, 2011, which is in force since 20-10-2014, is also monitoring eviction of encroached government lands in Karnataka. Further, as per the recommendation of CEC, a letter has been written to the Principal Chief Conservator of Forests (Head of Forest Force), vide letter No.FEE 41 FGL 2019 (P1) dated 29-04-2019 directing him to prepare a statement showing details of grants/ leases if any made in the Reserve Forests in the State of Karnataka after 25-10-1980 without obtaining prior approval of Government of India in 90 days. A photocopy of said letter is produced herewith and marked as **DOCUMENT NO.18**.

15. I respectfully submit that Document Nos.1 to 18 are the photocopies of their originals.

WHEREFORE, I humbly pray that this Hon'ble Court be pleased to take this Reply Submission by way of Affidavit filed on behalf of the State of Karnataka on record in the above case with a prayer to grant one-year time to sort out, take statutory action and comply in this matter in the interest of justice and equity.

M. H. Bhat
DEPONENT



No. of Corrections: *MC*

VERIFICATION

I, the Deponent above named do hereby verify that the content of paras 1 to 15 of the aforesaid Affidavit are true and correct to the best of my knowledge and record, no part of it is false and nothing material has been concealed there from.

I solemnly affirmed on this 2nd day of May, 2019, at Bengaluru, Karnataka State.

M. Jayashankar
DEPONENT

No. of Corrections: *One*
M. Jayashankar



SWORN TO BEFORE ME

2/05/2019
Chandrashekarappa S. S.
Advocate & Notary
No. 9/7, Kempogowda Nilaya
3rd Cross, Muthurajawamy Extension
Sunekadskatte, Bangalore - 560 091
Mob: 93437 79660

Book 1 Page 33
Reg. No. 832 Dated 2/05/2019

List of 18 Encroachers prior to 1978 Eligible for Regularisation vide G.O No.FEE-05-FGL-1990
Dated:05-05-1997 in Sargod Reserve Forest of Chikmagalur Division,

List of encroachers who have given consent letter for rehabilitation out of 18 encroachers:

sno.	Village	Sy.No	Name of the Encroacher	Extent of Present encroached	Eligible for regularization (acres)	Remarks
1	Byrigadde	121	Manjunatha, Lakshmanagowda S/o L. Doddegowda	3.42	0.24	Consent Given
2	Byrigadde	121	Krushnachari S/o Manjachari	1.48	1.19	Consent Given
3	Byrigadde	121	Channakeshavachari S/o Annappachari	4.55	1.12	Consent Given
4	Byrigadde	121	Chandrachari, Ramamma W/O L. Subbachari	0.22	1.30	Consent Given
5	Mundugolshara	181	Chandregowda S/o Nagappagowda	2.45	2.00	Consent Given
6	Byrigadde	121	Devappachari S/o Babachari	0.47	0.19	Consent Given
7	Byrigadde	121	B.D. Manjunatha S/o Dyavappachari	0.36	0.10	Consent Given
8	Mundugolshara	181	Lokamma W/o Ramegowda	4.20	2.00	Consent Given

Out of 18 encroachers, 5 encroachers have expired and their legal heirs have submitted their willingness letter for rehabilitation. Details are as follows:

sno.	Village	Sy.No	Name of the Encroacher	Extent of Present encroached	Eligible for regularization (acres)	Remarks
1	Byrigadde	121	Sudhamani W/o Byregowda	0.96	0.22	Sudhamani has expired her husband Mr. Byregowda has given consent letter for rehabilitation package.
2	Byrigadde	121	Gangauiahchhari S/o Kalachari	12.35	1.16	Both are expired his son Mr. Mahjunath has given consent letter for rehabilitation package.

masagali resport 15-2019.xlsx

[Signature]
Deputy Conservator of Forests
Chikmagalur Division
Chikmagalur.

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3	Byrigadde	121	Puttaiah S/o Siddaiah Yane Giddaiah	1.94	2.00	Both are expired hisson Mr. Kumar has given consent letter for rehabilitation package.
4	Byrigadde	121	Manjunathachari S/o Annappachari	3.82	1.28	Both are expired his wife Smt. Geetha has given consent letter for rehabilitation package.
5	Mundugolahara	181	Seethamma W/o L. Raniachari	2.40	1.16	Both are expired her son Mr. Prakash has given consent letter for rehabilitation package.

**Note: The above 13 Encroachers prior to 1978 Eligible for Regularisation vide G.O No. FEE-05-FGL-1990 Dated:05-05-1997 in Sargod Reserve Forest of Chikmagalur Division have given consent for rehabilitation subject to condition that 2.00 Acres of land is given along with Rehabilitation package as per G.O.No. FEE-86-FGL-2017 Dated:29-12-2017.

However, 5 encroachers have not submitted their consent for relocation / rehabilitation from present location, but agreed Orally. List is as follow:

sno.	Village	Sy.No	Name of the Encroacher	Extent of Present encroached	Eligible for regularization (acres)	Remarks
1	Byrigadde	121	Giddamma W/o L.Doddegowda	3.60	0.36	Consent letter not submitted.
2	Byrigadde	121	Chandu W/o L. Guruva	1.40	1.07	Consent letter not submitted.
3	Byrigadde	121	Singa S/o Ruman	2.40	2.10	Consent letter not submitted.
4	Mundugolahara	181	Hayath bee W/o Mohd. Ibrahim	5.48	3.00	Consent letter not submitted.
5	Byrigadde	121	Rathnamma W/o L.Shandregowda	6.40	3.00	Consent letter not submitted.

**Note: The above 05 Encroachers prior to 1978 Eligible for Regularisation vide G.O No. FEE-05-FGL-1990 Dated:05-05-1997 in Sargod Reserve Forest of Chikmagalur Division have agreed orally for rehabilitation subject to condition that 2.00 Acres of land is given as done for encroachers in Thatkola Reserve Forest along with Rehabilitation package as per G.O.No. FEE-86-FGL-2017 Dated:29-12-2017.

[Signature]
Deputy Conservator of Forests
Chikmagalur Division
Chikmagalur.

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DOCUMENT-2

List of 7 scheduled tribe encroachers recognised under "THE SCHEDULED TRIBES AND OTHER TRADITIONAL FOREST DWELLERS (RECOGNITION OF FOREST RIGHTS) ACT, 2006".

s.no.	Village	Sy.No	Name of the Encroacher	Extent of area sectioned in acres	Remarks
1	Kundur (Hebbalagadde)	225	Sundari W/o Devu	1.10	
2	Kundur (Hebbalagadde)	225	Koraga S/o Kukka	5.10	
3	Kundur (Hebbalagadde)	225	Vasanth S/o Chinkra	2.10	
4	Kundur (Hebbalagadde)	225	Poornesha S/o Chinkra	2.32	
5	Kundur (Hebbalagadde)	225	Shivananda S/o Chinkra	1.10	
6	Kundur (Hebbalagadde)	225	C. Rama S/o Guddamestri	1.05	
7	Heggodu	169	Rajikuma W/o Perumal	4.38	

Note: Out of the above 07 Families recognised under "THE SCHEDULED TRIBES AND OTHER TRADITIONAL FOREST DWELLERS (RECOGNITION OF FOREST RIGHTS) ACT, 2006" Sundari W/o Devu and Devu have passed away there are no legal heirs. Remaining 6 families have declined for voluntary rehabilitation package.


Deputy Conservator of Forests
Chikmagalur Division
Chikmagalur.

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DOCUMENT-3

KARNATAKA FOREST DEPARTMENT



CHIKKAMAGALURU FOREST DIVISION

Details of Encroachers in "Maskali Reserve Forest"
Who are Eligible for Rehabilitation Package as per
G.O.No-FEE-86-FGL-2017. Date:29-12-2017.

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DOCUMENT

List of 7 scheduled tribe encroachers recognised under "THE SCHEDULED TRIBES AND OTHER TRADITIONAL FOREST DWELLERS (RECOGNITION OF FOREST RIGHTS) ACT, 2006".

sno.	Village	Sy.No	Name of the Encroacher	Extent of area sectioned in acres	Remarks
1	Kundur (Hebbalagadda)	225	Sundari W/o Devu	1.10	
2	Kundur (Hebbalagadda)	225	Koraga S/o Kukka	5.10	
3	Kundur (Hebbalagadda)	225	Vasantha S/o Chinkra	2.10	
4	Kundur (Hebbalagadda)	225	Poomesha S/o Chinkra	2.32	
5	Kundur (Hebbalagadda)	225	Shivananda S/o Chinkra	1.10	
6	Kundur (Hebbalagadda)	225	C. Rama S/o Guddamestri	1.05	
7	Heggudlu	169	Rajindma W/o Perumal	4.38	

**Note: Out of the above 07 Families recognised under "THE SCHEDULED TRIBES AND OTHER TRADITIONAL FOREST DWELLERS (RECOGNITION OF FOREST RIGHTS) ACT, 2006". Sundari W/o Devu and Devu have passed away there are no legal heirs. Remaining 6 families have declined for voluntary rehabilitation package.

[Signature]
Deputy Conservator of Forests
Chikmagalur Division
Chikmagalur.

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CHIKKAMAGALURU FOREST DIVISION

Abstract Form for the Encroachers Who are Eligible for Rehabilitation package in "Maskali Reserve Forest"
as per G.O No-FEE-86-FGL-2017 Date:29-12-2017

Sl No	Category	No's	Remarks
1	Those who are losing only House In "Maskali Reserve Forest"	16	
2	Those who are losing House and Land In "Maskali Reserve Forest"	23	
3	Those who are losing only Land In "Maskali Reserve Forest"	37	
	Total	76	

Sd/-
Assistant Commissioner
Revenue Sub Division.
Chikkamagaluru District.

Translating copy

H.C. Rajendra Kumar
(H.C. RAJENDRA KUMAR)
Deputy Secretary to Government (Services)
Forest Ecology and Environment Department

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33	Lakshminisha S/o Chandregowda	-	Berangodu	167	Coffee	1-18	
34	Kainala H.S W/o Chandregowda	-	Berangodu	167	Coffee	2-32	
35	Eralah S/o Chikkaiah	-	Berangodu	167	Coffee	2-12	
36	Vasu S/o Rama shetty	-	Berangodu	167	Coffee	1-10	
37	T.M Manjesh W/o Manjegowda	Thotadamakki	Byaravalli	442	Coffee	3-02	

Sd/-
Village Accountant
Avathi Circle,
Chikkamagaluru Taluk

Sd/-
Village Accountant
Byaravalli Circle,
Chikkamagaluru Taluk

Sd/-
Village Accountant
Berangodu Circle,
Chikkamagaluru Taluk

Sd/-
Revenue Inspector
Avathi Hobli,
Chikkamagaluru Taluk

Sd/-
Deputy Tahasildar
Nada Kacheri, Avathi Hobli,
Chikkamagaluru Taluk

Sd/-
Deputy Range Forest Officer,
Avathi Section,
Muthodi Range, Mallandur.

Sd/-
Panchayath Development Officer,
Gram Panchayath, Byaravalli, Mallanduru
Chikkamagaluru Taluk

Sd/-
Range Forest Officer,
Muthodi Range, Mallandur,
Chikkamagaluru Division

Sd/-
Tahasildar
Chikkamagaluru Taluk
Chikkamagaluru

Sd/-
Assistant Director of Land Records,
Chikkamagaluru Sub Division,
Chikkamagaluru

Sd/-
Assistant Conservator of Forests And TA to DCF,
Chikkamagaluru Sub Division,
Chikkamagaluru Division

H.C. RAJENDRA KUMAR
(H.C. RAJENDRA KUMAR)
Deputy Secretary to Government (Services)
Forest Ecology and Environment Department

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CHIKKAMAGALURU FOREST DIVISION

List of Encroachers who are losing Only House In "Maskali Reserve Forest"

Sl No	Name of Encroachers	Sub, Village	Village	Sy No	Extent in A-G	Remarks
1	Neelamma W/o Nagesh	Thotadamakki	Byaravalli	353	0-02	
2	Nigalah S/o Puppaiiah	Thotadamakki	Byaravalli	353	0-02	
3	Praveena S/o Ningalah	Thotadamakki	Byaravalli	353	0-02	
4	Dyavalah S/o Ramalah	Thotadamakki	Byaravalli	353	0-02	
5	Rathinamma S/o Siddalah	Thotadamakki	Byaravalli	353	0-02	
6	Siddalah S/o Parichikkulah	Thotadamakki	Byaravalli	353	0-02	
7	Manjalah S/o Maralah	Horakere	Byaravalli	353	0-02	
8	Sushila W/o Rajini	Horakere	Byaravalli	353	0-02	
9	Venkatesh H.P. S/o Puttaiah	Horakere	Byaravalli	353	0-02	
10	Channiah S/o Maralah	Horakere	Byaravalli	353	0-02	
11	Doddamma W/o Chikkiah		Byaravalli	353	0-02	
12	Mallalah S/o Billah		Maskali	62,71	0-02	
13	Manjuanath S/o Chikkiah		Maskali	353	0-02	
14	Ningiah S/o Ajagalah		Maskali	353	0-02	
			Maskali	62,71	0-02	

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15	Papanna S/o Dyavalah		Maskali	353	0-02	
16	Umesha S/o Mallaiiah		Maskali	62,71	0-02	

Sd/-
Village Accountant
Avathi Circle,
Chikkamagaluru Taluk

Sd/-
Village Accountant
Byaravalli Circle,
Chikkamagaluru Taluk

Sd/-
Village Accountant
Berangodu Circle,
Chikkamagaluru Taluk

Sd/-
Revenue Inspector
Avtahi Hobli,
Chikkamagaluru Taluk

Sd/-
Deputy Tahasildar
Nada Kacheri, Avtahi Hobli,
Chikkamagaluru Taluk

Sd/-
Deputy Range Forest Officer,
Avathi Section,
Muthodi Range, Mallandur,

Sd/-
Panchayath Development Officer,
Gram Panchayath, Byaravalli, Mallanduru
Chikkamagaluru Taluk

Sd/-
Panchayath Development Officer,
Gram Panchayath, Avathi
Chikkamagaluru Taluk

Sd/-
Range Forest Officer,
Muthodi Range, Mallandur,
Chikkamagaluru Division

Sd/-
Tahasildar
Chikkamagaluru Taluk
Chikkamagaluru

Sd/-
Assistant Director of Land Records,
Chikkamagaluru Sub Division,
Chikkamagaluru

Sd/-
Assistant Conservator of Forests And TA to DCF,
Chikkamagaluru Sub Division,
Chikkamagaluru Division

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H.C. RAJENDRA KUMAR
Deputy Secretary to Government (Services)
Forest Ecology and Environment Department

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CHIKKAMAGALURU FOREST DIVISION
List of Encroachers who are losing House and Land in "Maskali Reserve Forest"

Sl No	Name of Encroachers	Sub Village	Village	Sy No	Crop	Extent in A/G	Remarks
1	H.S.Babu poojari S/o Seena poojari	Hembralli	Shiravase	198	Coffee	2-00	
2	Raju poojari S/o Seena poojari	Hembralli	Shiravase	198	Coffee	2-00	
3	Muddu poojari S/o Seena poojari	Hembralli	Shiravase	198	Coffee	1-00	
4	Vasanthi W/o Vasu poojari	Hembralli	Shiravase	198	Coffee	1-00	

Sd/-
Village Accountant
Shiravase Circle,
Chikkamagaluru Taluk

Sd/-
Revenue Inspector
Jigera Hobli,
Chikkamagaluru Taluk

Sd/-
Deputy Tahasildar
Nada Kacher Jigera Hobli,
Chikkamagaluru Taluk

Sd/-
Deputy Range Forest Officer,
Muthodi Section,
Muthodi Range, Mallandur,

Sd/-
Panchayat Development Officer,
Gram Panchayat, Shiravase,
Chikkamagaluru Taluk

Sd/-
Range Forest Officer,
Muthodi Range, Mallandur,
Chikkamagaluru Division

Sd/-
Tahasilkar,
Chikkamagaluru Taluk
Chikkamagaluru

Sd/-
Assistant Director of Land Records,
Chikkamagaluru Sub Division,
Chikkamagaluru

Sd/-
Assistant Conservator of Forests And TA to DCI,
Chikkamagaluru Sub Division,
Chikkamagaluru Division

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H.C.K.

(H.C. RAJENDRA KUMAR)
 Deputy Secretary to Government (Services)
 Forest, Ecology and Environment Department

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5	H.P. Eraiah S/o Puttaiah	Horakere	Byaravalli	353,365	Coffee	2-12	
6	Malliah S/o Puttaiah	Horakere	Byaravalli	353	Coffee	1-00	
7	Malliah S/o Kenchiah	Thotadamakki	Byaravalli	354	Coffee	1-04	
8	Nagamma W/o Shivappa	Thotadamakki	Byaravalli	343,354	Coffee	4-12	
9	Ravi S/o Dyaviah	Thotadamakki	Byaravalli	354	Coffee	1-32	
10	Malliah S/o Puppiah	Thotadamakki	Byaravalli	353	Coffee	1-00	
11	Puttaswamy S/o Puppiah	Thotadamakki	Byaravalli	353	Coffee	0-30	
12	Sanjeev poojar S/o Babu poojar	Thotadamakki	Byaravalli	354	Coffee	1-04	
13	Javare gowda S/o Rangegowda	-	Byaravalli	353	Coffee	3-00	
14	Sushila W/o Rajegowda	Thotadamakki	Byaravalli	385,353	Coffee	2-36	Before 78
15	M.B. Darshan S/o M.L. Basavara	-	Shinguru	62,71	Coffee	3-20	Before 78
16	Somiah poojar S/o Babupoojar	-	Maskali	62	Coffee	0-11	
17	M.L. Basavara S/o Lakshmegowda	-	Maskali	62	Coffee	3-35	Before 78
18	Lalithamma W/o Vital poojar	-	Maskali	62	Coffee	0-04	Before 78
19	Vijayamma W/o Janardhana poojar	-	Maskali	62	Coffee	0-25	Before 78
20	Shrinivasa Shetty S/o Thimma Shetty	-	Maskali	62	Coffee	2-30	Before 78
21	Biligalah poojar S/o Erappa poojar	-	Maskali	62,71	Coffee	3-00	Before 78

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22	Rajashetty S/o Ninga shetty		Shirguru	114	Coffee	0-15	
23	Pavithra W/o Chandru		Shirguru	(114) 62	Coffee	0-13	

Sd/-
Village Accountant
Avathi Circle,
Chikkamagaluru Taluk

Sd/-
Deputy Range Forest Officer,
Avathi Section,
Muthodi Range, Mallandur.

Sd/-
Assistant Director of Land Records,
Chikkamagaluru Sub Division,
Chikkamagaluru

Sd/-
Village Accountant
Byravalli Circle,
Chikkamagaluru Taluk

Sd/-
Panchayath Development Officer,
Gram Panchayath, Byravalli, Mallandur,
Chikkamagaluru Taluk

Sd/-
Assistant Conservator of Forests And TA to DCF,
Chikkamagaluru Sub Division,
Chikkamagaluru Division

Sd/-
Village Accountant
Berangodu Circle,
Chikkamagaluru Taluk

Sd/-
Panchayath Development Officer,
Gram Panchayath, Avathi,
Chikkamagaluru Taluk

Sd/-
Revenue Inspector
Avathi Hobli,
Chikkamagaluru Taluk

Sd/-
Range Forest Officer,
Muthodi Range, Mallandur,
Chikkamagaluru Division

Sd/-
Deputy Tahasildar
Nade Kacheri, Avathi Hobli,
Chikkamagaluru Taluk

Sd/-
Tahasildar
Chikkamagaluru Taluk,
Chikkamagaluru

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H.C. RAJENDRA KUMAR
Deputy Secretary to Government (Services)
Forest Ecology and Environment Department

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CHIKKAMAGALURU FOREST DIVISION

List of Encroachers who are losing Only Land In "Maskall Reserve Forest"

Sl No	Name of Encroachers	Sub Village	Village	Sy No	Crop	Extent In A-G	Remarks
1	Ramesh S/o Seena poojari	Hembralli	Shiravase	198	Coffee	0-20	
2	Shridhara S/o Gudda poojari	Hembralli	Shiravase	198	Coffee	0-20	
3	Halappa S/o Dyayalah	Hirekere	Shiravase	89	Coffee	2-11	
4	Lokesh S.M S/o Mallalah	Hirekere	Shiravase	89	Coffee	2-22	
5	Rudraiah S/o Badiyalaha	Hirekere	Shiravase	89	Coffee	0-34	
6	Halappa S/o Eraiah	Hirekere	Shiravase	62,88	Coffee	0-12	
7	Mallalah S/o Giddalah	Hirekere	Shiravase	62,88	Coffee	0-20	
8	Lalitha W/o Puttaswamy	Hirekere	Shiravase	87,88	Coffee	0-10	
9	Mamatha W/o Revanna	Hirekere	Shiravase	87,88	Coffee	0-20	
10	Bhadramma W/o Siddalah	Hirekere	Shiravase	85	Coffee	0-30	
11	Siddalah S/o Biyalaha	Hirekere	Shiravase	62	Coffee	0-10	
12	Rudresh S/o Siddalah	Hirekere	Shiravase	82,88	Coffee	1-20	
13	Jayamma W/o Eraiah	Hirekere	Shiravase	87,88	Coffee	0-20	

Sd/-
Village Accountant
Shiravase Circle,
Chikkamagaluru Taluk

Sd/-
Revenue Inspector
Jagara Hobli,
Chikkamagaluru Taluk

Sd/-
Deputy Tahasildar
Nada Kacheri, Jagara Hobli,
Chikkamagaluru Taluk

Sd/-
Deputy Range Forest Officer,
Muthodi Section,
Muthodi Range, Mallandur.

Sd/-
Panchayat Development Officer,
Gram Panchayat, Shiravase,
Chikkamagaluru Taluk

Sd/-
Range Forest Officer,
Muthodi Range, Mallandur,
Chikkamagaluru Division

Sd/-
Tahasildar
Chikkamagaluru Taluk,
Chikkamagaluru

Sd/-
Assistant Director of Land Records,
Chikkamagaluru Sub Division,
Chikkamagaluru

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ment (Services)
Department

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CHIKKAMAGALURU FOREST DIVISION

List of Encroachers who are losing Only Land In "Maskali Reserve Forest"

Sl No	Name of Encroachers	Sub Village	Village	Sy No	Crop	Extent in A-G	Remarks
1	Ramesh S/o Seena poojarl	Hembralli	Shiravase	198	Coffee	0-20	
2	Shridhara S/o Gudda poojarl	Hembralli	Shiravase	198	Coffee	0-20	
3	Halappa S/o Dyavaiah	Hirekere	Shiravase	89	Coffee	2-11	
4	Lokesh S.M S/o Mallalah	Hirekere	Shiravase	89	Coffee	2-22	
5	Rudralah S/o Badiyalaha	Hirekere	Shiravase	89	Coffee	0-34	
6	Halappa S/o Eralah	Hirekere	Shiravase	62,88	Coffee	0-12	
7	Mallalah S/o Giddalah	Hirekere	Shiravase	62,88	Coffee	0-20	
8	Lalitha W/o Puttaswamy	Hirekere	Shiravase	87,88	Coffee	0-10	
9	Mamatha W/o Revanna	Hirekere	Shiravase	87,88	Coffee	0-20	
10	Bhadramma W/o Siddalah	Hirekere	Shiravase	85	Coffee	0-30	
11	Siddalah S/o Blyalaha	Hirekere	Shiravase	62	Coffee	0-10	
12	Rudresh S/o Siddalah	Hirekere	Shiravase	82,88	Coffee	1-20	
13	Jayamma W/o Eralah	Hirekere	Shiravase	87,88	Coffee	0-20	

Sd/-
Village Accountant
Shiravase Circle,
Chikkamagaluru Taluk

Sd/-
Panchayath Development Officer,
Gram Panchayath, Shiravase,
Chikkamagaluru Taluk

Sd/-
Revenue Inspector
Jagara Hobli,
Chikkamagaluru Taluk

Sd/-
Range Forest Officer,
Muthodi Range, Mallandur,
Chikkamagaluru Division

Sd/-
Deputy Tahasildar
Nada Kacheri, Jagara Hobli,
Chikkamagaluru Taluk

Sd/-
Tahasildar
Chikkamagaluru Taluk,
Chikkamagaluru

Sd/-
Deputy Range Forest Officer,
Muthodi Section,
Muthodi Range, Mallandur.

Sd/-
Assistant Director of Land Records,
Chikkamagaluru Sub Division,
Chikkamagaluru

9/5 and 10/11/2018
110. V. K. KUMAR (Services)

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14	Neelamma W/o Chandralah	Thotadamakki	Byaravalli	353	Coffee	2-04	
15	Eralah S/o Guddalah	-	Byaravalli	353,385,376	Coffee	5-20	
16	Ningalah S/o Ganina Chikkaiah	-	Byaravalli	442	Coffee	0-36	
17	Manjunath S/o Chikkalah	-	Byaravalli	385	Coffee	0-08	
18	Kallesh S/o Mediyalah	-	Byaravalli	385,353	Coffee	4-0	
19	Krishna S/o Ramaiah	-	Byaravalli	353	Coffee	2-05	
20	Puttaiah S/o Dyavalaiah	-	Byaravalli	353	Coffee	0-36	Before 78
21	Nandish S/o Manjunath	-	Maskali	71	Coffee	2-32	
22	Naveena S/o Manjunath gowda	-	Maskali	71	Coffee	2-36	
23	Ramamma W/o Thiruma shetty	-	Maskali	62	Coffee	7-26	
24	Lakshmana shetty S/o Sheshappashetty	-	Maskali	62	Coffee	2-12	
25	M.S.Prakash S/o Sheshappashetty	-	Maskali	62	Coffee	2-12	
26	G.A.Roopa W/o Shanthappa shetty	-	Maskali	62	Coffee	2-00	
27	M.S.Shankara S/o Sheshappashetty	-	Maskali	62	Coffee	2-00	
28	Nagesh M.N S/o Ningappa shetty	-	Maskali	62	Coffee	1-00	
29	Vedha W/o Raghu	-	Maskali	62	Coffee	3-00	
30	Dakshayani yane Sumithra W/o Late M.S. Poornesh	-	Maskali	62	Coffee	2-00	
31	Jagadisha S/o Chandregowda	-	Shirguri	114	Coffee	0-13	
32	M.A.Jaganotah S/o Annesowda	-	Karguru	96	Coffee	3-03	

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DOCUMENT - 4

List of Encroachment areas Evicted in Excess of grants and recovered in Maskali Reserve Forest

SLN o.	Name of the Occupant	Encroachment area recovered		
		Village	Sy. No.	Extent (A-G)
1	2	3	4	5
1	Fayaz ali	Shirvase	89	8-20
2	Elvira Rodriguez	Shirvase	187,188	15-00
3	Shidlagatta Estate	Shirvase	89,168	17-32
4	Yana Pinto	Shirguru	114	56-00
5	Manjaiah Shetty & Others	Shirguru	114,116,117	3-00
6	Hulikhan	Shirguru	114	4-00
7	M T Govindashetty	Maskali	60,62	6-00
8	A G Girish	Maskali	58	23-00
9	Kabbinkhan	Shirguru	114	2-17
10	A Nagappa Gowda	Maskali	52,53,54,55	69-35
11	Sitric Rebello	Byaravalli	173	5-00
12	Sanchitha Estate	Byaravalli	173	2-00
13	Manigowda	Byaravalli	343	20-00
14	K M Shashidhara Shivagange	Byaravalli	353,374/2, 671	16-00
15	Ginimav Estate	Byaravalli	173 (New Sy No-	5-00
16	G R Venkataramu	Byaravalli	173,348	47-00
17	Siddarabetta Estate	Byaravalli Bhagamane	173 22 (New Sy No-54)	11-00
18	T M Jagadish	Byaravalli	385	1-19
19	Ajiloor Estate	Byaravalli Bhagamane	173 22 (New Sy No-54)	15-00
20	Mubharak Estate	Karguru	89	7-30
21	Nandini, W/o D S Harish	Karguru	89,96	4-00
22	B H Channappa Gowda	Berangodu	167	2-00
23	B B Hirayanna Gowda	Berangodu	8	4-00
24	B A Mahesh, B A Poornesh	Berangodu	8,169	3-00
25	K F Lolakshi	Berangodu	8	4-00
26	Mohammed Hussain Shariff & Others	Shirvase	168	17-11
27	L J F Rebello, Upper Kuttin khan	Shirvase	168,187	83-20
Total Encroachment area recovered				453-24

Sd/-

(Shri Manjunath K)
Range Forest Officer
Muthodi Range, Mallandur

Sd/-

(Shri Ramesh Babu)
Assistant Conservator Of Forests & TA to DCF
Chikkamagaluru Division, Chikkamagaluru


Deputy Conservator Of Forests
Chikkamagaluru Division, Chikkamagaluru

Grant made before 1944

Annexure-1

Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy, No. and Date	Present possessor	Records Enclosed	Remarks
1	Patel Basavegowda	Shirvase	89 (New No. 339)	8-10	SDM Chikmagalur S3 C 1039/42 dt 16-08-1943 (Record No. SFG 41/42-43)	Fayaz Ali S/o Mahamad Hussain	1. Grant Order 2. RTC	Auction Sale Confirmed by the SDO
2	Basavegowda	Shirvase	339/1	1-20	SDM Chikmagalur NDIs DR 52/41-42 dt. 24-1-42 (Record No. SFG-53/40-41) SC 95/41-42	S M Shalini D/o Siddamma	1. Saguvalli Chit 2. RTC	Auction Sale Confirmed by the SDO
3	Basavegowda	Shirvase	339/2	0-20	SDM Chikmagalur NDIs DR 52/41-42 dt. 24-1-42 (Record No. SFG-53/40-41) SC 95/41-42	Hema W/o S S Marjgowda	1. Saguvalli Chit 2. RTC	Auction Sale Confirmed by the SDO
4	Basavegowda	Shirvase	339/3	4-01	SDM Chikmagalur NDIs DR 52/41-42 dt. 24-1-42 (Record No. SFG-53/40-41) SC 95/41-42	S S Mallesh S/o Siddagowda	1. Saguvalli Chit 2. RTC	Auction Sale Confirmed by the SDO
5	C S Craferd	Shirvase	150	10-29	SDM Chikmagalur SC 111/35-36 (Record No. SFG-70/35-36)	K L Mahesh,	1. Saguvalli Chit 2. RTC	Auction Sale Confirmed by the SDO
6	C S Craferd	Shirvase	168 (New No. 345)	72-17	SDM Chikmagalur 1932-33	L J F Rebello S/o R T A Rebello	1. ILR & RR 2. RTC	
7	C S Craferd	Shirvase	187 (New No. 398)	25-08	SDM Chikmagalur S3C 819/43-44 dt. 13-08-1944 (Record No. SFG 18/43-44)	L J F Rebello S/o R T A Rebello	1. Saguvalli Register Extract 2. ILR & RR 3. RTC	
8	C S Craferd	Shirvase	187 (New No. 351)	5-20	SDM Chikmagalur Ddis DR 117/42-43	L J F Rebello S/o R T A Rebello	1. Tippiani Utter 2. RTC	
9	C S Craferd	Shirvase	187 (New No. 350)	74-25	SDM Chikmagalur Ddis DR 102/43-44	L J F Rebello S/o R T A Rebello	1. Tippiani Utter 2. RTC	

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Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy. No. and Date	Present possession	Records Enclosed	Remarks
1	2	3	4	5	6	7	8	9
10	L J F Rebello	Shirvase	186	33-05	SDO Chikkamagalur N Dis DR S2 801/39 dt. 7-5-40 (Record No. SFG 56/38-39)	L J F Rebello S/o R T A Rebello	1. Grant Order 2. RTC	
11	Eera S/o Dodda	Shirguru	3	8-33	DC Chikkamagalur D Dis DR 37/42-43 dt 25-08-43 S C No. 68/43-44	Elyra Rodriguez	1. Grant Order 2. Saguvall Chit 3. RTC	
12	Martis	Shirguru	18	2-20	SFG 45/40-41 SC No. 94/41-42	Rohari Paul Rebello, S/o Alwin Rebello	1. RTC 2. ILR and RR	
13	B Pinto	Shirguru	107	5-33	SDO No. Order No. S3C 476/44-45 dt. 19-01-45 SC No. 114/44-45 Dt. 31.01.45	John Adil Kamath Pinto	1. Saguvall Chit Register Extract 2. RTC	
14	B L Krishnegowda	Masagali	56	4-13	S D O Chikkamagalur SC No. 7/40-41 (Record No. AF 171/39-40)	A G Girish S/o Gundappa Gowda	1. Saguvall Chit Register Extract 2. RTC	Auction Sale Confirmed by the S D O
15	B L Krishnegowda	Masagali	57	2-26	S D O Chikkamagalur SC No. 8/40-41 (Record No. AF 172/39-40)	A G Girish S/o Gundappa Gowda	1. Saguvall Chit Register Extract 2. RTC	Auction Sale Confirmed by the S D O
16	J M Rodriguez	Shirvase	89 (New No. 334)	7-32	Deputy Commissioner Chikkamagalur Order No. D dis DR 112/36-37 dt. 7-7-1937 SC 43/38-39 (Record No. SFG 66/36-37)	Kamala W/o Jagadish	1. Survey Tippani Ulkar 2. Saguvall Chit 3. R T C	
17	G M Rodriguez	Shirvase	148	12-36	Deputy Commissioner Chikkamagalur Order No. M4 2104/35-36 dt. 10-12-1935 (Record No. SFG 99/34-35)	1. Kamala W/o Jagadeesh 2. Sandeep J	1. Saguvall Register Extract 2. R T C	Auction Sale Confirmed by the S D O
18	C S Craford	Shirvase	329	45-05	Deputy Commissioner Chikkamagalur Order No. D dis DR 120/34-35 dt. 27-05-1935	1. Kamala W/o Jagadeesh & Sandeep J 2. K L Mahesh	1. Survey Tippani Ulkar 2. R T C	

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Sl. No.	Name of the Grantee	Village	Sy No.	Extent (Acres / Guntas)	Grant Authy, No. and Date	Present possession	Records Enclosed	Remarks
1	2	3	4	5	6	7	8	9
19	C S Craford	Shirvase	187 (New No. 349)	10-05	Deputy Commissioner Chikkamagalur Order No. D dis DR 177/33-34 SC No. 713/40-41	L G F Rebello S/o R T A Rebello	1. Survey Tippani Uttar 2. R T C	
20	M D'Souza	Byaravalli	173 (New No. 595)	5-00	Deputy Commissioner Chikkamagalur Order No. D dis DR 37/38-39	Dr Dharik A C Lobo, S/o S L Lobo	1. R T C 2. Tippanni Uttar extract	
21	Ciaro Machuo	Byaravalli	583	4-25	Deputy Commissioner Order 1936	Steven A S Rebello S/o R T A Rebello	1. R T C 2. RR, ILR 3. Tippanni Uttar extract	
22	Kallegowda S/o Siddegowda	Karguru	89 (New No. 119)	4-04	File No. 89/33-34 SC No. 200/34-35	B P Nandini W/o D S Harish	1. RTC 2. ILR & RR	
23	Basavegowda	Berangodu	17 (New No. 182)	4-13	Deputy Commissioner Chikkamagalur Order No. D dis DR 34/43-44 dt. 13-8-43	B B Hirayanna Gowda	1. RTC 2. Tippanni Uttar	
24	Mohammed Hussain Shariff & Others	Shirvase	168 (New No. 344)	3-27	D DIS Dr 291/26-27	1. Mohammed Hussain Shariff 2. L J F Rebello 3. Tanvir Ahmed Shariff 4. Nahida Nisfer	1. Survey Tippani Uttar 2. RR & ILR 3. RTC	Total 74-18 Acres Kharab 6-20 Balance 68-08 Acres has been granted in favour of Mohammed Hussain Shariff
			Total	357-27				


 Additional Deputy Commissioner
 Chikkamagaluru District
 Chikkamagaluru

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Annexure-II

Grant made between 1944 and 27-04-1978								
Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy, No. and Date	Present possession	Records Enclosed	Remarks
1	K R Laxmana Shetty	Shirvase	330	5-00	DDISM4LND 14 (Record No. SFG 358/64-65)	K L Mahesh S/o Laxmanashetty	1. Survey Tippani Utter 2. RTC	
2	K R Jagadish	Shirvase	396	4-22	DDISM4LND 14SR/67-68 dt. 28-12-67 (Record No. SFG 358/64-65) SC No. 1(2)/71-72	K R Jagadish & K L Mahesh	1. Saguvalli Chit 2. Pakka Book 3. RTC	The land has been granted on lease basis on 28-12-1967 The Same has been confirmed by the Deputy Commissioner Order No. M4 LCR 86/80-81 Dt. 1-4-81
3	V.V. Rodriguez	Shirvase	187 (New No. 370)	45-00	D.C. Chikkamagaluru M4 Dt 291/56-57 MR DR 286/56-57 SC No. 240,242,243/56-57 (Record No. SFG 81,82 & 83/56-57)	1. Elvira Rodriguez 2. Trover Rodriguez 3. Jude Rodriguez	1. Survey Tippani Utter 2. Saguvalli Chit Register Extract 3. RTC	
4	V.P. Rodriguez	Shirvase	188/b	5-00	SFG 284/62-63 SC No. 35/63-64	1. Elvira Rodriguez 2. Trover	1. RTC 2. ILR 3. Saguvalli Chit	
5	Kallegowda	Byaravalli	374/3	10-07	SC No. 22/56-57 (Record No. SFG 168/56-57)	Soujanya (Total Extant 3-25)	1. Saguvalli Chit 2. RTC	
6	K M Sharavathi	Byaravalli	375/2	9-21	Deputy Commissioner Chikkamagaluru order No. 1217 TRC 6221/70-71 dt. 26-12-1970 SC No. 69/71-72	K S Mahesha s/o K M Shashidhar	1. Saguvalli Register Extract 2. RTC	

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Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy, No. and Date	Present possession	Records Enclosed	Remarks
1	2	3	4	5	6	7	8	9
7	K M Sachidevi	Byaravalli	364/2	11-12	Deputy Commissioner B2 LND SR 45/71-72 dt. 21-1-72 (Record No. SFG 100/73-74) SC No. 9/73-74	K S Mahesh s/o K M Shashidhar	1. Saguvalli Register Extract 2. RTC	
8	Giddegowda s/o Annegowda	Byaravalli	343 (New No. 618)	2-00	SC No. 227/55-56	H N Manjunatha s/o H A Ningegowda	1. RTC 2. ILR	
9	M Paris s/o D G paris	Byaravalli	173 (New No. 590)	25-16	DC Chikkamagalur D Dis DR 93/42-43 SC No. 229/61-62	Stavan A S Rebello S/o R T A Rebello	1. Grant Order 2. Survey Tippani Uttar 3. RTC	
10	F J D'Souza	Byaravalli	173 (New No. 639)	4-00	SFC 55/62-63 SC No. 74/62-63	F J D'Souza	1. Saguvalli Chit 2. Tippanu Uttar 3. RTC	
11	F J D'Souza	Byaravalli	173 (New No. 640)	20-00	Divisional Commissioner Mysore LND II 6874/68-69 SC No. 8/68-69	F J D'Souza, Deepak Joseph D'Souza, Preinalatha D'Souza	1. Grant Order 2. Saguvalli Chit 3. RTC	The land has been granted on lease basis vide Deputy Commissioner Order NO. M6 LND 74/61-62 dt. 13-3-62 and the lease grant confirmed by the Divisional Commissioner Vide Order No. C Dis Lnd 6874/68-69
12	I M D'Souza	Byaravalli	173 (New No. 643)	10-00	Deputy Commissioner Order No. M4 LND(L) 48/76-77 SC No. 82/76-77	F J D'Souza	1. Saguvalli Chit Register Extract 2. RTC	
13	Benny D'Souza	Byaravalli	173 (New No. 646)	5-00	Deputy Commissioner Order No. B dis LND SR 71/72-73 dt. 30-6-73 (Record No. SFG 48/74-75) SC 2/75-76	Nanal Maria D'Souza s/o F J D'Souza	1. Survey Tippani Uttar 2. Saguvalli Chit Register Extract 3. RTC	D.F.O has given his consent vide letter No. T8R 288/74-75 Dated 24.2.1975

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Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy, No. and Date	Present possession	Records Enclosed	Remarks
1	2	3	4	5	6	7	8	9
14	F J D'Souza s/o L D'Souza	Byaravalli	173 (New No. 647)	10-00	Deputy Commissioner Order No. M4 LND(2) 48/76-77	Rita D'Souza	1. RTC 2. Mutation	D.F.O has given his consent vide letter No. TBR 288/74-75 Dated 24.2.1975
15	Benny D'Souza	Bhagmane	22 (New No. 55)	5-00	Assistant Commissioner Chikkamagaluru Order No. DAR 25/68-69 dt. 31-10-68 SC No. 6/68-69	Pais Donald D'Souza	1. Saguvali Chit 2. Tippani Uttar 3. RTC	
16	F J D'Souza	Bhagmane	22 (New No. 56)	5-00	Deputy Commissioner Chikkamagaluru Order No. D Dis 1792/PRC 7245/69-70 dt. 11-02-70 SC No. 5/70-71 dt. 04-04-70	F J D'Souza	1. RTC 2. RR 3. Uttar copy 4. Phodi Takhle	lease grant confirmed by the Deputy Commissioner vide order no d dis 1792/PRC 7245/69-70 dt. 11-02-70
17	J M Rodriguez	Bhagmane	22 (New No. 52)	2-00	Deputy Commissioner Order No. M6 LND 143/61-62 dt. 10.10.1962 SC 30/63-64	Wilfred herman Rodriguez	1. Grant Order 2. RTC 3. Tippani Uttar 4 RR 5 & 6	
18	J Rebello	Shirguru	114 (New No. 283)	10-00	Deputy Commissioner Chikkamagaluru Memo No. M6 DR 63/58-59 dt. 25.4.59 Sc NO. 88/58-59	Rohan Paul Rebello, S/o Alwin Rebello	1. RTC 2. Saguvali Chit Register Extract	
19	B Pinto	Shirguru	22	5-26	Deputy Commissioner Order No. M4 DR 223/56 57 dt. 12.1.57 Sc No. 184/57-58 (Record no. SFG 132/55-56)	B Pinto	1. Grant Order 2. Saguvali Chit 3. RTC	

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Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy, No. and Date	Present possession	Records Enclosed	Remarks
20	J Rebello	Shirguru	23	1-30	Deputy Commissioner Order No. M 4 119/61-62 dt. 14.2.62 Record No. KFG 09/60-61 Sc NO. 218/62-63	J Pinto	1. RTC 2. RR & ILR	
21	B Pinto	Shirguru	25	3-08	Deputy Commissioner Order No. M6 DR 19/55-56 dt. 22.8.55 Sc No. 204/55-56	Flora Pinto	1. Saguvali Chit Register Extract 2. RTC 3. RR & ILR	
22	A E R Pinto	Shirguru	26	2-25	Deputy Commissioner Order No. D Dis M4 DR 24/55-56 dt. 24.08.95 (Record No. SFG 3/55-56) SC No. 203/55-56	Flora Pinto	1. Grant Order 2. Saguvali Chit Register Extract 3. RTC	
23	B Pinto	Shirguru	27	10-27	Sub Division Officer Order No. 83 C 113/PR 39/56-57 dt. 23.8.56 (Record No. SFG 4/55-56) Sc NO. 48/56-57	A E R Pinto	1. Saguvali Chit Register Extract 2. RTC	
24	Annappashetty s/o Rangashetty	Shirguru	117 (New No. 253)	5-08	SDO Chikkamagaluru Order No. S3C 826/50-51 (Record No. SFG 65/49-50) SC No. 117/51 52 dt. 04.07.51	Manjamma, Manjalah Shetty & Others	1. RTC 2. RR & ILR	
25	Mayigalah s/o Mayigalah	Masagali	93	5-00	M4 DR 68/55-56 SC 90/56-57	M T Govinda, s/o Thimma Shetty	1. RTC 2. ILR	
26	B P Rathnamma d/o Puttannagowda	Masagali	55 (New No. 96)	10-00	Deputy Commissioner Chikkamagaluru Order NO. M6 LND 208/60-61 dt. 09.3.61 SC 7/67-68	B P Rathnamma	1. Grant Order 2. Saguvali Chit 3. RTC	The lease grant has been confirmed by the Deputy Commissioner vide order No. D Dis M4 LND PR C 365/67-68 dt. 17-1-68

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Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy, No. and Date	Present possession	Records Enclosed	Remarks
1	2	3	4	5	6	7	8	9
27	Nagappagowda	Masagali	52 (New No. 97)	5-00	SFG 19/63-64 SC No. 58/63-64	A N Kiran s/o nagappagowda	1. Saguvali Chit Register Extract 2. RTC	The lease grant has been confirmed by the Assistant Commissioner Chikkamagaluru vide Order NO. S5 PR 169/67-68 dt. 18.12.62
28	B P Rathnamma	Masagali	52 (New No. 98)	5-00	SFG 18/63-64 SC No. 56/63-64	A N Kiran s/o Nagappagowda	1. Saguvali Chit Register Extract 2. RTC	
29	B P Lingappagowda	Masagali	55P	5-00	SC No. 8/67-68 dt. 30.12.1967	A N Devaraj s/o Nagappagowda	1. Saguvali Chit 2. RTC 3. ILR	
30	B P Lingappagowda	Masagali	55P	10-00	Deputy Commissioner Order No. L Dis DR 179/66-67 dt. 9-5-67 Sc No. 22/66-67	A N Devaraj	1. Grant Order 2. RTC	
31	A Nagappa Gowda	Masagali	55P	10-00	Deputy Commissioner Chikkamagaluru Order No. L Dis M4 PR 1789/66-67 dt. 08.05.67 (Record No. SFG 649/60 61) Sc 21/66-67	A N Devaraj	1. Saguvali Chit Register Extract 2. ILR 3. RTC	
32	B P Lingappagowda	Masagali	55/P4C	5-00	(LDIS M4 1A 1169/66-67, 08-05-67)	A N Devaraj	1. RTC 2. ILR	The lease grant has been confirmed by the Assistant Commissioner Chikkamagaluru vide Order NO. S3 PR 167/67-68 dt. 15.12.69 Permanent SC No. 6/67-68

9/11/71

Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy, No. and Date	Present possession	Records Enclosed	Remarks
33	B P Rathnamma	Masagali	55/P5D	10-00	Deputy Commissioner Chikkamagaluru Order No. L Dis M4 PR 1787/66-67 dt. 08.05.67 (Record No. SFG 670/80 61) SC 20/66-67	A N Kiran s/o Nageppagowda	1. Grant Order 2. RTC	
34	Ramegowda s/o Ramegowda	Karguru	123	2-05	SFG 56/48-49 SC NO. 149/49-50	K Ikyah Ahmed	1. RTC 2. ILR	The Auction Sale has been confirmed by the Amaldar
35	Ramegowda s/o Heggadegowda	Berangodu	18 (New No. 180)	2-21	Assistant Commissioner Order No. D Dis ODR 3/44-45 dt. 28.7.44AR 25/68-69 dt. 31-10-68 SC No. 6/68-69	B A Mahesh	1. RTC 2. Saguvli Chit 3, Tippant Uttar Extract	the lease grant has been confirmed by the Deputy Commissioner Chikkamagaluru vide Order No. M4 LND L 66/77-78 dt. 30.8.77 Permanent SC No. 52/77-78
36	Heggadegowda s/o Heggadegowda	Berangodu	167 (New No. 195)	5-00	Deputy Commissioner Chikkamagaluru Order No. S3 DR 149/81-82, M4 LND L 66/77-78 dt. 30.8.77 SC NO. 52/77-78	Prakash B C s/o Chennappagowda	1. Saguvli Chit 2. RTC 3. RR 873	
37	Chikkaiah	Byaravalli	353/P	2-00	Assistant Commissioner Chikkamagaluru SFG 33/59-60 SC No. 79/54-55	Gangamma, w/o Maragi Siddaiah	1. Saguvli Chit 2. RTC	DFO has given his consent for grant vide letter no. Chi 62-63 dt. 16.1.63
38	K S Kallegowda s/o Siddegowda	Byaravalli	374/1	07-15	(Record No. SFG 168/55 56) SC NO. 22/56-57	K S Mahesh s/o K M Shashidhar	1. Saguvli Chit 2. RTC	

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Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy. No. and Date	Present possession	Records Enclosed	Remarks
1	2	3	4	5	6	7	8	9
39	K S Kallegowda s/o Siddegowda	Byaravalli	375/1	10-00	Deputy Commissioner Chikkamagaluru Order No. D Dis MG LND 44/63-64 (Record No. SFG 45/63-64) SC No. 14/66-67	K S Mahesh s/o K M Shashidhar	1. Grant Order 2. Saguvali Chit 3. RTC	DFO has given his consent for grant vide letter no. C 3 DAR-CAL 3/66 dt. 16.1.1966
40	K S Mallegowda	Byaravalli	364/3	0-24	Tahsildar Chikkamagaluru Order No. 52/70-71 Saguvali Chit No. 22/68-69 dt. 29-12-70	K M Shashidhar s/o K S Mallegowda	1. RTC 2. Grant Order 3. Tippani Uttar Extract	
41	K S Mallegowda	Byaravalli	357 (New No. 669)	7-22	Tahsildar Chikkamagaluru Order No. 3/70-71 dt. 29.12.70	K M Shashidhar s/o K S Mallegowda	1. RTC 2. Grant Order 3. Tippani Uttar Extract	
42	Junjamina	Byaravalli	357 (New No. 668)	10-26	Deputy Commissioner B2 LND SR 45/71-72 dt 21.1.72	K S Mahesh s/o K M Shashidhar	1. Saguvali Chit Register Extract 2. RTC	
43	Junjamina	Byaravalli	357 (New No. 670)	6-10	Deputy Commissioner Chikkamagaluru Order No. BDL SR 45/71-72 dt 21.1.72	C R Malavika	1. RTC, 2. MR 3. Tippani Uttar Extract	
44	S L Lobo	Byaravalli	591	5-19	KAG 19/44-45	Selric P A Lobo s/o S L Lobo	1. RTC, 2. Uttar Extract	
45	J Rebello	Shirguru	5	7-20	Sub Division Officer Memo No. S3 C122 PR 73-54 dt. 24.9.54 (Record No. SFG 1/54-55) SC NO. 79/54-55	Alwin Rebello	1. RTC, 2. RR	Total revenue grants is 18-01 acres out of which 7-20 acres falls within RF.

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Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy, No. and Date	Present possession	Records Enclosed	Remarks
1	2	3	4	5	6	7	8	9
46	R K Abdul Hak	Karguru	122	5-00	Deputy Commissioner Chikkamagaluru memo No. M4 DR 162/54-55 dt. 20.1.55 (Record No. SFG 56/54-55) SC No. 77/55-56	Barkah Plantation and others	1. RTC, 2. ILR & RR	
			Total	355-00				

 24/2/18
 Additional Deputy Commissioner
 Chikkamagaluru District
 Chikkamagaluru

DOCUMENT-7

Grant made after 27-04-1978

Annexure-III

Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy. No. and Date	Present possession	Records Enclosed	Remarks
1	2	3	4	5	6	7	8	9
Grants made Between 27-04-1978 and 25-10-1980								
1	G R Venkataramu, s/o G T Rangappa	Byaravalli	173/P	30-00	Record No. SFG 360/70-71 Divisional Commissioner Mysore order no. LND II 249/73-74 dt. 15-03-74 SC no. 12/80-81	B A Rathnamma W/o Venkataramu	1. Saguvall Chit Register Extract 2. RTC 3. MR	
2	J R Narayanaswamy	Byaravalli	173/P	16-00	Deputy Commissioner Chikmagalur Order No. B Dis LND SR 13/73-74 dt. 30-08-73 (Record No. SFG 360/70-71) SC NO. 13/80-81	B A Rathnamma W/o Venkataramu	1. Saguvall Chit Register Extract 2. RTC 3. MR	
3	B A Nagappa Gowda	Byaravalli	173/P	10-00	Deputy Commissioner Chikmagalur Order No. D Dis LND SR 14/73-74 dt. 30-08-73 (Record No. SFG 357/70-71) SC NO. 14/80-81	K T Nainakshi, w/o B A Nagappa Gowda	1. Saguvall Chit Register Extract 2. RTC 3. MR	
			Total	66-00				

Additional Deputy Commissioner
Chikmagalur District
Chikmagalur

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Annexure-IV

Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy. No. and Date	Present possession	Records Enclosed	Remarks
1	2	3	4	5	6	7	8	9
Grants made after 25-10-1989								
1	Seena Poolari, S/o Appu Poolari	Shirvase	168/A	0-25	AC Chikkamagaluru Order No. NCR 9/63/82-83 dt. 19-12-83 SC No. 221/82-83	Muttamma	1. Saguvali Chit Register Extract 2. Mutation Register Extract 3. RTC	
2	A K Nagesh s/o Kolagowda	Masagali	58/1	5-00	Deputy Commissioner Chikkamagaluru SC No. 60/66-67	A G Girish S/o Gundappagowda	1. Saguvali Chit 2. RTC	
3	A G Girish s/o A P Gundappagowda	Masagali	58/2	5-00	Deputy Commissioner Chikkamagaluru SC No. 59/66-67	A G Girish S/o Gundappagowda	1. Saguvali Chit 2. RTC	
4	B A Mahesh S/o B E Annegowda	Berangodu	18/P	2-00	Tahasildar Chikkamagaluru SC No. 372/03-04	B A Mahesh S/o Annegowda	1. Saguvali Chit Register Extract 2. RTC	
5	Benny D'Souza	Shagmane	22/New No. 57)	4-00	Deputy Commissioner Chikkamagaluru Order No. M2 LC CR 68/86-87 SC No. 32/86-87	Janet Maria D Souza	1. Saguvali Chit 2. RTC	
6	B L Mallesh S/o Lingegowda	Berangodu	167/P1	3-00	Tahasildar Chikkamagaluru Order NO. Avathi TT 398/98-99 dt. 25-02-2002 SC No. 160/2002-03	B L Mallesh S/o Lingegowda	1. Grant Order 2. Saguvali Chit Register Extract 3. RTC	
7	K P Lakshmi	Berangodu	8/P	3-14	Tahasildar Chikkamagaluru Avathi TT 284/98-99 dt. 25-02-2002 SC No. 16/2003-2004	K P Lakshmi	1. Grant Order 2. Saguvali Chit Register Extract 3. RTC	

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DOCUMENT-

Karnataka Gazette, Thursday May 16, 1991 Part IV - 2C (ii)

Notification No. HAF 3 FAF Bangalore, dated: 19-04-1991

In exercise of the powers vested with the Government of Karnataka vide Section 30 of Mysore Forest Act, 1901 (Act No. 2, 1900), it is hereby directed to order to exclude a part of the area published in Government notification no. AF 2257-FT 36-44-2 dated 22-19-1944 from the State Forest from the date of publication of this notification.

SCHEDULE

District	Taluk	Hobli	Village	Sy. No.	Total Area	De-notified Area
Chikkamagaluru	Chikkamagaluru	Jagara	Shrivase	345	72.17	72.17
				349	10.05	10.05
				350	74.25	74.25
				351	5.20	5.20
				186	33.05	33.05
				370	45	45

Referred to this part, the details of the corrections made to the Maskali State Forest is as below.

The boundary line starts from the Southeast corner of the Survey no. 170 and proceeds in the eastern direction and further joins the Southern boundary line of Sy. No. 344. From this point the line continues along the same for about a distance of three chains and slightly bends in East direction and proceeds further along the Sy. No. 248 to join the Western boundary line. Then from this point the D-line runs in Southern direction of Sy. No. 349 along Eastern and Southern boundary lines and passes along the Southern portion of the Sy. No. 349. Then the line runs in the Southern direction of the boundary of Sy. No. 350 and proceeds further to meet the junction point of the Sy. Nos. 349, 350, 187 and meets the two boundary stones. Then the boundary line runs in Southwest, Southeast, East and Northwestern direction along the said Sy. Nos. and further runs till it reaches the tri-junction point of Sy. Nos. 350, 351 and 370. From this point the boundary runs along the Northeastern boundary of Sy. No. 350 and reaches the tri-junction point of Sy. Nos. 350, 183 and 187. From this point the boundary line runs in Northeast direction of Sy. No. 186 and further along the Eastern boundary of Sy. No. 370 till it reaches the tri-junction point of Sy. Nos. 370, 187 and 225. Then the line runs in Western direction for about 25 chains and passes along the Northern boundary of Sy. No. 370 till it reaches the tri-junction point of Sy. Nos. 188, 370 and 345. Then from this point the line runs in Southwest direction and further runs in Northern boundary of Sy. No. 270 till it reaches the tri-junction point of Sy. Nos. 184, 188 and 174 and then the line finally joins the D-line of the Maskali Manna Jungle at the starting point.

By Order and in the name of the Governor,
Govt. of Karnataka

N. L. SUDHINDRA

Under Secretary to the Government
Animal Husbandry, Fisheries & Forest Department

Note: Translated as per the content visibility on the copy available in Kannada.

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8	B M Theerthe Gowda	Berangodu	8/P	3-00	Tahasildar Chikmagalur Avethi TT 481/98-99 dt. 25-02- 2002 SC 134/2002-03	B M Theerthe Gowda	1. Grant Order 2. Saguvai Chit Register Extract 3. RTC	
9	B M BasavaRaju	Berangodu	8/P	3-00	Tahasildar Chikmagalur Avethi TT 51/98-99 dt. 25-02- 2002 SC 137/2002-03	B M BasavaRaju	1. Grant Order 2. Saguvai Chit Register Extract 3. RTC	
10	Chandrasekhar, S/o Lingegowda	Berangodu	167/P1	3-00	Tahasildar Chikmagalur Avethi TT 400/98-99 dt. 25-02- 2002 SC 131/2002-03	Chandrasekhar, S/o Lingegowda	1. Grant Order 2. Saguvai Chit Register Extract 3. RTC	
			Total	31-00				

[Signature]
Additional Deputy Commissioner
Chikmagalur District
Chikmagalur

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Government of Karnataka

No. AHFF 8 FAF 93(27-1)

Karnataka Government Secretariat,
Multi Storied Building,
Bangalore, Date: 21-2-1994Notification

In exercise of the powers vested with the Government of Karnataka vide 30th Act of Mysore Forest Act, 1900 (Act No. 2, 1900), it is hereby directed to order to exclude a part of the area published in Government notification no. AF 2257- FT 36-44-2, dated 22-11-1944 from the State Forest from the date of publication of this notification.

District	Taluk	Hobil	Village	Survey Number		Total area in acres	Area excluded in acres
				Old Number	New number		
Chikmagalur	Chikmagalur	Avathi	Byaravalli	173	639	330-00	4-00
				173	645		2-30
							6-30

East :- Somavahini Halla
South :- Sy. No. 641
West :- Sy. No. 641
North :- Sy. No. 641 and 590

Checkbandhi

The details of the area related to corrected Maskal State Forest are as under.	
North	The traverse line starts from northwest corner and turns towards east with bearing 95° for 6 chains and joins right portion of somavahini halla
East	Traverse line continues from right portion of Somavahini halla for 13 chains and joins Sy no. 645 in southwest corner.
South	Traverse line again starts in 267 degree and turns towards west for 3 chain and reach southwest corner in Sy no. 615
West	Traverse line starts at in southwest corner in Sy. No. 645 and turns towards northwest in sy no. 641, 639 and 645 between 325 degree bearing for 2 chains, 20 degree bearing for 4 chains and 325 degree bearing for 8 chains at 358 degree bearing for 2.50 chains and 300 degree bearing for 2 chains and 20 degree bearing for 4 chains and 325 degree bearing for 2 chains and join sy. no. 590. starting point in southwest point

Note: 1 chain is equal to 10 meters

In the name of the Governor of Karnataka and
by his order

Sd/-

(R. Guru Raja)

Under secretary to the Government,
Forest, Environment and Ecology Department.

To the Compiler, Karnataka Gazette, Bangalore for information with requests to publish this notification in the state Gazette and 25 copies of printed notifications be sent to the Deputy Conservator of Forests, Chikmagalur and 10 copies to the Government.

Copy sent to the following

1. Principal Chief Conservator of Forests, Bangalore
2. Conservator of Forests, Shimoga Circle, Shimoga
3. Deputy Conservator of Forests, Chikmagalur Division, Chikmagalur
4. Deputy Commissioner, Chikmagalur District, Chikmagalur
5. Weekly Gazette
6. Section Guard File

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Government of Karnataka

No. AHFF 8 FAF 93(27-1)

Karnataka Government Secretariat,
Multi Storied Building,
Bangalore, Date: 21-2-1994.Notification

In exercise of the powers vested with the Government of Karnataka vide 30th Act of Mysore Forest Act, 1900 (Act No. 2, 1900), it is hereby directed to order to exclude a part of the area published in Government notification no. AF 2257- FT 36-14-2 dated 22-11-1944 from the State Forest from the date of publication of this notification.

District	Taluk	Hobli	Village	Survey Number		Total area in acres	Area excluded in acres
				Old Number	New number		
Chikmagalur	Chikmagalur	Avathi	Bhagamane	22	53	110-00	5-00
				22	55	-	5-00
				22	56	-	5-00
					22P	-	4-00
North	Balance portion of		Checkbandhi				19-00

- North :- Balance portion of Sy. No. 22 of Bhagamane Village
 East :- Border of Bhagamane Village
 South :- Sy. No. 54 of Bhagamane Village
 West :- Sy. No. 20 and 22 of Bhagamane Village

The details of the Maskal State Forest area related to this part are as under.	
North	- The traverse line starts from northwest in Sy. No. 22p and 20-Bhagamane Village with bearing 87° for 22 chains towards east and joins northeast corner.
East	- Traverse line starts from northeast corner at bearing 174-00° and turns towards south west and passing through the foot path in sy. No. 22 and 53 and crossing boundary line of Baravally village in sy. no. 53,55,56 for 38.50 chains and reaches sy. no. 56 at the south direction. Further, the traverse line passes in bearing 210° for 13 chains
South	- Traverse line starts from bearing 280° and turns towards west line in sy. No. 54 and 20 of the boundary and sy. No. 56 southwest crosses 5 chains
West	- Traverse line starts at bearing 345° in Sy. No. 56,55,53 and D line of Maskal state forest for 40 chains and joins the foot path. Further the line passes for 9 chains at bearing 335° and joins the original point.

Note: 1 chain is equal to 10 meters

In the name of the Governor of Karnataka and
by his order
Sd/-
(R. Guru Raja)

Under secretary to the Government,
Forest, Environment and Ecology Department.

To the Compiler, Karnataka Gazette, Bangalore for information with requests to publish this notification in the state Gazette and 25 copies of printed notifications be sent to the Deputy Conservator of Forests, Chikmagalur and 10 copies to the Government.

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1. Principal Chief Conservator of Forests, Bangalore
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3. Deputy Conservator of Forests, Chikmagalur Division, Chikmagalur
4. Deputy Commissioner, Chikmagalur District, Chikmagalur
5. Weekly Gazette
6. Section Guard File

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256. Karnataka Gazetteer, Thursday March 10, 1994 part IV 2C(ii)

G.O No. AHFF 8 FAF 93 Bangalore, dated: 21 Feb. 1994

In exercise of the powers vested with the Government of Karnataka vide 30th Act of Mysore Forest Act, 1901 (Act No. 2, 1900), it is hereby directed to order to exclude a part of the area published in Government notification no. AS 2257-FT 36-14-2 dated 22-11-1944 from the State Forest from the date of publication of this notification.

District	Taluk	Hobli	Village	Old Sy.no.	New Sy. No.	Total Extent in Acres	Disforested area in Acres
Chikkamagaluru	Chikkamagaluru	Avathi	Byaravalli	173	640	330.00	20.00
					643		10.00
					644		1.20
					646		5.00
					Total		36.20

Checkbandi

- East: Remaining areas of Sy. No. 175 and 590 of Byaravalli village
 South: Sy. No. 641 and 590 of Byaravalli village.
 West: Boundary of Bagmane village
 North: The balance area of Sy. No. 648 and 73 in Byaravalli village.

Boundary of the Maskali State Forest after disforestation is given bellow:

- North: The line starts from the tri-junction point of Bhagmane village point north-east corner of Sy. No. 644 and Sy. No. 648 runs 6 chains with a bearing of 70°, again it runs for a distance of 9 chains towards south-east direction with a bearing of 130°. The line further runs towards north-west to a distance of 16 chains and meets the boundary of Sirvase village and further moves to a distance of 5.5 chains with a bearing of 80° and later runs towards south-east for a distance of 27 chains with a bearing of 125° and finally the line covers of a distance of 2.5 chains with a bearing of 72° and 1.5 chains with a bearing of 138°.

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East: The lines start from the north-eastern point of Sy. No. 243 and moves towards to the south-west direction through sy. No. 643 and 640 for a distance of 5 chains with a bearing of 228° and again to a distance of 8 chains with a bearing of 224° , 5 chins with a bearing of 234° and covers a distance of 7 chins with a bearing of 239° , later the line traverse towards south and moves for a distance of 6.5 chains for a bearing of 180° and 7 chains with a bearing of 205° and 4.5 chains with a bearing of 220° and finally meets the south-east corner of Sy.No. 240.

South: The lines starts from south-east corner of Sy. No. 240 and moves in the South- West direction and meets the boundary of Bagmane Village with a distance of 4.5 chins with a bearing of 280° and then for a distance of 8.5 chains with a bearing of 215° .

West: The lines start from southern point of Sy. No. 240 and traverse to a distance of 42 chains with a bearing of 353° and meets the boundaries of Bagmane and Byaravalli villages and finally the starting point.

Note: 1 chain means 10 miters.

By the order and in the name of Karnataka
The Governor of Karnataka

R. Gururaj
Under Secretary to Government
Department of Forests, Environment and
Ecology

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DOCUMENT

No.D.A.R.(G.L.)4916/70-71.

Office of the
Forest Officer
Chikmagalur, Dt. 14th Sep. 1971To
The Tahsildar,
Chikmagalur Taluk,
Chikmagalur.

Sir,

Sub: Wrong inclusion of Hidarvelli land Sri.
Maskali, State Forest, Muthodi-Rango,
Chikmagalur Taluk.

There are a number of private lands and encroachments in Maskali State Forest, (Chikmagalur Taluk) and action is to be taken to exclude the same from total extent of the State Forest. The Chief Conservator of Forest, has called an urgent report in regarding and date of land grant in each of the following Survey Nos. where there are cultivated lands existing now.

LIST OF THE VILLAGES

	<u>SV. NOS.</u>
1) Kargoor	89, 112, 9, 96
2) Korangodu	167, 169, 159, 8, 17, 50
3) Maskali	55, 53, 54, 52, 51, 56, 57, 58, 60, 62, 61, and 71
4) Sirvase	89, 88, 87, 338, 336, 146, 329, 330, 150, 168, 345, 349, and 320 370, 186, 187, 188, and 190.
5) Sirgoor	110, 11, 112, 113, 114, 115, 116, 118, 109, 103, 107, 106, 105, 10, 103, 27, 28, 26, 25, 24, 23, 22, and 2.
6) Dagamane	22.
7) Hidarvelli	173, 390, 395, 383, 391, 389, 340, 349, 350, 352, 348, 349, 340, 346, 345, 344, 343, 342, 354, 353, 357, 364, 374, 37, 384, 386, 375.

I request you to kindly intimate the following information in respect of the land granted in each of these Survey Nos.

- 1) Extent of lands granted 2) Year of grant with Survey Nos. and date.
3) Name of the grantee.

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DOCUMENT -

Densification

Proceedings of the Government of Mysore:

Sub:- Wrong inclusion of certain Miduvali lands resumed survey numbers and certain assessed coffee lands in Maskali State Forest - Chikmagalur District:

Agriculture and Forest Departments:

Order No. AFD 69/DST 57 dated, Bangalore 23rd September 1959

Read:- 1. Letter No. B3.4.36/57, dated 18-5-1959 of the Chief Conservator of forests in Mysore, Bangalore.

2. Letter No. B3.4.36/57, dated 16.7.1959 of the Chief Conservator of forests in Mysore, Bangalore;

ORDER:- It was represented that certain Miduvali lands and assessed survey numbers of Byaruvali village of Chikmagalur Taluk have been included in the Maskali State Forest and requested that these be released to the Revenue Department.

The matter was enquired into and it was found that well wooded areas in Survey numbers 173/240, 345/374 and 366 taken over for the constitution of the Maskali State Forest are all under coffee crop; that private residences have been built up in the areas, schools constructed and roads formed. It is also reported that some of these lands were released prior to the constitution of the State Forest and some others viz survey numbers 159/240, 442/357, 113/364, 439/374, 366/366, 137/345, 440/376, 141/173 and 135/343 have been ordered to be released after the constitution of the State forest by the Revenue department, but without reference to the Forest Department.

In view of encroachments and disposals of lands for cultivation by the Revenue Department within the Maskali state Forest limits and also in view of the fact that the D. Line of the State Forest was not originally cut, Government is pleased to direct that those areas should be excluded from the State Forest and the D. Line realigned treating Survey No. 345 of Byaruvali village as an enclosure within the forests.

The conservator of forests, working Plans and Development Circle, Bangalore should take immediate steps for the re-alignment and marking of the D. Line of Maskali State Forest excluding the areas already disposed off by the Revenue Authorities and those encroached by ryots.

The Chief Conservator of forests in Mysore, Bangalore should submit draft de-notification notification in this behalf early.

By order and in the name of the
Governor of Mysore,
Sd/- S.A. Hannen,
Deputy Secretary to the Government,
Agriculture and Forest Departments.

"True copy"

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-2-

Eri. C.V. Nanjagowda, Surveyor of this office is deputed to approach you in this behalf and obtain the details.

This may please be treated as most urgent.

Yours faithfully,

Sd/-

(N. SAMPANGI)
Division Forest Officer,
Chikmagalur Division.

Copy forwarded to the Deputy Commissioner, Chikmagalur.
The Tahsildar, Chikmagalur may kindly be intimated to furnish the above informations immediately.

Division Forest Officer,
Chikmagalur.

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DOCUMENT - 1

GOVERNMENT OF KARNATAKA

No: FEE 41 FGL 2019 (P-1)

Karnataka Government Secretariat,
M.S. Building,
Bengaluru, dated 29-04-2019.

From:
The Additional Chief Secretary to Government,
Forest, Ecology and Environment Department,
M.S. Building,
Bangalore.

To:
The Deputy Commissioner,
Chikkamagalur District,
Chikkamagalur.

Sir,

Sub: Cancellation of land grants made in the Reserve Forest
without obtaining prior permission of Central
Government after 25-10-1980.
Ref: Report submitted by CEC to the Hon'ble Supreme
Court dated 26-12-2018.

With reference to the above, copy of the report submitted to the Hon'ble Supreme Court by the CEC is enclosed. Member Secretary, CEC has made five recommendations. The second recommendations is as under.

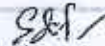
(ii) all the grants issued after 25-10-1980 in the notified reserve forest without the authority of law and in violation of the provisions of the FC Act, 1980 may be declared as being illegal and the State Government may be directed to take action to cancel all such grants forthwith.

After examining the proposal, it is come to know that after commencement of Forest (Conservation) Act, 1980 on 25-10-1980 grants has being made to 11 persons to the extent of 36.39 acres in Reserve Forests of Chikkamagalur District. I am directed to request you to take necessary action to

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cancel these grants and take back the position of the land from the encroachers and to hand over the lands to Forest Department and to submit compliance report to the Government.

Yours faithfully,



(H.C. Rajendra Kumar)
Deputy Secretary to Government (Services),
Forest, Ecology and Environment Department.

Copy to:

1. The Principal Chief Conservator of Forest (HoFF), Aranya Bhavan, Malleshwaram, Bengaluru.
2. The Chief Conservator of Forest, Chikkamagalur Circle, Chikkamagalur.
3. The Deputy Conservator of Forest, Chikkamagalur Division, Chikkamagalur.

ATTESTED



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DOCUMENT- 16

Annexure-V

Grants for which records are available							
Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy. No. and Date	Present possession	Records Enclosed
1	2	3	4	5	6	7	8
1	H.M. Marjagowda a/o Annapasagowda	Byaravalli	388	5-28		T.M. Jagadish. S/o M.U. Manjunatha Gowda	1. RTC From 1965-66 existing in the name of grantee Or their successors
2	Dyavalaiah, Dyavamma	Byaravalli	353/P	1-00		Dyavalaiah, Dyavamma	1. RTC From 1965-66 existing in the name of grantee Or their successors
3	Siddalaiah and Chikkaiah	Byaravalli	353/P	1-00		Doddamma d/o Dyavalaiah	1. RTC From 1965-66 existing in the name of grantee Or their successors
4	K.S. Kallegowda S/o Siddagowda	Byaravalli	357/P	3-00		K.M. Shashidhara	1. RTC From 1965-66 existing in the name of grantee Or their successors
5	K.S. Kallegowda	Byaravalli	357 (New No. 672)	12-00		K.S. Mahesh S/o K.M. Shashidhara	1. RTC Form 1965-66 existing in the name of grantee Or their successors
6	Kallegowda S/o Siddagowda	Byaravalli	378	13-01		K.M. Shashidhara (extent 8-00) K.G. Mahesh (extent 4-01)	1. RTC Form 1965-66 existing in the name of grantee Or their successors 2. Tippani Uttar Extract 3. From 1969-70.
7	K.M. Shashidhara	Byaravalli	321	3-00		Chikkanna	1. RTC From 1971-72 existing in the name of grantee Or their successors
8	M.D'Souza	Byaravalli	240	10-02		Kruthika, Sinchana, Inchana	1. RTC From 1965-66 existing in the name of grantee Or their successors
9		Byaravalli	173/P	4-00		Kruthika, Sinchana, Inchana	1. RTC Form 1971-72 existing in the name of grantee Or their successors

Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Duntas)	Grant Authy. No. and Date	Present possession	Records Enclosed	Remarks
1	2	3	4	5	6	7	8	9
10	M D'Souza	Byaravalli	173	7-21		Dr. Dhork Lobo	1. RTC Form 1972-78 existing in the name of grantee Or their successors	
11	M D'Souza	Byaravalli	357 (new no 875)	14-05		Dr Dhark A D Lobo, s/o S L Lobo	1. RTC Form 1985-88 existing in the name of grantee Or their successors 2. Tippani Ular Extract	
12	Voerannaiah S/o Rudraiah	Byaravalli	345	8-42		Paramesh, Arun Kumar, Chandramathi, Gangamma, Shashidhara, Lingadeveru	1. RTC Form 1971-72 existing in the name of grantee Or their successors	
13	B Pinto	Shirguru	24	12-10		A E R Pinto	1. RTC Form 1971-72 existing in the name of grantee Or their successors	
14	B Pinto	Shirguru	28	13-02		A E R Pinto	1. RTC Form 1971-72 existing in the name of grantee Or their successors	
15	B Pinto	Shirguru	108	8-10		John Adil Kamath Pinto	1. RTC Form 1971-72 existing in the name of grantee Or their successors	
16	B Pinto	Shirguru	109	23-29		John Adil Kamath Pinto	1. RTC Form 1971-72 existing in the name of grantee Or their successors	
17	Flora Pinto	Shirguru	118	1-24		Flora Pinto	1. RTC Form 1971-72 existing in the name of grantee Or their successors	
18	K M Sechidevi	Byaravalli	364/1	19-34		K M Shashidhar s/o K S Mallagowda	1. RTC Form 1971-72 existing in the name of grantee Or their successors	

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Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy, No. and Date	Present possession	Records Enclosed	Remarks
1	2	3	4	5	6	7	8	9
19	F J D'Souza	Byravalli	173 (New No. 644)	1-20		F J D'Souza	1. Tippani Utlar 2. RTC From 1976-77, existing in the name of grantee Or their successors	
20	F J D'Souza	Byravalli	173 (New No. 645)	2-30		F J D'Souza	1. Tippani Extract 2. RTC From 1976-77, existing in the name of grantee Or their successors	
21	Mary Kolesato	Bhagman e	22 (New No. 53)	5-00		F J D'Souza	1. RTC From 1966-68, existing in the name of grantee Or their successors	
22	A E R Pinto	Shirguru	106	1-33		A E R Pinto	1. RTC From 1971-72 existing in the name of grantee Or their successors	
23	Gangadharayya S/O Veeranalah Others	Byravalli	345/1	0-02		Shashidharu S/O Ungedevuru	1. Current RTC 2. Old RTC from 1971-72 to 1975-76	
24	Gangadharayya S/O Veeranalah Others	Byravalli	346	2-20		Gangamma W/o Gangadharayya Others	1. Current RTC 2. Old RTC from 1966-68 to 1968-67	
25	Gangadharayya S/O Veeranalah Others	Byravalli	347/1	4-22		Arunkumar K. G. S/o Gangadharayya	1. Current RTC 2. Old RTC from 1965-66 to 1968-67	
26	Gangadharayya S/O Veeranalah Others	Byravalli	347/2	5-20		Paramesh K.G. S/o Gangadharayya	1. Current RTC 2. Old RTC from 1965-66 and 1968-67	
27	Gangadharayya S/O Veeranalah Others	Byravalli	347/3	5-21		Somashekhar S/o Gangadharayya	1. Current RTC 2. Old RTC from 1965-66 and 1968-67	
28	Jeevanima (Harish)	Karaguru	98	0-25		Jeevanima (Harish)	1. Current RTC 2. Old RTC from 1978-79 to 1985-86	
29	Mohangowda S/o Dharmagowda (Col J.V. Maskaranis S/O Frank Maskaranis)	Karaguru	98	5-00		Mohangowda S/o Dharmagowda (Col J.V. Maskaranis S/O Frank Maskaranis)	1. Current RTC 2. M.R. Copy	

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Sl. No.	Name of the Grantee	Village	Sy No	Extent (Acres / Guntas)	Grant Authy, No. and Date	Present possession	Records Enclosed	Remarks
1	2	3	4	5	6	7	8	9
30	Sedrik P.A. Lobo	Bhagarmane	51	1-12		Sedrik P.A. Lobo	1. Current RTC 2. Old RTC from 1965-66 to 1969-70	
31	L.J.F. Rebello	Shivase	348	1-09		Printers India Chikmagalur Partnership Firm Bengaluru Represented By its G.P.A Holder Mr. George P. Joseph S/o Mr. Joseph	1. Current RTC 2. Old RTC from 1966-67 to 1990-91	
			Total	158-25				

Thm 26/12
Additional Deputy Commissioner
Chikmagalur District
Chikmagalur

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ITEM NO.57,

COURT NO.5

SECTION PIL-W

S U P R E M E C O U R T O F I N D I A
R E C O R D O F P R O C E E D I N G S

I.A.NO. 990 IN I.A.NO.860 & 863 in
Writ Petition(s) (Civil) No(s).202/1995

IN RE : T.N. GODAVARMAN THIRUMULPAD

Petitioner(s)

VERSUS

UNION OF INDIA AND ORS.

Respondent(s)

[RECOMMENDATION OF CEC ON THE AFFIDAVIT DATED 08.08.2003 FILED BY
THE CHIEF SECRETARY, GOVT. OF KARNATAKA IN I.A.NOS. 860 & 863]

INTERLOCUTORY APPLICATION NOS. 2264-2267, 3964-3965 & 67087/2017
[APPLICATIONS FOR IMPEADMENT, DIRECTIONS, INTERIM RELIEF,
EXEMPTION FROM FILING O.T., PERMISSION TO FILE ADDITIONAL
DOCUMENTS]

WITH

INTERLOCUTORY APPLICATION NOS. 2268-2271

[APPLICATIONS FOR IMPEADMENT, DIRECTIONS, INTERIM RELIEF AND
EXEMPTION FROM FILING O.T.]

AND

INTERLOCUTORY APPLICATION NOS. 30 AND 39 AND 57627/2017 IN I.A.NO.
39 IN W.P.(C)NO. 171/1996

[APPLICATIONS FOR DIRECTIONS, FURTHER DIRECTIONS AND IMPEADMENT]

Date : 18-08-2017 These matters were called on for hearing today.

CORAM :

HON'BLE MR. JUSTICE MADAN B. LOKUR

HON'BLE MR. JUSTICE DEEPAK GUPTA

Mr. Harish N. Salve, Sr. Adv. [A.C.] (NP)

Mr. A.D.N. Rao, Advocate [A.C.]

Mr. Siddhartha Chowdhury, Advocate [A.C.] (NP)

Ms. Aparajita Singh, Advocate [A.C.] (NP)

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Dated 18/08/2017
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For Petitioner(s)

For Respondent(s)

Mr. Ranjit Kumar, SG
 Mr. K. Radhakrishnan, Sr. Adv.
 Mr. S. Wasim A. Qadri, Adv.
 Mr. Zaid Ali, Adv.
 Ms. Aruna Gupta, Adv.
 Mr. Ravindra Bana, Adv.
 Ms. Gargi Khanna, Adv.

Mr. Haris Beeran, AOR

Ms. Anitha Shenoy, AOR
 Ms. Srishti Agnihotri, Adv.

Ms. Aruna Gupta, AOR

Mr. S.S. Shamsbery, AAG Rajasthan
 Mr. Amit Sharma, Adv.
 Mr. Ankit Raj, Adv.
 Ms. Ruchi Kohli, AOR

Ms. Purnima Bhat Kak, AOR

Mr. M. Shueb Alam, AOR
 Ms. Fauzia Shakil, Adv.
 Mr. Ujjwal Singh, Adv.
 Mr. Mojahid Karim Khan, Adv.

Mr. Bimal Roy Jad, AOR

UPON hearing the counsel the Court made the following
 O R D E R

INTERLOCUTORY APPLICATION NO. 990

We are concerned with three reserve forests, i.e.,
 Thatkola Reserve Forest, Sargodu Reserve Forest and
 Maskali Reserve Forest.

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As far as the Thatkola Reserve Forest is concerned, it has been stated in the affidavit dated 3rd April, 2017 filed by the State of Karnataka that 148 encroachments over an area of 611.25 acres have been physically evicted. All the dwelling houses have been fully demolished and cash crops existing on the forest lands thereon have been removed. Planting has been done in the entire evicted forest area in Thatkola Reserve Forest.

As far as Sargodu Reserve Forest is concerned, it was noted earlier in our order dated 7th April, 2017 that there are 156 encroachers occupying 550.04 acres. Out of this, 115 encroachments existing on 402.04 acres have been cleared by evicting the encroachers.

33 encroachments were made before 1978 and these encroachments are eligible for regularisation as per the Government of Karnataka G.O. It was noted that steps are being taken in this regard.

We would now require the State of Karnataka to file a specific affidavit indicating when steps for regularization will be completed.

7 encroachers belong to Scheduled Tribes and certificates have been issued to them by the Deputy Conservator of Forests at Chikkamagalur. Necessary steps for their rehabilitation are being taken. We would again require a specific affidavit to be filed by the State of Karnataka indicating a specified time frame within which the process will be contemplated.

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It was also noted that there is one encroacher, i.e., Shri B.S. Narayana & Narayana Gowda who filed a writ petition in the Karnataka High Court. In the affidavit dated 11th August, 2017, it is stated that the writ petition has since been disposed of by the Karnataka High Court on 5th June, 2017.

Subsequent to the order passed by the Karnataka High Court, preparations for carrying out a survey in terms of the order passed by the Karnataka High Court are being undertaken. However, due to the heavy rainfall in the area, this may take some time.

We would require the State of Karnataka to specifically state on affidavit the period by which the survey would be completed.

With regard to the Maskali Reserve Forest, it is stated that the survey of the cultivated area has been completed and the boundary has also been demarcated and boundary stones have been fixed and a map has also been prepared. It is further stated that there are 211 families that require rehabilitation. We would require the State of Karnataka to file a specific affidavit indicating the time frame within which these 211 families will be rehabilitated after their dispossession.

It is further stated that there are 276 families who have occupied an extent of 1782 acres 26 guntas for the purposes of cultivation. They are carrying on the cultivation pursuant to the Grants given to them

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involving 1002 acres and 35 guntas. It appears that these grant holders have encroached upon 452 acres 8 guntas. We direct the State of Karnataka to take immediate steps to evict these grant holders from the encroached area and to demarcate the actual grant.

The needful be done on or before 31st December, 2017.

List the matter after two weeks by which time the affidavit as required should be filed by the State of Karnataka.

I.A. No.990 of 2003 is the report of the CEC dated 08.08.2003. This may be treated as disposed of in view of the orders passed above.

In view of the above, I.A. Nos.860 and 863 stand disposed of.

INTERLOCUTORY APPLICATION NOS. 2264-2267, 3964-3965 & 67087/2017 & 2268-2271

Learned counsel for the mining lease holders says that the revised demand by the State of Rajasthan for Rs.39.7704 lakhs will be paid within a period of two months with interest at the rate of 6% per annum.

Renewal application of the mining lease holders may be considered in accordance with law after payment.

Applications are disposed of.

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INTERLOCUTORY APPLICATION NOS. 30 AND '39 AND 57627/2017
IN I.A.NO. 39 IN W.P.(C)NO. 171/1996

Learned counsel for the State of Jammu and Kashmir
says that he would like to file an additional affidavit.
This may be filed within four weeks. List these
applications after four weeks.

(SANJAY KUMAR-I)
AR-CUM-PS

(MADHU NARULA)
COURT MASTER

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DOCUMENT
GOVERNMENT OF KARNATAKA

No: FEE 41 FGL 2019 (P-1)

Karnataka Government Secretariat,
M.S. Building,
Bengaluru, dated 29-04-2019.

From:
The Additional Chief Secretary to Government,
Forest, Ecology and Environment Department,
M.S. Building,
Bangalore.

To:
The Principal Chief Conservator of Forest
(HoFF),
Aranya Bhavan,
Malleshwaram,
Bengaluru.

Sir,

Sub: Cancellation of land grants made in the Reserve Forest without obtaining prior permission of Central Government after 25-10-1980.

Ref: Report submitted by CEC to the Hon'ble Supreme Court dated 26-12-2018.

With reference to the above, copy of the report submitted to the Hon'ble Supreme Court by the CEC is enclosed. Member Secretary, CEC has made five recommendations. The fifth recommendations is as under.

(v) the Principal Chief Conservator of Forest & HoFF, Karnataka may be directed to file a statement showing the details of grants/ leases, if any, made in any of the reserve forests in the State after 25.10.1980 without obtaining prior approval of the Central Government, with the CEC within 90 days.

In this regard, I am directed to request you to furnish the full information about the cases of granting/leasing of lands in the reserve forests of Karnataka State after 25-10-1980 without the prior approval of the Central Government.

Yours faithfully,

S.H.
(H.C. Rajendra Kumar)Deputy Secretary to Government (Services),
Forest, Ecology and Environment Department.

ATTACHED
H.C. RAJENDRA KUMAR
Deputy Secretary to Government (Services)
Forest Ecology and Environment Department

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APPLICATION UNDER R.T.I. ACT

Form - 'A'

(See Rule 4 (1))

1.	Name of the Applicant	Mahesh Shasidhar
2.	Address	Byravalli Village, Chikkamagaluru(M: 94481 48340)
3.	Description of documents	Land bearing Survey number 621 of BYRAVALLI Village, AvathiHobali, Chikkamagaluru Taluk and District is carved out (phoded from) of larger area of land bearing survey number 357 of Byravalli Village, AvathiHobali, Chikkamagaluru Taluk and District. Kindly confirm as to whom land bearing Survey number 621, old No. 357, was originally granted to, with supporting documents.
4.	Year relating to the documents	1947-48
5.	Purpose for which it is required	These clarifications/documents are required to ascertain title to immovable property.
6.	Details of payment of Application Fee of Rs.10/-	Indian Postal Order No. D.D./Bankers' Cheque Date: Cash Receipt

Place : CHIKKAMAGALURU

Date : 02-11-2023

To,
The Tahsildar,
Chikkamagaluru Taluk,

SIGNATURE OF THE APPLICANT

Prescribed fee of Rs.10/- is paid, additional amount, if any, will be paid on hearing from you.

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ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ತಹಶೀಲ್ದಾರ್ ಕಾರ್ಯಾಲಯ, ಚಿಕ್ಕಮಗಳೂರು ತಾಲ್ಲೂಕು, ಚಿಕ್ಕಮಗಳೂರು ಜಿಲ್ಲೆ

ಸಂಖ್ಯೆ: ಮಾ ಪ ನಿ ಆರ್ : 04 /23-24

ದಿನಾಂಕ: 29-11-2023

-:: ಹಿಂಬರಹ ::-

ವಿಷಯ:- ಮಾಹಿತಿ ಹಕ್ಕು ಅಧಿನಿಯಮ 2005 ರಡಿಯಲ್ಲಿ ಮಾಹಿತಿ ಕೋರಿರುವ ಬಗ್ಗೆ.
ಉಲ್ಲೇಖ:- ಅರ್ಜಿದಾರರ ಅರ್ಜಿ ದಿನಾಂಕ 17-11-2023.

ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಚಿಕ್ಕಮಗಳೂರು ತಾಲ್ಲೂಕು ಆವೃತಿ ಹೋಬಳಿ ಬ್ಯಾರವಳ್ಳಿ ಗ್ರಾಮದ ಹೊಸ ಸ.ನಂ 621 ಹಳೇ ಸ.ನಂ 357 ರ ಮೂಲ ಮಂಜೂರಿ ಕಡತದ ನಕಲು ಕೋರಿದ್ದು, ಈ ಬಗ್ಗೆ ಅಭಿಲೇಖಾಲಯ ಶಾಖೆಯಲ್ಲಿ ಕೂಲಂಕುಷವಾಗಿ ಪರಿಶೀಲಿಸಲಾಗಿ ಸದರಿ ಕಡತವು ಲಭ್ಯವಿರುವುದಿಲ್ಲ ಎಂಬ ಅಂಶವನ್ನು ತಿಳಿಸುತ್ತಾ ನಿಮ್ಮ ಅರ್ಜಿಯನ್ನು ವಿಲೇಗೊಳಿಸಲಾಗಿದೆ.

ಸಾರ್ವಜನಿಕ ಮಾಹಿತಿ ಅಧಿಕಾರಿ
ಚಿಕ್ಕಮಗಳೂರು ತಾಲ್ಲೂಕು

ತಹಶೀಲ್ದಾರ್
ಚಿಕ್ಕಮಗಳೂರು ತಾಲ್ಲೂಕು

ಗೆ

ಮಹೇಶ್ ಶಶಿಧರ್

ಬ್ಯಾರವಳ್ಳಿ ಗ್ರಾಮ ಆವೃತಿ ಹೋಬಳಿ

ಚಿಕ್ಕಮಗಳೂರು ತಾಲ್ಲೂಕು

IN THE HIGH COURT OF KARNATAKA, AT BENGALURU
(ORIGINAL JURISDICTION)

WRIT PETITION NO.

/ 2024

BETWEEN :

Sri. K.M Shashidhar

...PETITIONER

AND

The State of Karnataka and Others

...RESPONDENTS

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1.	I.A seeking dispensation of documents	
2.	Affidavit in support of I.A	

BENGALURU

DATED.

ADVOCATE FOR PETITIONER

(GAURAV NAVEEN KUMAR THEJASVI)

(M/S SHETTY AND HEGDE ASSOCIATES)

IN THE HIGH COURT OF KARNATAKA, AT BENGALURU
(ORIGINAL JURISDICTION)

WRIT PETITION NO. / 2024

BETWEEN :

Sri. K.M. Shashidhar,
S/o Late Sri. K.S. Malle Gowda,
Aged about 83 Years,
R/at Shivagange Estate,
Chikkamangalur,
Karnataka-577130.

...PETITIONER

AND

1. The State of Karnataka,
Department of Revenue,
M.S. Building,
Dr. Ambedkar Vedhi,
Bengaluru-560001
Represented by its Principal Secretary.

...RESPONDENT NO. 1

2. The Deputy Commissioner,
Chikkamangalur District,
Chikkamangalur,
Karnataka-577130.

...RESPONDENT NO. 2

3. The Deputy Conservator of Forests,
Forest Mobile Squad,
Chikkamangalur,
Karnataka-577130.

...RESPONDENT NO. 3

APPLICATION UNDER ARTICLE 226 READ WITH
ARTICLE 227 OF THE CONSTITUTION OF INDIA, 1950

For reasons stated in the accompanying affidavit, it is humbly prayed that this Hon'ble Court be pleased to dispense with the production of Typed Copies of ANNEXURES - B, C, D, E, F, G, K and L, for a period of four weeks in the interest of Justice and Equity.

BENGALURU

DATED.



ADVOCATE FOR PETITIONER
(GAURAV NAVEEN KUMAR THEJASVI)
(M/S SHETTY AND HEGDE ASSOCIATES)

IN THE HIGH COURT OF KARNATAKA, AT BENGALURU
(ORIGINAL JURISDICTION)

WRIT PETITION NO. / 2024

BETWEEN :

Sri. K.M Shashidhar

...PETITIONER

AND

The State of Karnataka and Others

...RESPONDENTS

AFFIDAVIT

I, Gaurav Naveen Kumar Thejasvi, M/s Shetty & Hegde Associates, #27/9, Sankey Road, Vasanth Nagar, Opp. Golf link apartments Bangalore - 560 001, do hereby solemnly affirm and state on oath as follows:

1. I submit that I am the counsel appearing for the Petitioner in the above Writ Petition and I am aware of the facts and circumstances of the above case and hence I am swearing to this Affidavit.
2. I submit that the averments made in para 1 to 35 of the accompanying application are true and correct to the best of my knowledge, information and belief.
3. I state that at the time of filing the petition, I have not filed the Typed Copies of the following ANNEXURES - B, C, D, E, F, G, K and L.
4. In view of the urgency in consideration of the above Writ Petition the present application is filed seeking dispensation with the production of Typed Copy of ANNEXURES - B, C, D, E, F, G, K and L. I undertake to file the Typed Copies of the following Documents produced hereto as ANNEXURES - B, C, D, E, F, G, K and L, within a period of four weeks.



WHEREFORE, it is prayed that this Hon'ble Court may be pleased to dispense with the production of the Typed Copies of the following Documents produced hereto as **ANNEXURES - B, C, D, E, F, G, K and L**, for a period of four weeks in the interest of Justice and Equity.

BENGALURU

DATED:


DEPONENT